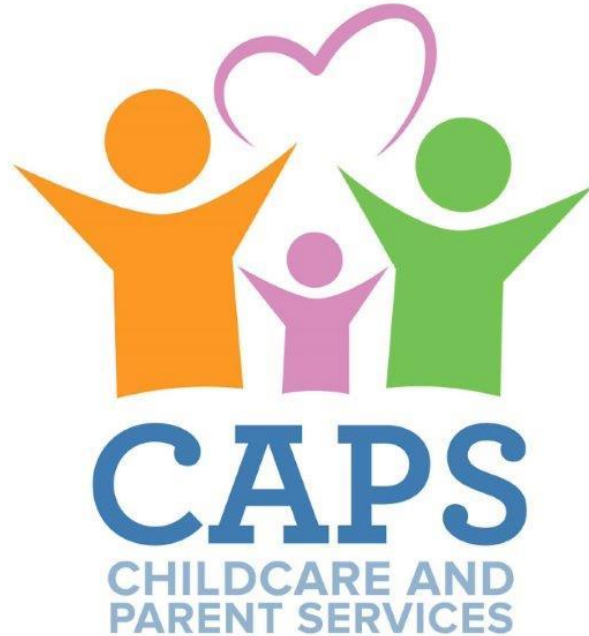


**The Childcare and Parent Services Program (CAPS)
Georgia's Subsidy Program
POLICY MANUAL**



This policy manual does not include all applicable state and federal laws. All parties who wish to participate in CAPS are responsible for ensuring that they are compliant with all state and federal laws and regulations that govern this program.

Bright from the Start:

Georgia Department of Early Care and Learning (DECAL)

2 Martin Luther King Jr. Dr.

Suite 754, East Tower

Atlanta, Georgia 30334

DECAL: 1-888-442-7735

CAPS: 1-833-4GACAPS (1-833-442-2277)



**Georgia Dept
of Early Care
and Learning**
BRIGHT FROM THE START

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LEGAL AUTHORITY: CCDBG Act sec. 658A, O.C.G.A. Sec. 20-1A-1 et seq.; Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

1 OVERVIEW

1.1 Department of Early Care and Learning (DECAL)

1.1.1 Description

Bright from the Start: Georgia **Department of Early Care and Learning (DECAL)** is responsible for meeting the child care and early education needs of Georgia's children and their families. The department administers the nationally recognized Georgia Pre-K Program, **child care learning center** and **family child care learning home** licensing program, Georgia's **Childcare and Parent Services (CAPS)** program, federal nutrition programs, and quality enhancement programs. It also houses the Head Start State Collaboration Office, distributes federal funding to enhance the quality and availability of child care, and works collaboratively with Georgia child care resource and referral agencies and organizations throughout the state to enhance early care and education. DECAL's mission and vision is located online at www.dec.al.ga.gov.

1.1.2 DECAL Child Care and Education Program Information

DECAL is focused on helping to meet the child care and early education needs of Georgia's children ages birth to 18 and their families, with a strong emphasis on quality educational opportunities for children birth to five. It administers various programs and fulfills multiple responsibilities related to child care and early childhood education in Georgia. The following programs are administered by, or operate in collaboration with, DECAL:

- **Child Care Services**
Child Care Services licenses and monitors child care **providers**. For additional information about Child Care Services, visit <http://www.dec.al.ga.gov/CCS/About.aspx>.
- **Georgia's Pre-K Program**
The Georgia Pre-K Program is a lottery-funded educational program for Georgia's four year old's to prepare them for kindergarten. For additional information about this program, visit <http://www.dec.al.ga.gov/Prek/About.aspx>.
- **Head Start State Collaboration**
The purpose of the Head Start State Collaboration Office is to build collaborative partnerships between federally funded Head Start programs and state-funded early childhood programs to improve the quality of services to low-income children and their families in Georgia. For more information regarding Head Start State Collaboration, visit <http://www.dec.al.ga.gov/HeadStart/About.aspx>. To find more information about Head Start, or a Head Start location, visit <http://www.georgiaheadstart.org>.
- **Instructional Supports**
DECAL also administers and coordinates services and support to help early education programs meet high quality standards and to help early education teachers improve their credentials. This includes:
 - Professional Learning: <http://dec.al.ga.gov/QualityInitiatives/ProfessionalDevelopment.aspx>
 - Georgia Program for Infant and Toddler Care: <http://dec.al.ga.gov/QualityInitiatives/InfantToddlerCare.aspx>
 - Inclusion Services: <http://dec.al.ga.gov/ChildCareServices/ProviderInclusion.aspx?r=QI>
- **Nutrition Services**
Nutrition Services administers the Child and Adult Care Food Program (CACFP) and the Summer Food Service Program (SFSP) in Georgia. These federal nutrition programs are funded by the United States Department of Agriculture (USDA) and ensure that children and **adults** throughout Georgia have access to nutritious meals while they are in a day care setting and during the summer when school is not in session. For more information about Nutrition Services, visit <http://www.dec.al.ga.gov/Nutrition/About.aspx>.
- **Quality Rated: Georgia's Quality Rated Improvement System (QRIS)**
Quality Rated is a systemic approach to assess, improve, and communicate the level of quality in early care and education programs. Similar to rating systems for other service-related industries, Quality Rated assigns a quality

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rating of one, two, or three stars to child care providers that meet a set of defined program standards that go above and beyond minimum health and safety requirements. By participating in Quality Rated, early care and education providers embark on a path of continuous quality improvement. Child care providers who participate in and achieve a Quality Rated designation may be eligible for free technical assistance, teacher and director training, grants to purchase classroom supplies and educational materials, and/or higher CAPS reimbursement rates.

- Parents and families can find Quality Rated child care programs at www.qualityrated.org.
- Child care programs may apply to participate at <https://qualityrated.decal.ga.gov/>.
- For additional information about Quality Rated, refer to the Program Manual at https://qualityrated.decal.ga.gov/Content/Documents/PM_ProgramManual.pdf.

- **Summer Transition Program (STP)**

Summer Transition Program is a six-week program during the months of June and July that offers high-quality instruction in language, literacy, and math for children from families with low incomes whose children have attended or are eligible to attend GA Pre-K and need additional supports. The program is designed to reduce the achievement gap by providing additional support and resources to targeted high needs populations. For additional information regarding STP, visit <http://www.decal.ga.gov/Prek/SummerTransitionProgram.aspx>.

1.2 Childcare and Parent Services (CAPS)

1.2.1 Description and Goals

The Childcare and Parent Services (CAPS) program is Georgia's subsidized child care program administered by DECAL. CAPS assists low-income families with the cost of child care in order to support Georgia's school readiness goals. CAPS is available in all 159 counties within Georgia.

1.2.2 Funding Source

Child care services provided through the CAPS program are funded by a combination of state funds and the **Child Care and Development Fund (CCDF)** under the administration of the U.S. Department of Health and Human Services (HHS), the Administration for Children and Families (ACF), and the Office of Child Care (OCC). Authorized by the **Child Care and Development Block Grant (CCDBG)** Act and Section 418 of the Social Security Act, the CCDF assists low-income families in obtaining child care so they can work or attend training/education.

1.2.3 Compliance with Federal Regulations

As the **lead agency**, DECAL is responsible for implementing a state plan that is compliant with federal regulations associated with CCDF. The CCDF State Plan serves as the agreement between DECAL, ACF, and OCC as to how programs are administered to comply with federal regulations; as well as technical bulletins that are issued by ACF. Unless contrary to a federal law or regulation, DECAL has sole discretion on how the CAPS program is operated and how subsidy funding is allocated in Georgia. At any time, DECAL can make adjustments to CAPS program policies, procedures and funding allocations.

- The purposes of the CCDF as defined in the CCDBG Act sec. 658A are to:
 - Allow each state maximum flexibility in developing child care providers and policies that best suit the needs of children and parents within the state;
 - Promote parental choice to empower working parents to make their own decisions regarding the child care services that best suits their family's needs;
 - Encourage states to provide consumer education information to help parents make informed choices about child care services and to promote the involvement by parents and family members in the development of their children in child care settings;
 - Assist states in delivering high-quality, coordinated early childhood care and education services to maximize parents' options and support parents trying to achieve independence from **public assistance**;
 - Assist states in improving the overall quality of child care services and programs by implementing the health, safety, licensing, training, and oversight standards in state law, including state regulations;
 - Improve child care and development of participating children; and

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- Increase the number and percentage of low-income children in high-quality child care settings.
- CCDF offers federal funding to states, territories, Indian Tribes, and tribal organizations in order to:
 - Provide low-income families with the financial resources to find and afford quality child care for their children;
 - Enhance the quality and increase the supply of child care for all families, including those who receive no direct assistance under the CCDF;
 - Provide parents with a broad range of options in addressing their child care needs;
 - Strengthen the role of the family;
 - Improve the quality of, and coordination among, child care programs and early childhood development programs; and
 - Increase the availability of early childhood development and before- and after-school care services.

POLICY REVISION HISTORY

Date	Description of Change

CAPS Policy – Definitions and Acronyms	No.: CAPS/00-2	Effective Date: 10/01/2016
		Revised: 10/06/2025
		Revision Effective: 10/06/2025

2 DEFINITIONS AND ACRONYMS

2.1 Definitions

Administrative Error – an error made by the Agency causing incorrect payment of subsidy and/or eligibility to be determined incorrectly.

Administrative Hearing – a judicial proceeding conducted so as to afford a parent or child care provider their due process rights required by applicable law.

Adult – for the purposes of CAPS, any person who is 18 years of age or older or an emancipated minor. For the purposes of criminal records check processes, an adult can be 17 years of age.

Adult Basic Education (ABE) – academic instruction and services eighth grade level and below that increase an individual's ability to: read, write, and speak in English and perform mathematics or other activities necessary to attain a secondary school diploma or its recognized equivalent.

Adult Secondary Education (ASE) – academic instruction and services between the ninth and twelfth grade levels that increase an individual's ability to: read, write, and speak in English and perform mathematics or other activities necessary to attain a secondary school diploma or its recognized equivalent.

Adverse Action – an unfavorable action taken by DECAL against a child care provider or a parent.

Adverse Action Period – the 14-day notification period CAPS gives parents before an adverse action will go into effect.

Alimony – money paid by a spouse pending or after a legal separation or divorce.

Appeal – the right to request a hearing as a result of an adverse action.

Applicant – the parent, guardian, or person acting in loco parentis (with whom the child resides) who submits the request for CAPS child care assistance.

Application – the form prescribed by CAPS used to apply for child care assistance.

Approval – disposition of an application for a parent who is determined eligible for CAPS services when funding is available. This occurs after an assessment has been made on a complete application.

Arrival and Departure Records – a daily attendance record documenting the child's arrival and departure times signed by the parent or other authorized representative. Formerly referred to as sign-in / sign-out logs.

Authorized Representative – an individual granted written permission by the parent to perform specified duties, including duties related to the application process or daily pickup and drop-off. The authorized representative may not be an employee of the child care provider except in limited circumstances (e.g., the employee is a family member, friend, or neighbor of the child and routinely performs pickup and drop-off duties because of their relationship to the child).

Authorized Signer (delegee) – a person who is not legally responsible for the organization by virtue of their position but is granted permission to sign documents related to participation in the CAPS program.

Before and After School Scholarship – the type of scholarship authorized when child care is needed for a **school age** child before and/or after customary school hours while school is in operation for the child receiving care. Before and after school child care also includes children who are enrolled and attending Georgia's Pre-K Programs or **Head Start**.

Biological – parent who has given birth to (mother) or fathered the child or is related by blood affiliation to the third degree of consanguinity, such as, a parent, aunt, uncle, grandparent, great-grandparent, or older sibling.

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Boarder Income – direct payments for food and related shelter expenses, minus the cost of doing business. A boarder rents space within the applicant's residence. Please see definition for rental income when income is received from renting space at a location other than the applicant's own residence.

Calendar Day – time from 12:00 am to 11:59 pm.

Capital Gains – proceeds from the sale of capital goods or equipment. Proceeds are reported as capital gains for tax purposes, including items such as real estate, securities, machinery, etc., which are held as an investment for a set period of time. A capital gain is realized when the item(s) sold has appreciated in value from the original purchase price.

CAPS Administration and Payment System – the information technology system used to manage child care provider participation, payments, and data related to CAPS services.

CAPS/Quality Rated Probationary Status – a licensed child care program that has not achieved a star rating, or is unable to maintain a star rating.

CAPS/Quality Rated Provisional Status – a licensed child care program that is new to CAPS and in the process of becoming Quality Rated.

Case Record – all documentation collected and retained for a child care provider and parent throughout the course of their participation in the CAPS program.

Childcare and Parent Services (CAPS) – Georgia's child care subsidy assistance program.

Child Care and Development Block Grant (CCDBG) – the primary source of federal funding for child care subsidies for low-income working families.

Child Care and Development Fund (CCDF) – the funds allocated to states under the provisions of the Child Care and Development Block Grant Act, as amended. The fund consists of Discretionary Funds authorized under section 658B of the amended Act, and Mandatory and Matching Funds appropriated under section 418 of the Social Security Act.

Child Care Scholarship – a written authorization of eligibility for the CAPS program. For the purposes of the CAPS program, a child care scholarship provides authorization for eligibility to the parent, not eligibility for the child care provider. Scholarships can be issued (based on the family's needs) for full time, part time, or before/after school care.

Child Care Learning Center – means any place operated by an individual or any business entity recognized under Georgia law wherein are received for pay for group care, for fewer than 24 hours per day without transfer of legal custody, seven or more children under 18 years of age and which is required to be licensed. Child Care Learning Center also includes any day care center previously licensed by the Department of Human Resources and transferred pursuant to Code Section 20-1A-1 *et seq.*

Child Care Resource and Referral Agency (CCR&R or R&R) – statewide network of organizations that help parents choose child care by giving them referrals to local child care providers, information on state licensing requirements, etc. CCR&Rs also offer training and technical assistance as well as quality improvements activities to child care programs. For additional information, visit www.allgakids.org.

Child Development Associate (CDA) – credential awarded by the Council for Professional Recognition to individuals who work in all types of early care and education programs, including Head Start, pre-k, infant-toddler, family child care and home visitor programs.

Child Protective Services – an investigation of child abuse or neglect that yields services to protect the child and strengthen the family.

Child Support – maintenance allowance paid by the noncustodial parent for the support of a child.

Children with Disabilities – a child that has a disability or developmental delay that impacts their learning, as measured and documented by appropriate diagnostic instruments and procedures by a licensed medical specialist. The disability or delay

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must be in one of the following areas: physical development, cognitive development, communication development, social or emotional development, or adaptive development. Children with disabilities may include: a child who is eligible for early intervention services under part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.); a child who is eligible for services under part B, section 619, of the Individuals with Disabilities Education Act (20 U.S.C. 1419); a child who is eligible for services under section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794); a child with a Medicaid waiver for persons with disabilities (i.e., Katie Beckett, NOW, or COMP); and a child receiving Supplemental Security Income for blindness or a disability.

Claim – an overpayment established or identified by DECAL as a result of an error or violation.

Client Error – an unintentional error caused by the parent. These include, but are not limited to, reporting false or inaccurate information, delays in reporting changes in household circumstances or provider arrangements, or excess payments made as the result of a request to continue benefits pending an administrative hearing.

Comprehensive Records Check Determination – a satisfactory or unsatisfactory determination by the department, based upon a Federal Bureau of Investigation fingerprint check, a search of the National Crime Information Center's National Sex Offender Registry, and a search of the following registries, repositories, or databases in the state where the actual or potential employee or director resides and in each state where such individual resided during the preceding five years: criminal registry or repository, with the use of fingerprints being required in the state where the individual resides and optional in other states; state sex offender registry or repository; and state based child abuse and neglect registry and data base.

Core Standards – health and safety standards identified as having the greatest impact on risk to children in care.

Delegation of Authority- the process or action of transferring one's power or duty to another person.

Denial – disposition of an application for a parent determined not eligible for CAPS services or when funding is not available. This occurs after an assessment has been made on a complete application.

Department of Early Care and Learning (DECAL) – the state entity, or Lead Agency, designated under §98.10 and 98.16(a) (Code of Federal Regulations) to which a CCDF grant is awarded and that is accountable for the use of the funds provided.

Director – the chief administrative or executive officer of the child care facility. This person is responsible for the daily on-premises supervision, operation, and maintenance of the facility.

Dismissal – the action taken to remove a child care provider from the CAPS program for failure to comply with DECAL policies or federal or state laws and regulations.

Dispose – the act of moving an application from pending status to either approved, denied, or unable to process.

Disqualification – a time-limited or permanent status that disallows a child care provider or parent from participating in CAPS for failure to comply with DECAL policies or federal or state laws and regulations.

Dividends – a share of profits received by a policy holder or shareholder.

Early Head Start (EHS)- A federal-to-local community grant program that provides comprehensive child development and family support services for pregnant women through children 3 years of age and their families. For additional information, visit <https://eclkc.ohs.acf.hhs.gov/programs/article/early-head-start-programs>.

Earned Income – income gained from paid work, such as wages, salaries, tips, net earnings from self-employment, etc.

Electronic Signature – occurs when the signatory affixes their signature, unique and private pin, photo, fingerprint recognition, or unique and individualized card scan to an electronic document.

Eligible – disposition of an application for a parent who may receive CAPS services when funding is available.

Eligible Child – at the time of eligibility determination or redetermination the child shall be under 13 years of age (under 18 years of age with a disability or developmental delay that impacts their learning or court ordered supervision); resides with a

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family whose income meets CAPS income requirements; resides with a family whose assets do not exceed \$1,000,000.00; and resides with a parent(s) who is employed or enrolled and participating in a vocational training or educational program, or receives, or has a need for protective services (as designated by CAPS).

Eligible Postsecondary Institution – a unit of the University System of Georgia; or a branch of the Technical College System of Georgia; or a private non-profit postsecondary institution located in Georgia that is authorized to participate in the Tuition Equalization Grant Program; a private proprietary (for profit) Baccalaureate Degree granting postsecondary institution located in Georgia that is eligible to participate in the Tuition Equalization Grant Program. The proprietary postsecondary institution must have met all requirements of the eligible postsecondary institution as defined by the Georgia Student Finance Commission by January 1, 2011.

Eligibility Period – a minimum 12-month period that each individual child receives for which a family is authorized to receive CAPS services as long as eligibility requirements are met.

Employment – work performed by the parent in exchange for pay.

English as a Second Language (ESL) – instruction and adult education for English language learners to achieve competence in reading, writing, speaking, and comprehension of the English language that leads to: the attainment of a secondary school diploma or high school equivalency; transition to postsecondary education and training; or employment.

Family Assessed Fee – the amount the family should pay to share in the cost of child care based on their income and their family unit size.

Family Child Care Learning Home – means a private residence operated by any person who receives therein for pay for supervision and care fewer than 24 hours per day, without transfer of legal custody, at least three but not more than six children under 13 years of age who are not related to such persons and whose parents are not residents in the same private residence as the provider and which is required to be licensed; provided, however, that the total number of unrelated children cared for in such home, for pay and not for pay, may not exceed six children under 13 years of age at one time, except that a provider may care for two additional children three years of age or older for two designated one hour periods daily upon approval by the Department.

Family Unit – persons who are considered in the family for the purpose of determining CAPS eligibility.

Foster Care – children in the custody of the Department of Family and Children Services (DFCS) that have been removed from their home and are under the supervision of DFCS.

Fraud – a criminal act in which a child care provider, parent, or authorized representative makes a false statement and/or withholds information willfully, knowingly, and with deceitful intent and, as a result, obtains or attempts to obtain payment or assistance for which he/she is not eligible.

Full Time Scholarship – the type of scholarship authorized when full-time child care is needed for three or more days within a service week.

General Equivalency Diploma (GED) – a program of study leading to a secondary school diploma.

Grievance – any complaint regarding program services, policies, or procedures offered through the Childcare and Parent Services (CAPS) program excluding those that are subject to an administrative hearing. Grievances are handled and reviewed by impartial members of CAPS leadership.

Gross Applicable Income – income that is counted toward the maximum allowable income limit.

Gross Wages/Salary – income earned from work/employment, including base pay and tips, commissions, piece rate payments, and cash bonuses prior to deductions.

Head Start (HS) – A federal-to-local community grant program that provides comprehensive child development and family support services for children 3 to 5 years of age and their families. For additional information, visit <https://eclkc.ohs.acf.hhs.gov/programs/article/head-start-programs>.

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Household – all persons residing in the same home.

Improper Payment – any payment received in error. This may include a payment made for an incorrect amount, a payment made on behalf of an ineligible person or a payment made for a service not rendered or improperly authorized. This includes any duplicate payments or payments for services not received.

In loco parentis – person living with the child needing CAPS services who is one of the following: a non-custodial parent; another related person who acts as a caretaker (responsible for the care) of the child; a legal guardian; an unrelated adult who is at least age twenty-one (21) and whose petition for legal guardianship of the child is pending; an unrelated adult with whom DFCS has placed a child subsequent to a court order identifying DFCS as responsible for the child's care and supervision.

Inactive Child Care Provider – a child care provider that does not currently care for a child served by the CAPS program.

Informal Provider – family, friend, or neighbor who provides care for no more than two unrelated (or no more than six related) children for pay. Informal providers are not required to be licensed but must register with the CAPS program. Informal care can only be authorized in limited situations as detailed in [CAPS Participating Providers Policy \(CAPS/00-11\)](#).

Integrated English Literacy and Civics Education (IELCE) – instruction for adult English language learners, including professionals with degrees and credentials in their native countries, that provides them knowledge of the English language and other skills needed to function effectively as parents, workers, and to obtain United States citizenship.

Irregular Income – periodic fluctuations where earnings or payments may not reflect an accurate projected annual income when determining eligibility based upon the previous four weeks of income.

Lead Agency – see definition of DECAL.

License-Exempt Providers – child care providers that can operate legally without a license. DECAL rules and guidelines for all exempt programs can be found at http://www.dec.state.ga.us/Child_Care/Programs/Exemptions.aspx.

Lump-Sum Repayment – repayment option where the child care program or parent repays the entire amount of a claim in one payment.

Major Parent – adult who is the parent/person responsible for a minor parent. The major parent and the minor parent reside in the same household with the minor parent's child or children.

Maximum Allowable Income Limit – the highest income threshold for CAPS eligibility.

Military Allotments – payment received by a family unit member who is a dependent or a spouse of a military staff member.

Minor – for the purposes of CAPS eligibility, an individual who has not yet reached their 18th birthday. For the purposes of criminal records check processes, an individual who has not yet reached their 17th birthday.

Minor Parent – any person 20 years of age or younger who has a child.

Net Income from Self-Employment (Farm) – gross receipts minus operating expenses for one's own business, professional enterprise, or partnership. Gross receipts include the value of all goods purchased, rent, heat, light, power, depreciation charges, wages, and similar items. Operating expenses include cost of feed, fertilizer, seed, and other farming supplies, cash wages paid to farmhands, depreciation changes, cash, rent, interest on farm mortgages, farm building repairs, farm taxes (not state and federal income taxes), and similar expenses. The value of fuel, food, or other farm products used for family living is not included as part of net income.

Net Income from Self-Employment (Non-Farm) – gross receipts minus expenses from one's own business, professional enterprise, or partnership. Gross receipts include the value of all goods sold and services rendered. Expenses include cost of goods purchased, rent, heat, light, power, depreciation charges, wages, and salaries paid, business taxes, (not personal income taxes), and similar costs. The value of salable merchandise consumed by the proprietors of retail stores is not included as part of net income.

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Non-relative Informal Provider – child care that is provided by a caregiver who is not related to the child by blood or marriage.

Office of State Administrative Hearings (OSAH) – means the executive state agency responsible for the administration of the Georgia Administrative Procedure Act. OSAH is not accountable to the management of the CAPS program or DECAL.

Offsetting – a reduction in a child care provider's on-going payments to recoup an established overpayment.

Overpayment – an improper payment where the parent or child care provider receives more in services or payment(s) than they are entitled to receive.

Parent – a parent by blood, marriage, or adoption; a legal guardian; or other person standing in loco parentis (acting in the role of a parent or guardian). Parent also include any persons recognized by Georgia law or a competent court of jurisdiction as serving in loco parentis.

Part Time Scholarship – the type of scholarship authorized when part-time child care is needed for one or two days during a service week. This scholarship can be authorized when child care is needed sporadically throughout the eligibility period (e.g., teacher work days, student holidays, virtual learning days as scheduled by the school district, etc.).

Premises – a building, group of buildings, and/or contiguous parcels of land under the control of a single owner who may rent out portions of the premises.

Program Contact – a person identified by the organization to manage and ensure participation compliance in the CAPS program.

Program Violation – an intentional submission of incomplete, incorrect, or falsified documents or information in order to qualify for assistance or receive payments that an individual or child care provider is not authorized to receive.

Provider – the person, facility, or program chosen by the parent(s) to provide child care.

Provider Error – an unintentional error caused by the provider where payments are made based on incorrect and/or inaccurate information.

Public Assistance – payment in or by money, medical care, remedial care, goods, or services to or for the benefit of needy persons.

Published Rate – the rate a provider charges to all children receiving child care. This includes families/children subsidized by CAPS and families/children not subsidized by CAPS.

Quality Rated – Georgia's system to assess, improve, and communicate the level of quality in early education and school-age care programs. Similar to rating systems for hotels or restaurants, Quality Rated assigns a rating of one, two, or three stars to early education and school-age care programs that go above and beyond minimum licensing standards.

Quality Rated Cohort Group – the process under which a provider signs up to complete their Quality Rating in a given year. Each year consists of four separate cohorts that have a predefined number of program slots available. Each cohort has its own window when a portfolio must be submitted and the three months window during which the program observation will be conducted. Cohort slots are released in October for the following year and are available for selection in a provider's Quality Rated account.

Quality Rated Provider – a licensed child care program that is one-, two-, or three-star rated in Quality Rated (Georgia's Quality Rating and Improvement System).

Registration Fee – the fee charged by a provider for enrollment.

Regular Income – a consistent pattern of pay for six consecutive months of earnings. It can include unearned and earned income.

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Regular Lottery Payments – a sum of money received as a result of purchasing a winning ticket in a game of chance paid on a consistent basis.

Reinstatement – a process that allows a child care provider who has been dismissed or disqualified from receiving subsidies through CAPS to become eligible for enrollment once again.

Relative Informal Provider – child care that is provided by a caregiver who is related to the child by blood, marriage, or adoption within the third degree of consanguinity, such as an aunt, uncle, grandparent, great-grandparent, or older sibling.

Rental Income – money received on property owned and rented to others at a location other than at the applicant's own residence. Please see the definition of Boarder Income when space within the applicant's own residence has been rented to a Boarder(s).

Repayment Statement – form signed by the child care provider or parent when a claim has been established or identified by DECAL as a result of an error or violation. The statement documents the amount of the claim and includes the frequency, method, and time period for repayment.

Sanction – action available under federal, state, or local law, regulation, or policy that may be utilized by DECAL when a child care provider or parent is found to be in noncompliance with CAPS policies and rules.

School Age – children who are at least five years old by the first of September of the current school year and who are eligible to attend public school and who are under 13 years old (or up to age 18 years for children with disabilities). For the purposes of CAPS, regardless of age, children enrolled and attending either Georgia's Pre-K Programs or **Head Start** are considered school age.

Self-Employment – an individual is considered self-employed if they operate a business or trade as a sole proprietor, independent contractor, partner in a business partnership, or are otherwise in business for themselves, including part-time or gig-based work.

Serious Injury – a death or an incident requiring hospitalization or professional medical attention other than first aid of a child while in the care of the provider that was the result of a substantiated intentional or gross negligent act on behalf of the provider or staff that indicates a deficiency in the operation or management of the program. Any case of serious injury that was substantiated by DECAL will be deemed as Extreme Harm and Imminent Danger according to DECAL's Integrated Enforcement and Compliance System.

Service Week – the time period CAPS uses for providers to identify the type of care provided. Service begins on Monday and ends on Sunday.

Single Parent – parent who resides with his/her child and is legally and/or financially responsible for the child when there is no other legally and/or financially responsible person for the child residing with that eligible family.

Social Security – for the purposes of CAPS eligibility determination, these are retirement and survivor's insurance payments from the social security administration.

Standard of Promptness (SOP) – the time period within which certain actions must be taken.

State Median Income – income distribution promulgated by the United States Department of Health and Human Services that CAPS uses to determine the program income guidelines.

State-approved Activity – any activity as defined by CAPS in which the parent must participate as an eligibility requirement.

Student Parent – parent with dependent children enrolled in one of the following: adult education, **vocational training, technical certificate of credit (TCC), technical college diploma (TCD)**, early childhood education (ECE) credential or certification training, educational or training program through **WorkSource Georgia**, associates or bachelor's degree program.

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Suspension –payments on an active scholarship placed on hold for a specified period of time as requested by the parent or as determined by DECAL.

Technical Certificate of Credit (TCC) – an academic credential granted by a postsecondary institution indicating satisfactory completion of training by a student in an undergraduate program of study which is not a diploma program of study, an associate, baccalaureate, or graduate degree or continuing education. A certificate program of study typically requires fewer credit hours than a diploma program of study.

Technical College Diploma (TCD) –an academic credential granted by a postsecondary institution including satisfactory completion of training by a student in an undergraduate program of study which is not a certificate program of study, an associate, baccalaureate, or graduate degree. A diploma program of study typically requires more credit hours than a certificate program of study.

Temporary Assistance for Needy Families (TANF) – the monthly cash assistance program for low-income families with children under age 18 and children 18 years of age who are attending school full-time.

Temporary Change – any time-limited absence from work for an employed parent due to such reasons as the need to care for a family member or an illness; any interruption in work for a seasonal worker who is not working; any student holiday or break for a parent participating in a training or educational program; any reduction in work, training, or education hours, as long as the parent is still working or attending a training or educational program; any other time-limited cessation of work or attendance at a training or educational program that does not exceed 13 weeks; any change in age, including turning 13 years old during the eligibility period; any change in residency within the state of Georgia.

TANF Diversion – occurs when a parent, after receiving short term assistance, voluntarily closes their TANF case in order to not exceed the 48-month lifetime limit on TANF participation.

Transportation Records – includes transportation agreements and logs maintained in accordance with child care licensing rules for licensed providers or health and safety standards manuals for license-exempt and informal providers.

Underpayment – an improper payment where the parent or child care provider receives fewer services or less payment(s) than she or he is entitled to receive.

Unearned Income – income gained from sources other than employment or work, such as interest and dividends from investments, retirement income, social security, unemployment benefits, alimony, and child support.

Unemployment Compensation – money received from government unemployment insurance agencies or private companies during times of unemployment and strike benefits received from labor unions.

Unable to Process – disposition of an application when the application cannot be processed due to: (1) any duplicate application or (2) missing or incomplete information or verification documents.

Uniform Accounting System (UAS) Code – codes used to direct funds and maintain a tracking system for the various populations served in CAPS. Each UAS code is used to serve a particular population (e.g., TANF, Pre-K, Transitional Child Care (TCC), Summer Transition Program (STP), Foster Care, and low-income working families). A list of the UAS codes is included as part of the appendices.

Veteran's Benefits – pensions or benefits paid to a retired/disabled veteran or their surviving dependents.

Vocational Training – instructional programs or courses that focus on education, training, and skills required to prepare for a particular job function or trade. (At DECAL's sole discretion, instructional programs or courses completed at non-academic institution may be considered for approval.)

Wages or Salary – earnings received in exchange for work performed as an employee, including armed services pay, consideration of tips, commissions, piece rate payments, wages/salary advances, vacation pay, overtime pay, sick pay, contract employment, and cash bonuses.

Withdrawn – an application status when the parent rescinds their application.

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Worker's Compensation – money received from private or public insurance companies for injuries incurred at work.

WorkSource Georgia – is the state's program responsible for integrating education, training, and job services under the Workforce Innovation and Opportunity Act (WIOA). WorkSource Georgia provides oversight to the state's 19 Local Workforce Development Areas (LWDA), who operate one stop centers.

2.2 Acronyms

AE	Administrative Error
ABE	Adult Basic Education
APRN	Advanced Practice Registered Nurse
ASE	Adult Secondary Education
CAPS	Childcare and Parent Services
CACFP	Child and Adult Care Food Program
CCDBG	Child Care and Development Block Grant
CCDF	Child Care and Development Fund
CCS	Child Care Services (Licensing)
CCR&R	Child Care Resource and Referral Agency
CDA	Child Development Associate
CE	Client Error
CPR	Cardiopulmonary Resuscitation
CPS	Child Protective Services
CRC	Criminal Records Check
DECAL	Department of Early Care and Learning
DFCS	Division of Family and Children Services
DHS	Department of Human Services
EHS	Early Head Start
ESL	English as a Second Language
FPL	Federal Poverty Level
GED	General Equivalency Diploma
GRG	Grandparents Raising Grandchildren
IE	Inadvertent Error
INA	Immigration and Naturalization Act
IP	Improper Payment
IRS	Internal Revenue Service
IELCE	Integrated English Literacy and Civics Education
LES	Military Leave Earning Statement
OIG	Office of Inspector General
OP	Overpayment

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OSAH	Office of State Administrative Hearings
PE	Provider Error
Pre-K	Pre-Kindergarten (generally refers to Georgia's Pre-K Program)
PV	Program Violation
QR	Quality Rated
QRIS	Quality Rated Improvement System
SFSP	Summer Food Service Program
SIDS	Sudden Infant Death Syndrome
SMI	State Median Income
SSCM	Social Services Case Manager
SSI	Supplemental Security Income (Blind, Aged, Disabled)
SSN	Social Security Number
TANF	Temporary Assistance for Needy Families
TFSP	TANF Family Service Plan
TCC	Technical Certificate of Credit
TCC	Transitional Child Care
TCD	Technical College Diploma
TIN	Taxpayer Identification Number
UAS	Uniform Accounting System
UP	Underpayment
USCIS	U.S. Citizenship and Immigration Services

POLICY REVISION HISTORY

Date	Description of Change
03/26/2018	Removed definition for Graduated Phase-out and added definitions for Gross Applicable Income and Maximum Allowable Income.
07/02/2018	Revised definition of Minor Parent to 20 years of age or younger; revised definition for Special Needs; added definition for Temporary Change; and added new definition for an authorized representative. Replaced all instances of the word certificate with scholarship in this section and throughout the Policy Manual. Replaced most instances of the word program with provider in this section and throughout the Policy Manual.
10/01/2018	Revised the title of the "Special Needs" definition to "Children with Disabilities," in accordance with a corresponding revision to the title of that priority group and added to the definition a requirement that the disability affect the child's learning. Added new definition for serious injury.
10/19/2018	Revised definition of temporary change to include any change in age and any change in residency within the state of Georgia.

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Date	Description of Change
02/01/2019	Renamed sign in/sign out logs to arrival and departure records to align with child care licensing rules; renamed informal caregiver to informal provider; added definitions for adverse action period, comprehensive records check determination, core standards, and transportation records; and revised definitions of dismissal and disqualification.
10/01/2019	Added definitions for electronic signature and grievance. Revised definition of adverse action period to note CAPS will provide 14 days' notice instead of 10 days' notice.
05/15/2020	Added definitions for approval, dispose, unable to process, and withdrawn.
11/02/2020	Renamed "parental authority" to "parent;" "Georgia Lottery funded Pre-k" to "Georgia's Pre-K Program;" and "case manager" to "CAPS staff" in this section and where applicable throughout the policy manual. Renamed before and after school care, full time care, and part time care to before and after scholarship, full time scholarship, and part time scholarship, respectively; removed occasional care from terms and merged definition with part time scholarship.
07/01/2021	Added definition for CAPS/Quality Rated Probationary Status, CAPS/Quality Rated Provisional Status, Quality Rated Cohort Group, and Quality Rated Provider.
10/01/2021	Added definition for eligible child.
05/01/2022	Added definition for Adult Basic Education, Adult Secondary Education, Child Development Associate, English as a Second Language, Integrated English Literacy and Civics Education, Student Parent, Technical Certificate of Credit, Technical College Diploma, Vocational Training, and WorkSource Georgia. Revised service week definition to clarify the service week begins on Monday and ends on Sunday.
07/01/2023	Added virtual learning days to part time scholarship definition.
11/15/2023	Removed State Provider Management Agent (SPMA) references and replaced them with CAPS where applicable throughout the policy manual. Removed and replaced State Provider Management System (SPMS) with Georgia Childcare Administrative and Payment System (GACAPS) where applicable throughout the policy manual. Added definitions for Authorized Signer, Delegation of Authority, Early Head Start (EHS), Head Start (HS), GACAPS, Program Contact, Published Rate, and Quality Rated Tier Reimbursement. Revised definition of school age to include children enrolled and attending Head Start. Revised definition of suspension.
10/01/2024	Removed definition for Quality Rated Tier Reimbursement.
11/18/2024	Renamed "GACAPS" to "CAPS administration and payment system" in this section and where applicable throughout the policy manual. Removed GACAPS from list of Acronyms.
03/01/2025	Revised definition for eligibility period.
10/06/2025	Clarified definition for irregular income. Added definition for self-employment.

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		Revised:	03/02/2026
		Revision Effective:	03/02/2026

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Application Process Policy (CAPS/00-4), CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Priority Groups Policy (CAPS/00-7), CAPS Family Fee Policy (CAPS/00-9), CAPS Case Change and Documentation Policy (CAPS/00-13), CAPS Program Integrity Policy (CAPS/00-16), CAPS Grievances Policy (CAPS/00-17), CAPS Administrative Hearings Policy (CAPS/00-18)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

3 PARENT RIGHTS AND RESPONSIBILITIES

3.1 Purpose

The purpose of this policy is to provide the rights and responsibilities **parents** are required to abide by in order to receive **Childcare and Parent Services (CAPS)** services.

3.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of **parents**.

3.3 Parent Rights

- 3.3.1 The parent has the right to apply for assistance, withdraw the application, request termination of assistance, or reapply for CAPS at any time.
- 3.3.2 The parent is authorized to receive child care services as long as funds are available, and the parent remains **eligible** and has complied with all CAPS program requirements.
- 3.3.3 The parent has the right to choose any eligible child care provider within the limits prescribed in [CAPS Participating Provider Policy \(CAPS/00-11\)](#) and [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#).
- 3.3.4 The parent has the right to enroll their **school age** child in any educational program of their choice that is actively participating or eligible to participate in CAPS. For CAPS purposes, a child that turns 5 years old by September 1 of the current school year, enrolled in and attending Georgia's Pre-K and **Head Start** are considered school age. The school age child who is 5 years old by September 1 is eligible to attend public school. Therefore, CAPS will only pay on a **before and after school scholarship** while school is in session.
- 3.3.5 **Temporary Assistance for Needy Families (TANF)** recipients have the right to be informed of the availability of exemptions from mandatory participation in **employment** services activities if appropriate child care is not available, affordable or cannot be accessed.
- 3.3.6 Parents who state that they or their children have been victims of domestic violence or who state that they are at risk of further domestic violence must be informed of the available community services that assist victims of domestic violence and how to voluntarily and confidentially access such services.
- 3.3.7 The parent has the right to have access to their child during all times the child is in child care.
- 3.3.8 Information that is provided by the parent and placed in a database used by the CAPS program will remain confidential in accordance with any applicable state or federal regulations.
- 3.3.9 Information provided may be disclosed, discussed, or shared with other state agencies and outside organizations as permitted by law for purposes directly connected with the administration of public assistance.
- 3.3.10 The parent may be contacted from time to time about participating in research studies pertaining or related to the CAPS program. Participation in any research is optional and has no impact on eligibility for the CAPS program.
- 3.3.11 Parents may choose to receive important updates and notifications from the CAPS program via SMS (text messaging). Participation in this messaging service is voluntary and has no impact on eligibility for the CAPS program. To begin receiving text messages from CAPS, parents may opt in by texting CAPS to 1-833-685-4957. By

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doing so, parents consent to receive automated text messages from CAPS, including reminders, updates, and other relevant information. Parents may learn more about CAPS privacy policy by going to <https://caps.decal.ga.gov/en/privacypolicy>.

- 3.3.12 The parent has the right to see their case file unless this is prohibited by state or federal laws or regulations.
- 3.3.13 The parent has the right to file a grievance or **appeal** when the Agency imposes an **adverse action** that is appealable, such as a **denial** or case closure if the parent does not agree with the action taken by the agency.
- 3.3.13.1 Changes where adverse actions are a direct result of implementation of federal and state regulations/policies and the change affects entire populations are not appealable.
- 3.3.14 The parent has the right to request a grievance mediation and/or the right to an **administrative hearing**.
- 3.3.15 Parents who speak Spanish have the right to request and receive forms and notices in Spanish and request CAPS to provide an interpreter when contacting the CAPS program. Other non-English speaking individuals or persons with limited English proficiency shall have the right to request an interpreter provided by the agency.
- 3.3.16 Parents with vision or hearing impairments have the right to request auxiliary aids or other accommodations.
- 3.3.17 The parent has the right to be treated fairly without regard to race, color, religion, sex or sexual orientation, marital status, national origin, ancestry, age, political beliefs, or disability.
- Note:** An **applicant** or recipient who feels their rights have been violated may contact the CAPS program at 1-833-4GACAPS (1-833-442-2277) or CAPS.Complaints@decal.ga.gov.
- 3.3.18 The parent has the right to **appeal** to the U.S. Department of Health and Human Services Office for Civil Rights (HHS OCR) if they feel DECAL or CAPS staff has violated their civil rights.
- 3.3.19 The parent has the right to request **suspension** or closure of their CAPS case.

3.4 Parent Responsibilities

- 3.4.1 The parent is responsible for providing accurate, current, and complete information to the program. Failure to provide true and accurate information may result in sanctions as prescribed in [CAPS Program Integrity Policy \(CAPS/00-16\)](#).
- 3.4.2 The parent is responsible for providing current, accurate, and complete contact information, including email address, if applicable. The parent must permit DECAL to use any contact information provided to send communications. Communication will be by email unless otherwise stated. Failure to provide current, accurate, and complete information may not be a reason for a claim of inadequate notification.
- 3.4.3 The parent is responsible for supplying all requested forms, information, and verification needed to determine eligibility and amount of benefits. If all information is not submitted within the specified time frame, this may result in the inability to determine eligibility and a disposition of unable to process will be issued as prescribed in [CAPS Application Process Policy \(CAPS/00-04\)](#).
- 3.4.4 By signing the application, the parent is authorizing DECAL to verify all information on the application, reported by the parent, and during the interview.
- 3.4.5 The parent must cooperate in taking any actions necessary to establish eligibility. The parent must cooperate with any CAPS investigation and eligibility review by completing any required forms, responding to scheduled interview appointments, and by making requested records or information available. Parents who do not cooperate may be determined to be ineligible for CAPS until they cooperate.
- 3.4.6 The parent is responsible for reporting changes in their circumstances to the CAPS program within 10 **calendar days** of becoming aware of the change. Some changes, while not required to be reported, will result in an increased benefit for the family by reporting them. Changes should be reported online through the state's integrated eligibility system or by phone, mail, or in person.
- 3.4.6.1 The following is a list of changes that the parent is required to report within 10 calendar days of becoming aware of the change:
- Change in family income where the gross applicable income exceeds 85% **State Median Income (SMI)** for a minimum of four consecutive weeks

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- Change in activity that is not temporary (e.g., loss of employment, graduation from school or training activity)
- Request for change in child care provider
- Any change in child care arrangements (including child care provider's location, relationship of the provider and the child, cost, or need for care)
- There is no longer a need for CAPS services
- Family moves out of the state of Georgia
- Change in contact information (e.g., phone number, email address, mailing address)

3.4.6.2 The following is a list of changes that the parent may, but is not required to, report:

- Change in family income where the gross applicable income is at or below 85% SMI
- Child birth, adoption, or addition of a new child
- Marriage
- Change in state-approved activity that is temporary and the activity may resume

3.4.6.3 Failure to report required changes may result in sanctions as prescribed in CAPS Program Integrity Policy (CAPS/00-16).

- 3.4.7 The parent is responsible for reporting within 10 calendar days if their child is no longer enrolled in child care or moves out of the home.
- 3.4.8 The parent is responsible for paying any amounts above the CAPS reimbursement to the provider, if applicable.
- 3.4.9 The parent is responsible for paying the provider if child care is received during a period in which the parent or the provider is ineligible.
- 3.4.10 The parent is responsible for paying the provider for any child care that CAPS did not authorize.
- 3.4.11 The parent is responsible for repaying any overpayments assessed against them by the CAPS program after all appeal processes have been exhausted. Any violations of responsibility for non-payment may result in additional sanctions. Refer to the [CAPS Program Integrity Policy \(CAPS/00-16\)](#).
- 3.4.12 The parent or authorized representative is responsible for signing their children in and out of care each day in accordance with both CAPS and the child care provider's policies and procedures. Failure to sign children in and out of care each day may result in the provider being assessed an overpayment as prescribed in [CAPS Program Integrity Policy \(CAPS/00-16\)](#).

POLICY REVISION HISTORY

Date	Description of Change
03/26/2018	Clarified text in section 3.4.5 regarding which changes parental authorities are required to report.
10/19/2018	Removed a change in child's citizenship status from the list of changes parental authorities are required to report.
02/01/2019	Added references to CAPS Program Integrity Policy and added the responsibility for parental authority or authorized representative to sign children in and out of care each day.
05/15/2020	Revised language related to appeals and grievances. Updated the email address for parental authorities to contact if they feel their rights have been violated.
11/02/2020	Revised language to clarify parents have the right to choose any eligible provider within the limits prescribed in CAPS Participating Policy (CAPS/00-11) and CAPS Provider Rights and Responsibilities Policy (CAPS/00-12). Clarified parents can enroll their school age child in any educational program of their choice; however, CAPS may reimburse a provider only for before and after care for school age children attending a public or private school while school is in session.

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		Revised: 03/02/2026
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Date	Description of Change
10/01/2021	Revised language to state change reports can be submitted online through the state's integrated eligibility system or by phone, mail, or in person.
11/15/2023	Revised language to clarify the parent has the right to enroll their school age child in any educational program of their choice that is actively participating or eligible to participate in CAPS. For CAPS purposes, a child that turns 5 years old by September 1 of the current school year, enrolled in and attending Georgia's Pre-K and Head Start are considered school age. The school age child who is 5 years old by September 1 is eligible to attend public school. Therefore, CAPS will only pay on a before and after school scholarship while school is in session.
10/01/2024	Revised language to add the parent is responsible for providing current, accurate, and complete contact information, including email address, if applicable. The parent must permit DECAL to use any provided contact information to send communications.
11/18/2024	Revised language to add failure to provide current, accurate, and complete information may not be a reason for a claim of inadequate notification.
10/06/2025	Revised language to clarify when information provided by the parent may be disclosed. Added language that parents may be contacted to participate in research studies. Revised language to add by signing the application, the parent is authorizing DECAL to verify all information on the application, reported by the parent, and during the interview.
03/02/2026	Revised language to add SMS (text messaging) opt-in information. Revised language to add the parent must cooperate with eligibility reviews, by completing any required forms, responding to scheduled interview appointments, and by making requested records or information available.

CAPS Policy – Application Process	No.: CAPS/00-4	Effective Date:	10/01/2016
		Revised:	10/06/2025
		Revision Effective:	10/06/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Priority Groups Policy (CAPS/00-7), CAPS Case Change and Documentation Policy (CAPS/00-13), CAPS Annual Redetermination Policy (CAPS/00-14)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

4 APPLICATION PROCESS

4.1 Purpose

In order to participate in the **Childcare and Parent Services (CAPS)** program, **parents** must complete an on-line or paper **application**. The purpose of this policy is to establish guidelines for the application process.

4.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

4.3 Filing an Application

4.3.1 Parents have several options to submit an application.

4.3.1.1 **Online:** Parents requesting assistance with child care costs may apply online through Georgia Gateway at www.Gateway.ga.gov.

4.3.1.2 **Paper:** A paper application for child care services ([Appendix J](#)) may be completed and submitted by mail, email, or in person at the DECAL office. The parent can access the paper application online at caps.dec.al.ga.gov or request that a paper application be sent to them by contacting CAPS at 1-833-4GACAPS (1-833-442-2277).

4.3.2 The parent with whom the child resides and who is in need of child care services should sign the application. When a **minor parent** applies for services, the minor parent should sign the CAPS application.

4.3.3 Applications must include at a minimum the parent's full name and best available contact information (phone number, email address, and/or mailing address), the full name and date of birth of each child in need of care, the date completed, and the parent's handwritten or **electronic signature**.

4.3.4 Parents requiring assistance with completing an application may select an **authorized representative**. The parent must submit written or electronic confirmation of their authorized representative.

4.3.4.1 The authorized representative may help complete and submit the application, provide documentation on the parent's behalf, and/or speak for the parent during the interview. However, the parent must sign the CAPS application.

4.3.4.2 If the parent requests an authorized representative after the application is submitted, the parent may complete and return the Authorized Representative Form (Appendix K) or submit written or electronic confirmation of their authorized representative. The written or electronic confirmation must include at a minimum the authorized representative's full name, phone number and email address, relationship to parent, the date completed, and the parent's handwritten or electronic signature.

4.3.4.3 No information can be shared with the authorized representative without the parent's written consent.

4.3.4.4 All employees of the Department of Early Care and Learning (DECAL), all parties responsible for the administration of the CAPS program, and child care providers are prohibited from being an authorized representative unless authorized by DECAL.

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4.3.5 A complete paper application should be submitted to the following address:

Georgia Department of Early Care and Learning
CAPS Division
2 Martin Luther King Jr. Drive SE
Suite 754, East Tower Atlanta, GA 30334

4.3.6 The official application date shall be the date the initial application was received by CAPS.

4.4 Funding Availability

4.4.1 At the discretion of DECAL and/or due to federal regulations, funding may not always be available.

4.4.1.1 Notifications about funding availability will be posted on the CAPS website.

4.4.1.2 When funding is not available, **applicants** will be alerted at the time the application is submitted.

4.4.1.3 If a family's application is denied for CAPS due to funding availability, the family may reapply when funding becomes available. A denial due to lack of funding is not appealable.

4.5 CAPS Interview

4.5.1 An interview must be conducted to determine eligibility (except for children in Georgia Division of Family and Children Services (DFCS) custody). Interviews can be conducted via phone, in person, or virtually. The purpose of the interview is to ensure that all aspects of the family's situation have been recorded and that all needed verification documents have been received.

4.5.2 Interviews may occur at any time during business hours during the 30-day application review period.

4.5.3 Failure to participate in the interview may result in the application being denied.

4.6 Verification

4.6.1 An applicant will be required to submit verification documents as prescribed in [CAPS Eligibility Requirements Policy \(CAPS/00-6\)](#), [CAPS Priority Groups \(CAPS/00-07\)](#), and [CAPS Income Calculations Policy \(CAPS/00-8\)](#). The applicant will be given a specific time period to submit the supporting documents and information. Verification documents may be submitted in person, by mail, or online through the state's integrated eligibility system.

4.7 Application Status and Dispositions

4.7.1 CAPS staff have up to 30 **calendar days** from the date the application is received to provide an applicant with a written disposition of the application.

4.7.1.1 The application processing period may be extended beyond 30 calendar days for good cause, with management approval, when the verification provided demonstrates a good faith effort by the parent to comply with a request for documentation.

4.7.2 An application shall have one of the following statuses or dispositions:

4.7.2.1 **Approved** – An application may be approved if the family meets applicable activity, income, and other requirements during the application process.

A. An application may be approved even when the parent has not selected a child care provider. CAPS staff should work with the parent, share resources, and inform the parent about child care options and quality learning environments that best fit the needs of the family. Families will receive a 45-calendar day grace period to select a child care provider. The parent must notify CAPS of the selected provider within 45 calendar days after the determination of eligibility. If a provider is not selected and reported to CAPS by the end of the 45-day period, the case may close.

B. An application may be approved even when a parent has not provided all verification documents as required under CAPS Policy 7.6, 7.10, and 7.11. Families will receive a 45-calendar day grace period to

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obtain and provide all verification documents to CAPS. If all verification documents are not provided to CAPS at the close of the 45-day grace period, the case will close.

- C. The scholarship start date cannot be prior to the receipt of the application, the determination of eligibility, or receipt of provider information to CAPS.
- D. If there is not a child care scholarship that authorizes subsidies, the parent is responsible for the full cost of care. CAPS will not pay for services retroactively for any period prior to authorization.

4.7.2.2 **Denied** – An application shall be denied if the family applies and is not currently meeting all applicable eligibility requirements during the application process.

4.7.2.3 Pending – Applications are considered pending until they are disposed.

4.7.2.4 **Unable to process** – An application may be disposed as unable to process for either of the following reasons:

- A. It is a duplicate application.
- B. The applicant does not provide all required information and verifications to determine eligibility by the specified due date.

4.7.2.5 **Withdrawn (by the applicant)** – An applicant may voluntarily withdraw their application in person, by mail, or email.

4.8 Grievances and Appeals

4.8.1 Applicants have the right to file a grievance if their application was disposed as unable to process as prescribed in [CAPS Grievances \(CAPS/00-17\)](#).

4.8.2 Applicants have the right to file a grievance as prescribed in [CAPS Grievances \(CAPS/00-17\)](#) or request an appeal as prescribed in [CAPS Administrative Hearings Policy \(CAPS/00-18\)](#) if their application was denied and they do not agree with the decision.

4.9 Communication from DECAL

4.9.1 DECAL will use the best available contact information submitted by applicants to send communications as prescribed in [CAPS Parent Rights and Responsibilities \(CAPS/00-3\)](#).

4.10 Consumer Education

4.10.1 After an application has been approved, CAPS staff will provide the parent information on the following topics:

- Goals of the subsidy program
- Parent rights and responsibilities
- Verification documents required for eligibility
- Types of child care providers
- Child care options, assessing quality, and **Quality Rated** providers
- Health and safety information and how to make a complaint concerning a child care provider
- Developmental screenings and child development
- Family engagement
- Healthy eating and physical activity
- State policies regarding social, emotional, and behavioral health of children
- Information about programs for children with disabilities
- Information about preschool special education and early intervention programs
- Other assistance programs for which families may be eligible
- Voter registration
- Family support guide (see [Appendix AA](#))
- How to read a child care scholarship

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- Requirements for signing their child in and out each day the child attends care
- Other child care resources

POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Revised section 4.7 to reflect the limited scope of the interview and added section 4.10 regarding the Family Support welcome call.
07/01/2019	Revised language to note that applicants may reapply if their application is denied for failure to submit required documentation timely.
10/01/2019	Removed outdated language related to mailing paper applications and funding by counties and renamed the section previously titled <i>Welcome Call</i> to <i>Consumer Education</i> .
05/15/2020	Revised language to add descriptions of application statuses and to clarify when applicants may file a grievance or an appeal.
11/02/2020	Added language noting that families can receive up to an additional 90 calendar days to select a child care provider.
10/01/2021	Removed fax as a source to submit a paper application. Revised language to note the full name and date of birth of each child in need of care is required on the application. Revised language to state the interview can be conducted via phone, in person, or virtually.
11/18/2024	Revised language to add applications must include best available contact information (phone number, email address, and/or mailing address). Revised language to change additional 90 calendar days to additional 45 calendar days to select a child care provider. Added new Communication from DECAL section.
07/01/2025	Added language to clarify an application may be approved even when a parent has not provided all verification documents as required under CAPS Policy 7.6, 7.10, and 7.11. Families will receive a 45-calendar day grace period to obtain and provide all verification documents to CAPS. If all verification documents are not provided to CAPS at the close of the 45-day grace period, the case will close.
10/06/2025	Added language to clarify the role of an authorized representative. Added language to clarify that children in DFCS custody do not have to complete interview.

CAPS Policy – Family Unit	No.: CAPS/00-5	Effective Date: 10/01/2016
		Revised: 00/00/0000
		Revision Effective: 00/00/0000

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Eligibility Requirements Policy (CAPS/00-6)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

5 FAMILY UNIT

5.1 Purpose

Childcare and Parent Services (CAPS) subsidy funding is provided to families who meet eligibility criteria. The purpose of this policy is to provide procedures for determining who is or is not included in the family unit.

5.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

5.3 Family Unit Overview

- 5.3.1 A family unit is a parent with **legal, biological**, and/or day-to-day responsibility for children in the home and all those for whom the parent is responsible.
- 5.3.2 If the parent and other **adults** reside in the home, then the parent must be the **applicant** for the CAPS program. Biological and legal responsibility for children supersedes day-to-day responsibility unless otherwise indicated in **legal** documentation.
- 5.3.3 More than one **family unit** may live in a home.
- 5.3.4 The parent is responsible for disclosing the names and relationships of all individuals that reside together in the **household** in order to determine the composition of the family unit. In order for CAPS staff to determine the family unit, discussion will need to include who lives in the home, who is married, who are the parents of which children and what the relationships are between adults and children in the home.

5.4 Included in the Family Unit

The following individuals living in the household shall be included in the family unit:

- Biological, adopted, or step children 17 years of age or younger
 - Children under legal or physical guardianship of the parent
 - Spouse/parent residing in the home
 - Unmarried adults living together with a mutual biological or legal child(ren) residing in the same household
 - Spouse/parent temporarily absent from the household due to **employment**, military deployment, training, or education.
- 5.4.1 For each child in Georgia's Division of Family and Children Services (DFCS) custody, the State shall be considered the parent and the child will be authorized as a family unit of one.
 - 5.4.2 Siblings in Georgia's DFCS custody will be assigned to their own case.
 - 5.4.3 Unless otherwise specified, the chart below shall be used to determine the composition of the family unit(s):

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Family Composition	CAPS Requirements
Biological or Marital Affiliation	Children 17 years of age or younger who are related to a parent as their biological child or through marriage shall be included in the family unit. Spouses are included in the family unit. Partners who have children in common shall be included in the family unit, regardless of marital status.
Adoptive Children	Children legally adopted are treated as biological children. Families must meet CAPS eligibility requirements for children in the family unit, including adoptive children.
Unmarried Parents	If a couple resides together and each has a child(ren) of their own and share no child(ren) in common (by blood, marriage or adoption), they are considered two separate family units.
Family Members Expected to Return	A family member who is away from the family residence for reasons of employment, education, training, or military deployment, and who returns regularly or is expected to return shall be considered a member in the family unit. This includes children who are part of a shared custody agreement in cases of separated or divorced parents.
Joint Custody	In situations where separated, divorced, or unmarried parents have joint physical custody of their child(ren), only one parent is required to be eligible to receive child care assistance. At the request of the custodial parent, care can continue at a different provider if within the state of Georgia with the non-custodial parent. If care is already being provided outside of Georgia in a bordering state, care can continue at the same provider. Care will not be authorized outside of Georgia for a different provider.
Multiple Family Households	In situations where adults, who are not spouses, reside together and who do not have a child in common, children in the household shall be considered part of the family unit with their parent.
Multi-Generational Households	A. Although more than two generations of a family may live in one household, they shall be considered as separate family units as long as the biological parent retains legal custody of the child. B. In situations where the parent retains legal custody, the grandparents shall not be counted as members of the same family unit with the parent and child. C. In situations where the legal custody of the child rests with the grandparents, the biological parent shall not be counted as a member of the family unit when residing in the same household.
Minor Parents	For the purposes of CAPS eligibility, a person 17 years of age or younger and their child shall be considered their own family unit.

POLICY REVISION HISTORY

Date	Description of Change

CAPS Policy – Eligibility Requirements	No.: CAPS/00-6	Effective Date:	10/01/2016
		Revised:	07/01/2025
		Revision Effective:	07/01/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99; Immigration and Naturalization Act (INA) 300 *et. Seq.*

Cross Reference/See Also: CAPS Priority Groups Policy (CAPS/00-7)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

6 ELIGIBILITY REQUIREMENTS

6.1 Purpose

The purpose of this policy is to define non-financial eligibility requirements for CAPS and provide guidelines for verifying that these eligibility requirements are met. Families may also be required to meet income guidelines as prescribed in [CAPS Income Calculations Policy \(CAPS/00-8\)](#) and priority group eligibility as prescribed in [CAPS Priority Groups \(CAPS/00-07\)](#).

6.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)** all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

6.3 Residency Requirement

6.3.1 For the purposes of CAPS, all parents must be a resident of the State of Georgia.

6.3.2 Proof of residency may include one of the following:

- Current (unexpired) Georgia government issued driver's license/identification (I.D.) card
- Current (unexpired) lease or mortgage statement
- Notarized statement from landlord or person with whom the **applicant** resides (statement does not need to be notarized for those who meet eligibility for the families who lack fixed, regular, and adequate housing priority group)
- Children's school records within current school year
- Voter registration card
- Motor vehicle registration card with residence address
- **Wage** stubs with residence address
- Work or school I.D. with residence address
- Current utility bill/statement
- Current property tax statement

Note: The above list is not an all-inclusive list and families have the right to submit other forms of verification/documentation that must be credible to determine Georgia residency. Georgia residency can also be verified using other eligibility program system sources whenever possible.

6.4 Age Requirement

6.4.1 In order to apply for CAPS services, the child in need of care must be 12 years of age or younger at the time of eligibility determination, or 17 years of age or younger if the child has a disability or developmental delay that impacts their learning or has a case plan requiring child care as part of court-ordered supervision.

6.4.2 Proof of age may include one of the following:

- Birth certificate

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- Court records
- U.S. Passport
- State issued I.D.
- Hospital certificate of live birth
- Immigration card
- Social Security Administration records
- Immigration court order
- Homeland Security documents

Note: The above list is not an all-inclusive list and families have the right to submit other forms of verification/documentation that must be credible to determine proof of age. Proof of age can also be verified using other eligibility program system sources whenever possible.

- 6.4.3 Children 17 years of age or younger with a disability or developmental delay that impacts their learning or a court order for supervision may receive child care subsidies as long as all other eligibility requirements are met.
- 6.4.4 When a child turns 13 (or 18 with a disability or developmental delay that impacts their learning or court order for supervision), care will continue through the end of the **eligibility period**. During the redetermination process, CAPS staff will close any active scholarships for the 13 (or 18) year old child and proceed with eligibility for the remaining children needing care.

6.5 Child's Citizenship Requirement

- 6.5.1 A child who receives CAPS services must be a U.S. citizen or have established U.S. Citizenship and Immigration Services (USCIS) status as a lawfully admitted qualified alien.
- 6.5.2 For CAPS purposes, pursuant to the Immigration and Naturalization Act (INA), a child is a U.S. citizen if she or he meets one of the following:
- Born in one of the 50 states, the District of Columbia, Puerto Rico, Guam, the U.S. Virgin Islands, or any U.S. territory, unless born to a foreign diplomat
 - Born abroad to two U.S. citizens and at least one of the parents lived in the U.S. prior to the child's birth
 - Born abroad in wedlock to one U.S. citizen and the individual was born on or after November 14, 1986, and the citizen's parent lived at least five years in the U.S. before the individual was born, and at least two of those five years in the U.S. were after the citizen's parent's fourteenth birthday; or the individual was born before November 14, 1986, and the citizen's parent lived at least ten years in the U.S. before the individual was born, and at least five of those ten years in the U.S. were after the citizen's parent's fourteenth birthday
 - Born abroad out of wedlock to a U.S. citizen father and the father had previously been physically present in the U.S. or one of its outlying possessions for a continuous period of one year
 - Born abroad out of wedlock to a U.S. citizen mother and the mother had previously been physically present in the U.S. or one of its outlying possessions for a continuous period of one year
 - Has fulfilled the requirements and completed the process of naturalization
- 6.5.3 Information regarding citizenship and naturalization can be found in the following sections of the Immigration and Naturalization Act (INA) <https://www.uscis.gov/ilink/docView/SLB/HTML/SLB/act.html>: ACT 300 *et. Seq.*
- 6.5.4 Beginning February 27, 2001, a foreign-born child, including a foreign-born adopted child, currently residing permanently in the U.S. automatically acquires U.S. citizenship if certain criteria are met. The criteria for automatically acquiring U.S. citizenship are as follows:
- The child must have at least one U.S. citizen parent (by birth or naturalization)

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- The child must be 17 years of age or younger
- The child must be currently residing permanently in the U.S. in the legal and physical custody of the U.S. citizen parent
- The child must be a lawful permanent resident
- If adopted, the child must meet the requirements applicable to adopted children under immigration law

6.5.5 Acquiring citizenship automatically means that there is no need to apply for citizenship. A child, who was 17 years of age or younger and had already met all of the above requirements as of February 27, 2001, automatically acquired citizenship on that date. Children who did not meet all of the above requirements on that date will acquire citizenship automatically on the date the child meets all of the above requirements.

Refer to [Appendix B](#) for the SAVE Verification Process, which is an inter-governmental information service initiative which verifies the immigration status of benefit applicants.

6.5.6 CAPS can verify the citizenship for all children needing care using one of the following:

- Birth Certificate
- Certificate of Citizenship
- Naturalization Certificate
- Vital records
- Report of Birth from Abroad of a U.S. Citizen
- U.S. Citizen I.D. card
- U.S. Passport
- Consoler's report of birth
- American Indian Card (first issued by USCIS in 1983)
- Court records of parentage, juvenile proceedings, or **child support** indicating place of birth
- Religious record of birth recorded in the U.S. or its territories within three months of birth
 - The document must show either the date of birth or the individual's age at the time the record was made.
- Any document that establishes place of birth or U.S. citizenship, such as, records from Social Security Administration, Veterans Administration, local government agencies, hospitals, or clinic's record of birth or parentage
- Early school records showing the date of admission to the school, the child's date and place of birth, and the names and place of birth of the parents
- Census record showing the name, U.S. citizenship, or a U.S. place of birth and date of birth or age of the individual
- Adoption finalization papers showing the child's name and place of birth in one of the 50 states, the District of Columbia, or a U.S. Territory.

6.5.7 If one of the above documents cannot be obtained, the following verification pertaining to the child's parent may be accepted:

- Documents/records verifying a parent's US citizenship status
- Evidence of civil service **employment** by the U.S. government before 06-01-76
- Northern Marianna Primary I.D. Card (issued prior to 1986 and to applicants born prior to 11-03-86 by Immigration and Naturalization Service)

6.5.8 If a parent cannot provide at least one of the documents listed above to prove U.S. citizenship or legal alien status of the child, the child is not **eligible** for CAPS subsidies. A non-immigrant or undocumented alien child is not eligible for CAPS subsidies.

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- 6.5.9 If a parent reports that the child is not a U.S. citizen or a qualified alien, or refuses to provide required verification documents, the child will not be eligible to receive CAPS services.
- 6.5.10 If verification of the child's citizenship is available from another state or federally recognized program, a copy of the automation/system screen indicating citizenship or alien status may be used and filed in the **case record**. If verification of the child's citizenship was obtained from another state public agency, a fax/copy of the verification document may be accepted.
- 6.5.11 Families may receive an additional 45 calendar days from the date their application was processed to verify citizenship requirements. The 45 calendar days granted will not postpone the eligibility determination. However, if citizenship is not verified by the end of the 45-day period, the child for whom citizenship cannot be verified will be determined ineligible for ongoing child care assistance due to a **program violation**.

6.6 Child's Immunization Requirement

- 6.6.1 Current immunizations are required for children to receive CAPS.
- 6.6.2 A Certificate of Immunization is not required to be present in the CAPS record for children enrolled in school settings, children receiving **Temporary Assistance for Needy Families (TANF)**, or children receiving care in licensed child care providers since these requirements are already met based on school/licensing and TANF requirements.
- 6.6.3 A Certificate of Immunization is required to be kept in the CAPS case record for all non-school aged children who are receiving care through an **informal provider**.
- 6.6.4 Families may receive an additional 45 calendar days from the date their application was processed to verify immunization requirements. The 45 calendar days granted will not postpone the eligibility determination. However, if immunization is not verified by the end of the 45-day period, the child for whom immunization cannot be verified will be determined ineligible for on-going child care assistance due to a program violation.

6.6.5 Exceptions to Immunizations

Through Georgia law, the Department of Public Health allows for two types of exemptions from the immunization requirements: medical and religious. Each child must have one of two items on file – either a valid Georgia Immunization Certificate (Form 3231) or a signed, notarized statement, which is called an affidavit of religious exemption.

Exemption Type	Description
Medical	A. Medical exemptions are used only when a child has a medical condition that keeps him from being able to receive a specific vaccine(s), not all vaccines. B. A medical exemption must be marked on the Georgia Immunization Certificate (Form 3231). A letter from a physician, Advanced Practice Registered Nurse (APRN), or physician assistant (PA) attached to the certificate will not be accepted as a medical exemption. It must be marked on the certificate. C. A physician, APRN, or PA must re-evaluate the need for a medical exemption at least once each year and issue a new certificate of immunization at that time. The date of expiration on the section of the certificate marked "medical exemption" should be one year from the date of issue and never be longer than one year.
Religious	A. For a child to be exempt from immunizations on religious grounds, the parent or guardian must furnish the school/child care facility with a notarized Affidavit of Religious Objection to Immunization (DPH Form 2208). B. The Affidavit of Religious Objection to Immunization form should be filed instead of the Georgia Immunization Certificate (Form 3231). The affidavit does not expire.

Visit <http://dph.georgia.gov> for forms that were referenced in section 6.6.5 and more information about immunizations.

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6.7 Proof of Identity

6.7.1 Proof of identity of the parent is required for CAPS eligibility.

6.7.2 Identity may be verified by using one of the sources listed below. This list is not all inclusive and other documents may be accepted/considered on a case by case basis. Identity can also be verified using other eligibility program system sources whenever possible.

- Federal or state issued identification card
- Military issued identification card
- Current school identification card
- U.S. Passport
- Medicare/Medicaid recipient card
- Social Security award letter
- Declaration of citizenship
- Naturalization Certificate
- Voter Registration Card
- Work or school Visa

6.8 State-Approved Activities

6.8.1 To be eligible for CAPS services, the parent(s) must participate in one, or a combination of, the activities listed in this section. Most parents must participate in the stated activity for an average of at least 24 hours per week, except as noted in this policy. For parents participating in one, or a combination of state-approved activities listed in this section, staff must verify the activity hours for the stated activity.

- 6.8.1.1 Parents 20 years of age or younger enrolled in middle or high school, adult education, early childhood education credential or training courses, **technical certificate of credit (TCC)**, **technical college diploma (TCD)**, education or training through **WorkSource Georgia**, associate degree or bachelor's degree program meet CAPS activity requirement and are exempted from participating an average of at least 24 hours per week. Parents 20 years of age or younger who are not enrolled in middle school, high school, an education, or training program must participate in the stated activity for an average of at least 24 hours per week.
- 6.8.1.2 Parents 21 years of age or older who are not enrolled in middle or high school must participate in state-approved activities for an average of at least 24 hours per week. This requirement may be met with employment, education, or a combination of employment and education.
- 6.8.1.3 Each credit hour (or hour of online or in-person coursework) for adult education (with confirmed course hours), vocational training, early childhood education credential or training courses, TCC, TCD, education or training through WorkSource Georgia, associate degree, and bachelor's degree programs equates to two hours of state-approved activity to account for study time. If the overall number of credit hours for an education activity and the number of clock hours spent in the activity per week differ, then whichever number is greater will be used to calculate the number of state-approved activity hours. For example, eight clock hours per week of online or in-person education where six credit hours would be earned for the class(es), would equate to 16 hours of state-approved activity because the number of clock hours per week is greater than the total number of credit hours.
- 6.8.1.4 Parents 21 years of age or older enrolled in a self-paced (i.e., no confirmed instructional or online course hours) adult education or high school diploma program will be granted six credit hours, which equates to 12 hours of state-approved activity hours. The 12 hours will account for coursework and study time. Parents must supplement adult education and high school diploma enrollment with other state-approved activities (such as employment) to meet the participation requirement of an average of at least 24 hours per week.

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- 6.8.1.5 To promote continuity of care, **temporary changes** in state-approved activity do not affect eligibility. This includes any reduction in work or education hours as long as the parent is still working or attending a training or educational program.
- 6.8.1.6 If the state-approved activity drops below the required hours outlined in this section during the eligibility period, the parent will remain eligible through the end of the eligibility period.
- 6.8.1.7 If there are two parents in the family unit, each parent must meet the activity requirement and verification documents must be received for both parents.
- 6.8.1.8 If there are two parents in the family unit and one is disabled and cannot provide care for the child, care may be authorized based solely on the eligibility of the non-disabled parent. Verification of the disabled parent's disability is required. Acceptable forms of verification include a statement from a licensed medical personnel or documentation from a state or federal agency.

6.8.2 Employment – Participation in paid employment qualifies as a state-approved activity.

6.8.2.1 Employment includes the following:

- Work that yields a W-2, W-9, or 1099 (including self-employment)
- Work study when enrolled in vocational training, associate degree, or bachelor's degree programs
- Other work performed for income not captured on a W2 including tips, commission, or cash-paying employment (including self-employment).

6.8.2.2 Volunteer work is only considered a state-approved activity for families who participate in required volunteer activities through Head Start and Early Head Start programs.

6.8.2.3 Acceptable forms of verification of hours for employment includes pay stubs, a letter from the employer on business letterhead, CAPS Self-employment Report ([Appendix CC](#)) (for self-employed parents only), CAPS [Employment Verification \(Appendix F\)](#), or employer wage records.

Note: The acceptable forms of verification are not all-inclusive, and families have the right to submit other forms of third-party verification/documentation that must be credible to determine activity hours. Activity hours can also be verified using other eligibility program system sources when sufficient documentation is available.

6.8.2.4 Employment (including self-employment) hours will be calculated with the most recent four weeks of earnings and converted to a weekly amount.

6.8.2.5 If the pay frequency is in a manner other than a weekly basis, the following calculation will be applied to convert the hours to a weekly amount:

Pay Frequency	Calculation	
	Add hours for	Divide total hours by
Weekly	Most recent 4 pay periods/pay stubs	4
Bi-weekly (every other week)	Most recent 2 pay periods/pay stubs	4
Semi-monthly (twice a month)	Most recent 2 pay periods/pay stubs	4.3333
Monthly	No addition required – use monthly hours	4.3333

Note: For CAPS purposes, the pay frequency for self-employment is monthly.

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- 6.8.3 **Education** – Participation in middle or high school, adult education, vocational training, early childhood education credential or training courses, TCC, education or training through WorkSource Georgia, associate degree, and bachelor's degree programs qualifies as a state-approved activity, as described below.
- 6.8.3.1 **Middle or High School** – Enrollment and participation in middle or high school qualifies as a state-approved activity.
- A. Parents 20 years of age or younger enrolled in middle or high school have no additional activity requirement. If the parent is employed in addition to attending middle or high school, child care may be authorized to support both activities.
 - B. Parents 21 years of age or older enrolled in high school or a high school diploma program must supplement enrollment with other state-approved activities (such as employment) to meet the participation requirement of an average of at least 24 hours per week.
- 6.8.3.2 **Adult Education** – Enrollment and participation in an adult education program qualifies as a state-approved activity. These programs consist of High School Equivalency (HSE) courses which includes HiSET testing, General Equivalency Diploma (GED), and Career Plus HSE, Adult Basic Education (ABE), Adult Secondary Education (ASE), Integrated English Literacy and Civics Education (IELCE), and English as a Second Language (ESL).
- A. Parents 20 years of age or younger participating in an adult education program have no additional activity requirement.
 - B. Parents 21 years of age or older enrolled in an adult education program must participate an average of at least 24 hours per week. Parents with confirmed in-class instruction or online course hours may supplement adult education enrollment with other state-approved activities (such as employment) to meet the participation requirement of an average of at least 24 hours per week.
 - C. Parents 21 years of age or older enrolled in a self-paced (i.e., no confirmed instructional or online course hours) adult education or high school diploma program must supplement adult education and high school diploma enrollment with other state-approved activities (such as employment) to meet the participation requirement of an average of at least 24 hours per week.
- 6.8.3.3 **Vocational Training** – Enrollment and participation in vocational training programs (defined as educational programs that do not lead toward a college degree) qualifies as a state-approved activity. Vocational training may be completed through in-class instruction or online courses. Vocational training includes, but is not limited to, certificate and diploma programs. At DECAL's sole discretion, participation in vocational training programs at non-academic institutions may be considered for approval.
- 6.8.3.4 **Early Childhood Education** – Enrollment and participation in early childhood education credential or training courses, such as **Child Development Associate (CDA)**, qualify as a state-approved activity. The course work can be completed through in-class instruction or online courses.
- 6.8.3.5 **Technical Certificate of Credit (TCC)** – Enrollment and participation in a TCC program qualifies as a state-approved activity. TCC course work may be completed through in-class instruction or online courses.
- 6.8.3.6 **Technical College Diploma (TCD)** – Enrollment and participation in a TCD program qualifies as a state-approved activity. TCD course work may be completed through in-class instruction or online courses.
- 6.8.3.7 **Associate or Bachelor's Degree** – Enrollment and participation in an associate or bachelor's degree programs at an **Eligible Postsecondary Institution** as defined by the Georgia Student Finance Commission qualifies as a state-approved activity. (See [Appendix BB](#) for instructions on how to confirm an institution's eligibility status.) Associate and bachelor's degree programs may be completed through in-class instruction or online courses.
- 6.8.3.8 For adult education (with confirmed course hours), vocational training, early childhood education credential or training courses, TCC, education or training through WorkSource Georgia, associate degree, and bachelor's degree programs, each credit hour (or hour of online or in-person coursework) equates to two hours of state-approved activity to account for study time. If the overall number of credit hours for an

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education activity and the number of clock hours spent in the activity per week differ, then whichever number is greater will be used to calculate the number of state-approved activity hours. For example, eight clock hours per week of online or in-person education where six credit hours would be earned for the class(es), would equate to 16 hours of state-approved activity because the number of clock hours per week is greater than the total number of credit hours.

6.8.3.9 Education Verification

6.8.3.9.1 CAPS staff will verify education enrollment and participation with one or more of the following:

- Written verification of enrollment from the educational institution and current class schedule or approved DECAL trainer (CDA training only). The written verification must include, at a minimum:
 - The parent's name and enrollment date
 - The name of the institution, contact person, and contact information (phone and email)
 - If not included on the class schedule, the written statement must also include either the current or expected number of credit hours or the number of in-class or online hours per week.
- Completed Education Verification Form ([Appendix DD](#)) with sufficient information that would be required to make an eligibility determination.

6.8.4 Job Search – In limited situations, job search may be authorized as a state-approved activity.

6.8.4.1 **Parents** who permanently lose their job or permanently stop attending state-approved training or education programs may be authorized for up to 13 weeks of job search. Refer to the [CAPS Case Changes and Documentation Policy \(CAPS/00-13\)](#).

6.8.4.2 No verification is required for job search when it is authorized as a state-approved activity.

POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Clarified language in section 6.8 regarding required verification documents and hour requirements; added associate degree programs as a state-approved activity; and added job search, which is a state-approved activity in limited situations, to this section. Job search was previously only discussed in other sections of CAPS Policy.
10/01/2018	Revised the purpose statement to remove language related to funding restrictions.
05/15/2020	Added bachelor's degree programs as a state-approved activity.
10/01/2021	Revised language to clarify 'qualifying disability' to state a child 17 years of age or younger with a disability or developmental delay that impacts their learning can receive CAPS services. Revised language to note the parent(s) of the eligible child must participate in one or more approved activities at least 24 hours per week. Revised vocational training and associate or bachelor's degree program to clarify participation is when the parent(s) is enrolled and participating. The parent(s) activity hours will be based on their credit hours and not their enrollment status (i.e., full or part time).

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Date	Description of Change
05/01/2022	Added adult education, early childhood education credential or certification courses, TCC, TCD, and education or training through WorkSource Georgia programs as a state-approved activity. Clarified parents 20 years of age or younger enrolled in middle or high school do not have an additional activity requirement. Added language to state employment (including self-employment) hours will be calculated with the most recent four weeks of earnings and converted to a weekly amount. Revised language to state enrollment in an associates or bachelor's degree program must be at an Eligible Postsecondary Institution as defined by the Georgia Student Finance Commission.
07/01/2023	Revised language to clarify that other eligibility program system sources can also be used to verify residency, age, and identity. Added language to clarify that parents 20 years of age or younger not enrolled in middle school, high school, an education, or training program must participate in stated activity for an average of at least 24 hours per week. Added language to clarify that staff must verify state-approved activity hours for stated activity. Added language to clarify activity hours can also be verified using other eligibility program system sources when sufficient documentation is available.
07/01/2024	Revised language to change additional 90 calendar days to additional 45 calendar days to verify citizenship and immunization requirements. Revised language to remove job search authorization for the entire 12-month eligibility period as a state approved activity.
07/01/2025	Revised language to clarify statement from landlord or person with whom the applicant resides does not need to be notarized for families who meet eligibility for the families who lack fixed, regular, and adequate housing priority group. Revised language to clarify 45-day grace period guidance for citizenship and immunization requirements. Revised language to clarify how to determine state-approved activity hours for families participating in education or training when both credit hours and number of in-class or online hours are confirmed. Added language to clarify that written verification of enrollment must include current or expected or the number of in-class or online hours per week. Added language to clarify the Education Verification Form (Appendix DD) must be completed with sufficient information that would be required to make an eligibility determination.

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LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Income Calculations Policy (CAPS/00-8), CAPS Annual Redetermination Policy (CAPS/00-14)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

7 PRIORITY GROUPS

7.1 Purpose

The purpose of this policy is to establish guidelines for identifying priority groups and outlining exceptions to specified eligibility requirements, as applicable.

7.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

7.3 Priority Groups Overview

- 7.3.1 The Childcare and Parent Services (CAPS) program uses an eligibility model based on priority groups. Priority groups may be widened, narrowed, added, or removed based on available funding. Applications submitted for initial eligibility will be denied if the family does not meet eligibility for a priority group, even if other eligibility requirements are met.
 - 7.3.1.1 Applicants who are denied for not being in a priority group can appeal that decision only if they believe the determination was made in error.
 - 7.3.1.2 Priority group status is required at initial eligibility determination.
 - 7.3.1.3 Priority group status is not required at annual redetermination. However, families may need to provide supporting documentation to meet program eligibility at redetermination as prescribed in this policy.
 - 7.3.1.4 The following is a list of the priority groups (in alphabetical order):
 - **Child Protective Services (CPS)** and court-ordered supervision cases
 - Children in Georgia Division of Family and Children Services (DFCS) custody
 - Families experiencing domestic violence
 - Families of **children with disabilities**
 - Families of children enrolled in Georgia's Pre-K Program
 - Families participating in or transitioning from TANF
 - Families who have experienced a natural disaster
 - Families who lack fixed, regular, and adequate housing
 - Families with very low income as defined by CAPS
 - Grandparents Raising Grandchildren (GRG)
 - **Minor parents**
 - Need to protect
 - **Student parent**

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7.4 Child Protective Services (CPS) and court-ordered supervision cases

Description	Program Requirements	Eligibility Requirements	Payment Authorization
Children who receive a referral from Georgia Child Protective Services (CPS) for child care are considered a priority group for CAPS. This includes children with an active safety plan, an active family plan, or a court order requiring supervision for children 13 years of age or older. Children who need to receive protective services but are not formally involved with CPS may qualify for the Need to Protect priority group as prescribed in CAPS Policy 7.15.	- A referral from Georgia CPS is required. - In cases where a child has been placed in a caregiver's home by DFCS, that placement will, for CAPS purposes, supersede any biological or legal relationships or family unit structure.	Parents must: - Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - The state-approved activity requirement may be waived while the CPS case is open and through the eligibility period.	CAPS may pay through the end of the eligibility period of the child's 18th birthday if requested through court order for children in CPS cases.

7.5 Children in Georgia Division of Family and Children Services (DFCS) custody

Description	Program Requirements	Eligibility Requirements	Payment Authorization
Children in Georgia DFCS custody are considered a priority group. - There is no distinction in requirements based on where the child in DFCS custody is placed (e.g., relative, non-relative). - Each child will be counted as a family unit of one and will be considered as custodian and the recipient of services. - When there is a sibling group in DFCS custody, each child eligible for CAPS will have a separate CAPS case. - No family fee will be assessed for children in DFCS custody.	- A referral from DFCS Social Services stating need for child care services and verification that the child is in the custody of DFCS in Georgia are required. - Children who receive CAPS under this priority group who go home or to another permanent placement will continue to be eligible for CAPS for the remainder of the 12-month eligibility period so long as the family meets residency requirements and the family's gross applicable income does not exceed 85% of the state median income.	- Verification of the child's citizenship or qualified alien status as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Current immunization as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Because children in this priority group are considered a family unit of one, foster parents are not required to meet income or activity requirements.	- CAPS will reimburse up to the child care provider's published rate barring any discount or scholarship as applied to children not in DFCS custody. - CAPS will pay informal providers the CAPS maximum reimbursement rate based on the chart located in Appendix C and may approve a negotiated rate. - Refer to the CAPS Purchase of Child Care through Scholarships Policy (CAPS/00-10) for payment rates related to children in DFCS custody. - In addition to licensed or CAPS-eligible exempt programs, informal providers may be selected for children in DFCS custody, as prescribed in CAPS Participating Providers Policy (CAPS/00-11).

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7.6 Families experiencing domestic violence

Description	Program Requirements	Eligibility Requirements	45-day Grace Period
Families experiencing domestic violence are considered a priority group. For the purpose of this policy, domestic violence includes any violent crime that is alleged by the family against any past or present spouses, persons who are parents of the same child, parents and children, stepparents and stepchildren, foster parents and foster children, or other persons living or formerly living in the same household. This shall also include emotional, psychological, physical, or sexual abuse as attested to by the applicant or formally documented by a referral agency, law enforcement, or a court of competent jurisdiction.	Parents must: Provide verification from the Georgia Department of Human Services, report to TANF, police report, court documents, proof of domestic violence shelter residence, or other third-party documentation verifying the family has experienced domestic violence.	- Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).	When the program requirement documents have been submitted and confirmed, families may receive an additional 45 days from the date their application is processed to provide verification documents for the child's citizenship or qualified alien status, child's immunization (if applicable), activity, and income. The grace period for providing these verification documents will not postpone the eligibility determination. If verification is not immediately available for the eligibility requirements stated above, parents must verbally attest that all eligibility requirements are met. If verification of income is not immediately available, the family fee will be calculated based on the parent's verbal attestation of income. However, if verification documents are not received by the end of the 45-day grace period or if verification documents submitted by the parent do not meet all applicable eligibility requirements, the case will be determined ineligible for ongoing child care assistance due to a program violation.

7.7 Families of children with disabilities

Description	Program Requirements	Eligibility Requirements	Payment Authorization
Families of children with a disability that impacts the child's learning are considered a priority group. Disabilities that impact learning may include: - intellectual disabilities - hearing impairments (including deafness) - speech or language impairments	Acceptable verification may include any of the following: Written diagnosis and statement of how the child's learning is impacted from a licensed medical specialist	Parents must: Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).	- CAPS will reimburse up to the child care provider's published rate, less the applicable CAPS family fee, for children with disabilities. - CAPS may reimburse a negotiated rate, less the applicable CAPS family fee, for children with disabilities.

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Description	Program Requirements	Eligibility Requirements	Payment Authorization
- visual impairments (including blindness) - serious emotional disturbance - orthopedic impairments - autism - traumatic brain injury - specific learning disabilities - other health impairments that impact the child's learning - significant delays in physical, cognitive, communication, social, emotional, or adaptive development	- an Individualized Family Service Plan (Part C of IDEA) - an Individualized Education Program (Part B, section 619, of IDEA) - an Individual Accommodation Plan (Section 504) that indicates how the child's learning is impacted - a Medicaid waiver for persons with disabilities (Katie Beckett, NOW, or COMP) - proof of Supplemental Security Income for the child - a completed CAPS Child Learning Impact Assessment Form (Appendix KK)	Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).	- CAPS will pay informal providers the CAPS maximum reimbursement rate based on the chart located in Appendix C and may approve a negotiated rate. - Refer to the CAPS Purchase of Child Care through Scholarships Policy (CAPS/00-10) for payment rates related to children with disabilities. - CAPS funds may be used to support children with disabilities 17 years of age or younger at a licensed child care learning center or family child care learning home, a CAPS-eligible exempt program, or an informal provider enrolled with the CAPS program. - CAPS will include all children in the family unit who need child care when there is an eligible child with a disability. CAPS will reimburse up to the child care provider's published rate only for the child with a disability. Rates for the remaining children in the family unit will be based on the maximum reimbursement rate chart located in Appendix C.

7.8 Families of children enrolled in Georgia's Pre-K Program

Description	Program Requirements	Eligibility Requirements	Payment Authorization
Families of children enrolled in Georgia's Pre-K Program are considered a priority group for CAPS. CAPS receives funds from Georgia's Pre-K Program to provide before and after school care services to children who are enrolled in Georgia's Pre-K.	Acceptable verification may include any of the following: - Georgia's Pre-K status verified through the state's Pre-K database system - The completed CAPS Georgia's Pre-K Program Referral Form (Appendix S) if the status cannot be verified through the Pre-K database system.	Parents must: - Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity	- CAPS will only subsidize services for children enrolled in Georgia's Pre-K for times when the Pre-K classroom is not in session, such as school holidays or before and after school care. - CAPS will include all eligible children in the family unit who need child care when care is authorized for a child enrolled in Georgia's Pre-K.

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Description	Program Requirements	Eligibility Requirements	Payment Authorization
		requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6) .	

7.9 Families participating in or transitioning from TANF

Description	Program Requirements	Eligibility Requirements
Families participating in or transitioning from TANF who receive a referral from TANF for child care are considered a priority group. For this policy, families participating in TANF includes: - Families who have completed TANF orientation, been determined income-eligible for TANF, and have been referred for employment services; and - Families who are currently receiving TANF and participating in employment services. For this policy, families transitioning from TANF is limited to those who have transitioned from TANF within the previous 60 calendar days due to employment. Families who receive TANF but do not participate in TANF employment or support services (i.e., TANF Payees) are not eligible under this priority group.	- A referral from TANF (Appendix FF) and work plan are required. - TANF and parents are required to inform CAPS within 10 calendar days if the parent is no longer participating in employment or support services. - Parents who transition from TANF due to employment that is less than 24 hours per week will be considered to meet CAPS state-approved activity for the remainder of their eligibility period and at their next annual redetermination. However, at that redetermination, hours may not decrease further than the amount that was initially approved if less than 24 hours (see detailed example below¹). - Parents who cease to participate in TANF employment or support services for reasons other than employment will be required to meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Parents who cease to participate in TANF employment or support services for reasons other than employment and do not meet state-approved activity requirements will be approved for subsidy assistance for an additional 13 weeks for job search as prescribed in CAPS Case Changes and Documentation Policy (CAPS/00-13).	Parents must: - Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Be in compliance with all TANF program requirements or meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).

¹ For example, if a family transitions from TANF because the parent has employment of 20 hours per week, the 20 hours of employment will satisfy the CAPS activity requirement, but the parent must maintain at least the same number of hours—in this case, 20 hours—in order to continue to satisfy the activity requirement at their first redetermination after transitioning from TANF. A drop from 20 to 19 hours will not meet the activity requirement at their first redetermination after transitioning from TANF.

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7.10 Families who have experienced a natural disaster

Description	Program Requirements	Eligibility Requirements	45-day Grace Period
Families who have experienced and been negatively impacted by a federal or state declared natural disaster within the previous 24 months are considered a priority group. The family's county of residence must have been identified by government officials as an area included in the state or federal disaster area.	Parents must: Provide verification of residency in the designated area during the time of the declared natural disaster. Designated areas for federal and state declared natural disasters can be verified by the Federal Emergency Management Agency at www.FEMA.gov/disaster.	- Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).	When the program requirements have been confirmed, families may receive an additional 45 days from the date their application is processed to provide verification documents for the child's citizenship or qualified alien status, child's immunization (if applicable), activity, and income. The grace period for providing these verification documents will not postpone the eligibility determination. If verification is not immediately available for the eligibility requirements stated above, parents must verbally attest that all eligibility requirements are met. If verification of income is not immediately available, the family fee will be calculated based on the parent's verbal attestation of income. However, if verification documents are not received by the end of the 45-day grace period or if verification documents submitted by the parent do not meet all applicable eligibility requirements, the case will be determined ineligible for ongoing child care assistance due to a program violation.

7.11 Families who lack fixed, regular, and adequate housing

Description	Program Requirements	Eligibility Requirements	45-day Grace Period
Families who meet the McKinney-Vento definition of homelessness are considered a priority group. The McKinney-Vento Act defines homeless children as "individuals who lack a fixed, regular, and adequate nighttime residence." This includes: Families sharing housing due to loss of housing, economic hardship, or a similar reason	Family must meet Georgia residency requirement. Residency can be verified with a letter from the homeowner or lease holder (does not need to be notarized), an emergency shelter, or an agency that provides homeless assistance programs in Georgia. This will also be used to verify homeless status. A written attestation from the parent that they lack a fixed, regular, and adequate nighttime	- Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8).	When the program requirements have been confirmed, families may receive an additional 45 days from the date their application is processed to provide verification documents for the child's citizenship or qualified alien status, child's immunization (if applicable), activity, and income. The grace period for providing verification will not postpone the eligibility determination.

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Description	Program Requirements	Eligibility Requirements	45-day Grace Period
- Families living in motels, hotels, trailer parks, or campgrounds due to lack of alternative accommodations - Families living in emergency or transitional shelters - Families whose primary nighttime residence is not ordinarily used as a regular sleeping accommodation (e.g., park benches) - Families living in cars, parks, public spaces, abandoned buildings, substandard housing, or bus or train stations - Migratory children living in circumstances described in the above situations	residence may be accepted if no other documentation is available.	Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).	If verification is not immediately available for the eligibility requirements stated above, parents must verbally attest that all eligibility requirements are met. If verification of income is not immediately available, the family fee will be calculated based on the parent's verbal attestation of income. However, if verification documents are not received by the end of the 45-day grace period or if verification documents submitted by the parent do not meet all applicable eligibility requirements, the case will be determined ineligible for ongoing child care assistance due to a program violation.

7.12 Families with very low income

Description	Eligibility Requirements
Families with no income or very low income as defined by CAPS are considered a priority group.	Parents must: - Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - The family's gross applicable income must be at or below the very low income threshold defined in Appendix A.

7.13 Grandparents Raising Grandchildren (GRG)

Description	Eligibility Requirements
Parents participating in the Division of Family and Children Services's (DFCS) Grandparents Raising Grandchildren (GRG) program are considered a priority group. DFCS GRG program requirements are available on the DFCS website.	- Parents must: - Provide verification of Georgia residency and identity. - Provide verification of child citizenship or qualified alien status and current immunization. - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Provide verification of participation in the DFCS GRG program. Note: Because the DFCS GRG program is limited to those who meet an age or

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Description	Eligibility Requirements
	disability status, parents participating in the DFCS GRG program are not required to meet CAPS state-approved activity requirements.

7.14 Minor parents

Description	Eligibility Requirements
Minor parents (20 years of age or younger) are considered a priority group and may receive child care in support of education or work activities.	- At least one parent must be 20 years of age or younger. - Parents must: - Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in CAPS Income Calculations Policy (CAPS/00-8). - Minor parents enrolled in middle school, high school, adult education, early childhood education credential or training courses, vocational training, Technical Certificate of Credit (TCC), Technical College Diploma (TCD), education or training through WorkSource Georgia, associate degree, or bachelor's degree program have no additional activity requirement. Minor parents who are not enrolled in middle school, high school, an education or training program must meet the 24 hour per week requirement, as prescribed in the CAPS Eligibility Requirements Policy (CAPS/00-6).

7.15 Need to Protect

Description	Program Requirements	Eligibility Requirements
CAPS services may be provided for a child who needs to receive protective services but is not formally involved with Child Protective Services (CPS). CAPS Management approval is required to determine if a case qualifies for this priority group. Situations that may qualify for a need to protect include, but are not limited to: - grandparents, relatives, and other caregivers (excluding biological or adoptive parents) who have taken over full-time care of a child (due to abuse, neglect, or abandonment) that is not in DFCS custody - Families who had a substantiated CPS case that closed within the last 12 months - Families of children involved in the Juvenile Justice system	Acceptable verification includes: - A completed Statement of Guardianship (Appendix EE) is required for grandparents, relatives, and other caregivers raising children who are not in DFCS custody. - Referral from a community service program. - Copy of a case plan or verification from DFCS for families who had a substantiated CPS case that closed within the last 12 months. - Other documentation verifying need to protect.	Parents must: - Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).

7.16 Student Parent

Description	Program Requirements	Eligibility Requirements
Parent with dependent children enrolled in high school, adult education, vocational training , early childhood education credential or training courses, technical certificate of credit (TCC) , technical	Parents 20 years of age or younger participating in middle or high school, adult education, early childhood education credential or training courses, vocational training, TCC,	Parents must: Meet non-financial eligibility requirements (Georgia residency, child citizenship or qualified alien status, immunization, and identity) as

CAPS Policy – Priority Groups	No.: CAPS/00-7	Effective Date: 10/01/2016
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Description	Program Requirements	Eligibility Requirements
college diploma (TCD), education or training through WorkSource Georgia, associate degree, or bachelor's degree program. Enrollment in an associate or bachelor's degree program must be at an Eligible Postsecondary Institution as defined by the Georgia Student Finance Commission. (See Appendix BB for instructions on how to confirm an institution's eligibility.) Adult education programs consist of: - High School Equivalency (HSE) programs that provide instruction below the postsecondary level, such as: General Equivalency Diploma (GED), HiSET Exam, and Career Plus HSE Adult Basic Education (ABE) Adult Secondary Education (ASE) English as a Second Language (ESL) Integrated English Literacy and Civics Education (IELCE) Early childhood education credential and training courses consist of: - Child Development Associate (CDA)	TCD, education or training through WorkSource Georgia, associate degree, or bachelor's degree program have no additional activity requirement. - Parents 21 years of age or older enrolled in high school diploma, adult education, early childhood education credential or training courses, vocational training, TCC, TCD, education or training through WorkSource Georgia, associate degree, or bachelor's degree program must meet the 24-hour per week activity requirement. Parents with confirmed in-class instruction or online course hours may supplement enrollment in an educational program with other state-approved activities (such as employment) to meet the 24-hour requirement. - Parents 21 years of age or older enrolled in a self-paced adult education program or high school diploma or with no confirmed in-class instruction or online course hours will be granted six credit hours, which equates to 12 hours per week to account for coursework and study time. Parents must supplement adult education and high school diploma enrollment with other state-approved activities (such as employment) to meet the 24-hour requirement.	prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6). - Meet CAPS income guidelines as prescribed in the CAPS Income Calculations Policy (CAPS/00-8). - Meet CAPS state-approved activity requirements as prescribed in CAPS Eligibility Requirements Policy (CAPS/00-6).

POLICY REVISION HISTORY

Date	Description of Change
05/30/2018	Revised section 7.8 noting that the income threshold for the families with very low income priority group is defined in Appendix A. Previously, the income threshold was defined in CAPS policy.
07/02/2018	Revised language to reflect expanded definition of children with special needs and added attestations as acceptable verification for families experiencing domestic violence or homelessness. Clarified in sections 7.11 and 7.12 that job search and job search related activities may be approved at initial eligibility and for the entire 12-month eligibility period for those priority groups. Revised language in section 7.14.1.1 noting that eligible families' gross applicable income cannot exceed 85% SMI.

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		Revised:	03/02/2026
		Revision Effective:	03/02/2026

Date	Description of Change
10/01/2018	Revised language to clarify that appeal rights are afforded in certain situations; clarified that priority group is only required at initial application; established a new priority group for children in need of protective services who are not formally involved with CPS (this population was previously served under the CPS priority group); renamed the priority group for families experiencing homelessness to families who lack fixed, regular, and adequate housing; renamed the priority group for children with special needs to families of children with disabilities; renamed and simplified the priority group for families participating in or transitioning from TANF; added a 90-day grace period to submit verification documentation for families experiencing domestic violence, families who have experienced a natural disaster, and families who lack fixed, regular, and adequate housing; clarified that families experiencing domestic violence and families who have experienced a natural disaster must meet state-approved activity requirements at annual redetermination.
07/01/2019	Revised language to remove written or verbal attestations as acceptable verification of domestic violence and renamed the heading “Payment Authorization” to “90-Day Grace Period” in sections 7.6, 7.10, and 7.11 to more accurately reflect the policy guidance in those sections.
05/01/2022	Revised language to clarify if a family identifies with one of CAPS priority groups at redetermination, they may have to provide supporting documentation to support program eligibility. Added Student Parent as a priority group. Revised families experiencing domestic violence language to state when the violent crime is alleged by the family. Revised language for families experiencing domestic violence, families who have experienced a natural disaster, and families who lack fixed, regular, and adequate housing to clarify program and eligibility requirements and when an attestation statement can be accepted for certain eligibility requirements.
11/15/2023	Revised language to clarify CAPS will pay informal providers the CAPS maximum reimbursement rate and may approve a negotiated rate for children in DFCS custody and children with disabilities. Revised language to add CAPS may reimburse a negotiated rate, less the applicable CAPS family fee, for children with disabilities.
04/01/2024	Revised language to clarify reason for case closure when the 90-day grace period is granted for families experiencing domestic violence, families who have experienced a natural disaster, and families who lack fixed, regular, and adequate housing priority groups. Revised language to add the state’s Pre-K database system as acceptable verification for the families of children enrolled in Georgia’s Pre-K Program priority group.
07/01/2024	Revised language to add priority group status requirements at annual redetermination for families enrolled in Georgia’s Pre-K program priority group. Revised language to remove job search and job search related activities for families experiencing domestic violence, families who have experienced a natural disaster, and families who lack fixed, regular, and adequate housing priority groups. Revised language to add that these priority groups must meet CAPS state-approved activity requirements. Revised language to update when the program requirements have been confirmed, families may receive up to an additional 45 days from the date their application is processed to provide verification documents for the child’s citizenship or qualified alien status, child’s immunization (if applicable), activity, and income for families experiencing domestic violence, families who have experienced a natural disaster, and families who lack fixed, regular, and adequate housing priority groups. Revised language to remove verbal attestation under Program Requirements for families who lack fixed, adequate housing priority group.
03/01/2025	Revised language to remove “12-month” from eligibility period for the Child Protective Services (CPS) and court-ordered supervision cases priority group.
07/01/2025	Revised language to clarify reasons for case closure when the 45-day grace period is granted for families experiencing domestic violence, families who have experienced a natural disaster, and families who lack fixed, regular, and adequate housing priority groups. Revised language to clarify Program Requirements for families experiencing domestic violence and families of children with disabilities priority groups.
10/06/2025	Revised language to remove priority group status requirements at annual redetermination for families enrolled in Georgia’s Pre-K program priority group.

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Date	Description of Change
03/02/2026	Revised language to add CAPS Child Learning Impact Assessment Form as acceptable verification source for families of children with disabilities priority group.

CAPS Policy – Income Calculations	No.: CAPS/00-8	Effective Date: 10/01/2016
		Revised: 10/06/2025
		Revision Effective: 10/06/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99

Cross Reference/See Also: CAPS Family Unit Policy (CAPS/00-5), CAPS Eligibility Requirements Policy (CAPS/00-6)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

8 INCOME CALCULATIONS

8.1 Purpose

Child care services are provided to families who meet eligibility criteria which include income guidelines. The purpose of this policy is to provide guidelines for (1) determining the types of applicable and non-applicable income, (2) obtaining validation of income, and (3) calculating household **wages** to ensure families meet the income requirements to participate in the **Childcare and Parent Services (CAPS)** program.

8.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)** all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

8.3 Gross Income

The family's **gross applicable income** must meet income guidelines to participate in the CAPS program.

- 8.3.1 When a family is initially approved for CAPS services, the gross applicable income of the family unit must be equal to or less than the current State Median Income (SMI) for initial eligibility as defined by CAPS. Refer to the CAPS Maximum Income Limits Chart ([Appendix A](#)).
- 8.3.2 During the eligibility period, if the family's **gross applicable income** increases but remains at or below the maximum allowable federal limit of 85% SMI, the family will remain in the program with no impact to eligibility or family fee until redetermination.
- 8.3.3 At redetermination, if a family's gross applicable income increases but remains at or below the maximum allowable federal limit of 85% SMI, the family will continue to be eligible for the program. The family fee will be calculated at redetermination based on the family's most recent gross applicable income.
- 8.3.4 If at any point during the eligibility period the family's **gross applicable income** exceeds 85% of the current SMI for a period of four or more consecutive weeks, the family is no longer eligible for CAPS. The family must be notified at least 14 calendar days prior to case closure, which is referred to as the **adverse action period**. Since this is a change in policy that affects entire populations, the closure of the CAPS case is not appealable. Refer to the CAPS Maximum Income Limits Chart ([Appendix A](#)).
- 8.3.5 Failure to provide verification of income for a family unit may result in a delay in processing or **denial** of the **application**.

8.4 Applicable Income

- 8.4.1 Income received by all adults in the family unit that is counted towards the maximum allowable income limit includes, but is not limited to:
 - **Wages or Salary** – gross income of all the adults (those 18 years of age and older) in the family unit. Refer to the [CAPS Family Unit Policy \(CAPS/00-5\)](#) for more information about the family unit.
 - Base pay for military personnel
 - **Net income from self-employment**
 - **Unemployment Compensation**

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- **Worker’s Compensation**
- **Alimony** (regular and ongoing payments)
- Court-Ordered and Direct **Child support** Payments (when regular and ongoing payments are received)
- **Veteran’s benefits**
- **Military allotments**
- **Capital gains**
- **Rental income** (regular and ongoing payments)
- **Dividends** (regular and ongoing payments)
- **Retirement/Pension**
- Commission
- Cash Bonuses
- **Regular or lump sum lottery payments**

Note: Gross income includes all income prior to any deductions, including but not limited to, taxes, insurance, retirement, pensions, garnishments, Social Security payments, etc.

8.4.2 The following types of income are not counted when calculating gross income to determine eligibility: **Temporary Assistance for Needy Families (TANF)** cash assistance, disability/survivors and SSI benefits received by the Social Security Administration, adoption supplements, Low Income Housing and Energy Assistance Program (LIHEAP), Census Bureau income, in-kind donations, tax refunds, cash gifts, Disaster Relief Assistance relative care subsidy, Guaranteed Basic Income (GBI), Universal Basic Income (UBI), AmeriCorps unearned income, and stipends issued by DECAL. Documentation and verification of the actual amounts, however, may be maintained in the case record for reporting purposes.

8.4.3 Income from a child 17 years of age or younger is excluded.

8.5 Self-Employment Income

8.5.1 Parents are considered self-employed if they operate a business or trade as a sole proprietor, independent contractor, partner in a business partnership, or are otherwise in business for themselves, including part-time or gig-based work.

8.5.1.1 Allowable expenses must be verified and considered when determining eligibility for the CAPS program for parents who are self-employed. Allowable expenses can be found in **Net Income from Self-Employment (Farm) and Net Income from Self-Employment (Non-Farm)** as defined in [Definitions and Acronyms](#).

8.5.1.2 The following expenses are disallowed and should not be considered when determining eligibility for the CAPS program for parents who are self-employed:

- Monies set aside for pensions and profit sharing plans
- Federal, state and local income taxes paid for employees
- Net losses from previous years
- Mileage rate on vehicles and other travel costs not related to **self-employment**
- Premiums paid for health/medical insurance
- Payments on the principal of the purchase price of income producing real estate and capital assets, equipment, machinery, and other durable goods
- Personal expenses paid out of business accounts

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8.6 Earned Income Verification

8.6.1 CAPS staff will verify earned income (wages) with one or more of the following:

- Pay stubs or receipts for the most recent four weeks of earnings
- Most recent 1099 form
- Most recent W-2 Forms
- Employer's wage records
- Quarterly income tax payment receipts to the IRS (for cash paying jobs or self-employment only)
- Annual income tax returns when presented in the January-March quarter (for cash paying jobs or self-employment only)
- Letter/statement from employer
 - The letter/statement should be signed and dated on an employer letterhead and include contact information for the employer (phone number, title and relationship to employee), expected/current hire date, number of hours the employee is scheduled/works, and hourly rate of pay (and/or gross salary).
- Documentation from other state eligibility programs dated within six months of the CAPS application
- CAPS [Employment Verification \(Appendix F\)](#) or itemized statement completed by the employer
- Military Leave Earning Statement (LES) – this is the only acceptable form of verification for a member of the military
- CAPS [Self-employment Report \(Appendix CC\)](#)
- Business ledgers
- Business receipts
- Previous year tax form if submitting before April 15
- Current tax form if submitting after April 15

Note: The above list is not an all-inclusive list and families have the right to submit other forms of verification/documentation that must be credible to determine income eligibility. Income can also be verified using other eligibility program system sources whenever possible.

8.7 Unearned Income Verification

8.7.1 CAPS staff will verify unearned income with one or more of the following:

- Check stubs
- Award letters
- **Social Security** records
- Worker's compensation records
- Union records
- Unemployment insurance claim records
- Documentation from other state eligibility programs dated within six months of the CAPS application
- Child support system information dated within six months of the CAPS application
- Court documents

Note: The above list is not an all-inclusive list and families have the right to submit other credible forms of verification/documentation to determine income eligibility. Income can also be verified using other eligibility program system sources whenever possible.

8.8 Calculations

8.8.1 Income will be calculated using the average amount received over the 12-month eligibility period.

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8.8.2 CAPS will review all earned and unearned income of adults in the family unit received within the four weeks prior to determination. The review will be based on the first valid verification documents submitted by the parent, provided the documents accurately reflect the family's current income. If income is received on a quarterly or annual basis, CAPS will review the most recent statement of earnings.

8.8.3 Income received in a manner other than a monthly basis must be converted to a monthly income. The following guide will be used:

How Often Paid	Calculation
Weekly	Multiply by 4.3333
Bi-weekly (every other week)	Multiply by 2.1666
Semi-monthly (twice a month)	Multiply the amount by 2

8.8.4 The monthly amount will then be converted to an annual amount by multiplying the monthly income by 12. Once calculated, the family's **gross applicable income** is compared to the maximum allowable income chart ([Appendix A](#)).

8.8.5 The family meets the CAPS income eligibility requirements if the **gross applicable income** does not exceed the **maximum income** for the size of the family unit. If the family's **gross applicable income** exceeds the **maximum limit**, the application may be denied.

8.8.6 The following table describes the differences between **regular** and **irregular income**:

Type	Description	Calculating Income
Regular	A consistent pattern of pay for six consecutive months of earnings.	A. CAPS will review the most current four weeks of pay to determine if pattern of pay is consistent. If consistent, the average of the current four weeks can be used to determine regular income. If inconsistent, CAPS will review pay for the previous six months to determine consistency. B. If the most recent pay periods include inconsistent income, that make the income non-representative of the parent's normal earnings, those pay periods may be disregarded, especially when pay or hours are inconsistent. The remaining pay periods that are representative can be used to calculate an average of the parent's monthly income. C. If none of the recent pay periods are a representation of the parent's normal earnings, an average pay calculation should be used to determine gross income. CAPS staff will review up to six previous months of pay to determine average pay.
Irregular	Periodic fluctuations where earnings or payments may not reflect an accurate projected annual income when determining eligibility based upon the previous four weeks of income.	A. When the parent's income varies too much to accurately project, CAPS staff should calculate the average of all the pay stubs from the past six months. This average would be used for the parent's income. B. To obtain the average pay, add all earnings for the past six months and divide by the total number of pay periods within that six-month timeframe. C. To obtain average monthly amount, multiply average income by the appropriate pay frequency. D. The monthly amount will then be converted to an annual amount by multiplying the monthly income by 12. E. Once calculated, the family's gross income is compared to the maximum allowable income chart (Appendix A). F. The family meets the CAPS income eligibility requirements if the income is less than or equal to the maximum income for the size of the

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Type	Description	Calculating Income
		family unit. If the family's income exceeds the maximum limit, the application may be denied.

8.9 Declaration of Assets

- 8.9.1 As part of a family's enrollment into the CAPS program, the parent must self-certify that the family unit assets do not exceed \$1,000,000. When it has been identified that a family's assets exceed \$1,000,000, the case must be closed. Children in the custody of the Georgia Division of Family and Children Services (DFCS) are exempt from certifying that family assets do not exceed \$1,000,000.
- 8.9.2 The certification must be maintained in the case record as a part of the application process. A copy of the Family Asset Form 602 can be found in Appendix Z.
- 8.9.3 If a family fails to complete the certification, the application will be denied. CAPS reserves the right to verify the validity of the self-certification of assets by the parent at any time through any legal means necessary.

POLICY REVISION HISTORY

Date	Description of Change
03/26/2018	Removed reference to Graduated Phase-out and income limits in section 8.3.
07/02/2018	Revised to note that children in DFCS custody are exempt from certifying that assets do not exceed \$1,000,000.
10/01/2019	Revised language to note that CAPS will provide 14 days' notice of adverse actions.
09/01/2024	Revised language to note when a family is initially approved for CAPS services, the gross applicable income of the family unit must be equal to or less than the current State Median Income (SMI) for initial eligibility as defined by CAPS.
10/06/2025	Revised language to add Guaranteed Basic Income (GBI), Universal Basic Income (UBI), AmeriCorps unearned income, and stipends issued by DECAL as not countable income. Renamed "Disallowed Expenses for Self-Employment" section to "Self-Employment Income". Added language on allowable expenses for self-employment income and clarified language on disallowable expenses for self-employment income. Revised language to add guidance for earned and unearned income verification. Revised language to clarify timeframes for when CAPS will review all income (earned and unearned) of adults in the family unit. Revised language to add guidance for regular and irregular income.

CAPS Policy – Family Fees	No.: CAPS/00-9	Effective Date:	10/01/2016
		Revised:	10/06/2025
		Revision Effective:	10/06/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99

Cross Reference/See Also: CAPS Application Process Policy (CAPS/00-4), CAPS Family Unit Policy (CAPS/00-5), CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Annual Redetermination Policy (CAPS/00-14)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

9 FAMILY FEES

9.1 Purpose

Families who are **eligible** for child care services may be required to pay a portion of the cost of child care through **family assessed fees**. The purpose of this policy is to provide guidelines for determining who must pay a family fee, how fees are assessed, and the special circumstances that may affect family fees.

9.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the **Childcare and Parent Services (CAPS)** program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

9.3 Family Fee Overview

- 9.3.1 The CAPS program assesses family fees to allow families to share in the cost of their child care expenses. Family fees are based on a percentage of a family's annual gross applicable income. The assessed fee is a family fee for all children in care, not a fee for each child. It is paid by the parent directly to the child care provider.
- 9.3.2 Family fees are calculated at the time of initial eligibility, at redetermination, and when a change is reported to family size, income, or number of children in care. The fee may be reduced but will not increase during the **eligibility period**. Therefore, the parent is encouraged to report changes in the family's income and number of people residing in the family unit. The fee can increase, however, at redetermination, depending on family size and income.

9.4 When Family Fees Are Assessed

- 9.4.1 Family fees are assessed for CAPS services:
 - At initial **application**
 - At redetermination
 - When there is a change in the family size, the family's income, or the number of children in care
- 9.4.2 Eligibility system functionality automatically assesses the family fee (refer to the Family Fee Assessment Chart – [Appendix D](#)).
- 9.4.3 If there are multiple children with child care scholarships in the family unit, the family fee will be distributed among the scholarships.
- 9.4.4 If there are multiple child care scholarships during the same service week for the same child, the family fee will be applied on all active scholarships, except **part time scholarships**.

9.5 When Family Fees Are Not Assessed

- 9.5.1 Family fees are not assessed for child care services when one of the following applies:
 - Children who are in Georgia's Division of Family and Children Services (DFCS) custody

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- A parent who is 17 years of age or younger
- The family's gross applicable income is at or below 10% of the poverty guidelines, as prescribed in [Appendix D](#).

9.6 Policy Related to CAPS Assessed Family Fees

CAPS staff must explain the following to the parent:

- 9.6.1 CAPS will pay the lesser amount between the CAPS maximum reimbursement rate, based on the child's age, scholarship type, and the location where care is provided, and the provider's **published rate**. CAPS will deduct the assessed family fee from the total weekly amount to be reimbursed.
- 9.6.2 The parent is responsible for paying the family fee to the child care provider as long as any child is receiving care through CAPS subsidies.
- 9.6.3 If the family fee exceeds the allowable state reimbursement rate for all children in care, CAPS staff will deny the application because the family's responsibility exceeds the allowable benefit.

POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Revised policy to note that if there are multiple children with child care scholarships, the family fee will be evenly distributed among the scholarships and added a 15% discount to the family fee for scholarships at Quality Rated child care providers effective July 30, 2018.
10/01/2018	Clarified language regarding when family fees are assessed and recalculated. Added that families with income below 10% of the poverty guidelines are not assessed a family fee. Removed TANF applicants and recipients from the list of those who are not assessed a family fee.
02/01/2019	Revised section 9.6.3 to reference to the allowable state reimbursement rate instead of the cost of care.
04/01/2024	Revised language to clarify a 15% discount to the family fee is applied to scholarships at Quality Rated child care providers with a one-, two-, or three-star rating.
10/01/2024	Revised language to clarify when the 15% discount to the family fee is applied to scholarships at Quality Rated child care providers with a one-, two-, or three-star rating. Revised language to note if there are multiple children with child care scholarships, the family fee will be distributed among the scholarships.
03/01/2025	Revised language to remove "12-month" from eligibility period.
10/06/2025	Removed language regarding 15% Quality rated discount to family fees. Added language to clarify that the family fee will be applied to all scholarships if there are multiple child care scholarships during the same service week for the same child.

CAPS Policy – Purchase of Child Care Through Scholarships	No.: CAPS/00-10	Effective Date:	10/01/2016
		Revised:	10/06/2025
		Revision Effective:	10/06/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99

Cross Reference/See Also: CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Family Fee Policy (CAPS/00-9), CAPS Participating Providers Policy (CAPS/00-11)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

10 PURCHASE OF CHILD CARE THROUGH SCHOLARSHIPS

10.1 Purpose

Although Georgia's subsidized child care program primarily uses scholarships to authorize child care services, the state may use other systems to administer subsidies such as contracts or grants with child care providers, including **Early Head Start – Child Care Partnerships**. The purpose of this policy is to establish guidelines for authorizing child care subsidy funds through scholarships.

10.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the **Childcare and Parent Services (CAPS)** program, parents, and child care providers who receive subsidies administered by DECAL on behalf of parents.

10.3 Changes in Funding or Eligibility

- 10.3.1 In the event that a program funded through a DECAL grant involving CAPS or other federal funds for the care of children terminates before the last day of any child's approved **eligibility period**, that child may continue to receive CAPS services through the use of scholarships, for the remainder of that approved eligibility period, so long as CAPS funds are available.
- 10.3.2 In the event that a child becomes ineligible to participate in such a grant funded program due to age restrictions during the approved eligibility period, that child may continue to receive CAPS services through the use of scholarships, for the remainder of that approved eligibility period, so long as CAPS funds are available.

10.4 Parental Choice

- 10.4.1 The parent has the right to choose any eligible child care provider within the limits prescribed in [CAPS Participating Provider Policy \(CAPS/00-11\)](#) and [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#).
- 10.4.2 The parent has the right to enroll their **school age** child in any educational program of their choice that is actively participating or eligible to participate in CAPS. For CAPS purposes, a child that turns 5 years old by September 1 of the current school year, enrolled in and attending Georgia's Pre-K and **Head Start** are considered school age. The school age child who is 5 years old by September 1 is eligible to attend public school. Therefore, CAPS will only pay on a **before and after school scholarship** while school is in session.
- 10.4.3 When the parent is determined eligible for CAPS subsidies, the following topics are important for a parent to consider when selecting a child care provider:
 - Children's social, emotional and developmental considerations
 - Health and safety standards
 - Hours of operation
 - Monitoring visits and complaint history
 - Out of pocket cost for the parent (additional fees, budgeting)
 - Participation in the Child and Adult Care Food and Summer Food Service Programs
 - Participation in Georgia's Pre-K Program
 - Participation in the Georgia's **Quality Rated** system (where available)

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- School readiness
- Transportation

10.5 Child Care Scholarships

10.5.1 A CAPS scholarship will be issued for an individual child for a specific child care provider location.

10.5.1.1 The scholarship will not be transferrable to other children or to another facility, even if the facility is owned or operated by the same organization.

10.5.1.2 Scholarships are not transferrable if the provider moves from one location to another. In the cases of address changes, ownership changes, and facility name changes, new scholarships must be issued for the new location or owner.

10.5.2 The scholarship must be created for each child based on the needs of the family and child.

10.5.2.1 A copy of the **child care scholarship** (notification of eligibility determination) will be provided to the parent and provider.

10.5.2.2 A scholarship should be issued for each type of care the family will need. Therefore, a child may have more than one scholarship based on the type of care authorized.

10.5.2.3 DECAL may issue a before and after school scholarship for a child who is enrolled and attending either Georgia's Pre-K program or Head Start even if the child's enrollment and attendance cannot be verified by Georgia's Pre-K or Head Start.

10.5.2.4 A scholarship may not be issued to a CAPS participating provider if it is determined they are at their license or license-exempt capacity.

10.5.2.5 The existence of a scholarship does not give an automatic right for a provider to invoice or bill for a specific period. The child must be attending and signed-in and signed-out each day the child is present, at arrival and departure, by a parent or **authorized representative**.

10.5.2.6 If a provider is not selected at determination of eligibility, the family can receive 45 calendar days to select a provider as prescribed in [CAPS Application Process Policy \(CAPS/00-4\)](#).

10.5.3 The child care scholarship:

- Authorizes subsidies for eligible children
- Covers basic information about the child care provider
- Identifies the amount of subsidy paid to the child care provider by the CAPS program
- Identifies the amount that the parent is required to contribute to the cost of care (including the weekly **family assessed fee** and amount in excess of the state reimbursement rate based on the child care provider's charges)
- Identifies the type of child care authorized based on the child's need for care
- Identifies the parent and the child authorized to receive services
- Includes beginning and ending dates of care for which payment is authorized
- Outlines terms and conditions of the child care arrangement

10.5.4 When a family is determined **eligible** for the CAPS program, a 12-month eligibility period begins. The **child care scholarship** authorizes the use of subsidies during the eligibility period. At the end of the approved eligibility period, CAPS staff will re-determine eligibility and issue new scholarships for ongoing services to eligible children.

Note: When a parent begins receiving services or initiates a change in providers and there is not a child care scholarship that authorizes subsidies with the new provider, the parent is responsible for the full cost of the child care. CAPS will not pay for services retroactively for any period prior to authorization.

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10.6 Types of Scholarships Authorized by CAPS

Type	Description
Full Time Scholarship	A. Scholarships authorized for child care services needed for three or more days within a service week, from Monday to Sunday. B. Full time scholarships can be authorized for day or night child care, depending on the needs of the family. C. Full time scholarships are typically authorized and paid to cover a full week of service.
Before and After School Scholarship	A. Scholarships authorized for child care services needed for school age children for before and/or after the customary school day. B. Before and after school scholarships are authorized for school age children (including children enrolled in and attending Georgia's Pre-K Program and Head Start) and based on rates for providing care for a full week of services before and/or after the customary school day. C. Before and after school scholarships are authorized for school age children who are at least five years old by the first of September of the current school year and who are eligible to attend public school and who are 12 years of age or younger (17 years of age or younger for children with a disability or developmental delay that impacts their learning or part of court-ordered supervision).
Variable Schedule Scholarship (VSS)	A. VSSs are authorized for school age children who attend the same child care provider throughout the school year including school holidays and summer breaks. B. A VSS allows for payments to fluctuate between the before and after school rate while the child is in school, the full-time rate while the child is out of school for full-time service weeks, and part-time rates when care is needed for a full day, up to two days per week, during the school year to cover occasional days out of school such as teacher work days, virtual learning days as scheduled by the child's school district, inclement weather school closings, or holidays.
Part Time Scholarship	A. Scholarships authorized for children who need child care for one or two days within a service week, from Monday to Sunday. B. Part-time scholarships can be authorized when child care is needed sporadically throughout the eligibility period. For example, a school age child may not need routine before and after school care but needs care for a full day (part time care) or a full week (full time care) for school holidays, winter/spring breaks, teacher work days, or virtual learning days as scheduled by the child's school district. C. A part-time care scholarship can be issued in instances where child care is needed (based on a parent's work schedule) one or two weekends per month. D. Part-time care is not expected to be the traditionally scheduled care a child needs but as needed based on the child's or parent's need for services. If care is needed for more than 2 days in a service week, then a full time scholarship must be authorized.

10.7 State Maximum Reimbursement Rates and Payment Rates

- 10.7.1 CAPS has established a state maximum rate to reimburse providers based upon the location where care is provided, the type of child care provider selected, the age of the child, and the type of care being provided. For current reimbursement rates, please refer to [CAPS Reimbursement Rates \(Appendix C\)](#).
- 10.7.2 When multiple types of care are provided for the same child within the same service week (i.e., full time, part time, before and/or after), the maximum rate CAPS will reimburse to the provider is the state maximum rate for full time care.

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- 10.7.3 CAPS will subsidize care based on the amount authorized on the scholarship. Any amount, including a **registration fee**, in excess of what CAPS authorizes is the financial responsibility of the parent. CAPS authorizes up to \$65 in registration fees per child. CAPS does not pay registration fees for care authorized in informal provider settings.
- 10.7.4 The following guidelines will be used for CAPS reimbursements:
- 10.7.4.1 CAPS will only pay up to the state's maximum reimbursement rate for children authorized in informal provider settings, except for children with disabilities and children in DFCS custody. For children with disabilities and children in DFCS custody who have been authorized for care in informal provider settings, CAPS may approve a negotiated rate for informal providers that exceed the maximum reimbursement rate. CAPS will not pay the negotiated rate retroactively for any period prior to approval.
 - 10.7.4.2 For children in Georgia's Division of Family and Children Services (DFCS) custody who have been determined eligible for CAPS, CAPS will reimburse up to the provider's **published rate**. When multiple types of care are provided for the same child within the same service week (i.e., full time, part time, before and/or after), the maximum rate CAPS will reimburse to the provider is the provider's published rate for full time care.
 - 10.7.4.3 For children with disabilities, CAPS will reimburse up to the provider's published rate except as noted in section 10.7.4.1 for informal providers. At DECAL's sole discretion, CAPS may reimburse at a negotiated rate. CAPS will not pay negotiated rates retroactively for any period prior to approval. When multiple types of care are provided for the same child within the same service week (i.e., full time, part time, before and/or after), the maximum rate CAPS will reimburse to the provider is the provider's published rate, or approved negotiated rate, for full time care. The family may be assessed a fee based on the family's gross income. Refer to [CAPS Family Fee Policy \(CAPS/00-9\)](#) regarding when CAPS will assess family fees.
 - 10.7.4.4 Changes to reimbursement rates related to a child's age (e.g., rate changes at child's first and third birthday) will go into effect the Monday following the child's birthday.
 - 10.7.4.5 CAPS does not pay for other costs, including but not limited to, transportation, meals, activity fees, or book fees that are separate from the weekly rates established by the provider.
- 10.8 Provider Billing and Payments**
- 10.8.1 CAPS will not pay if the child did not attend at least one day during the service week as listed on the child care scholarship, except in instances where the provider is requesting payment to hold a slot as prescribed in the [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#).
 - 10.8.2 A child care scholarship must be used within 30 calendar days of the begin date of the scholarship. If the child is not enrolled and attending in accordance to the child care scholarship, the CAPS case may be closed as prescribed in [CAPS Case Changes and Documentation Policy \(CAPS/00-13\)](#). The provider should report non-attendance and excessive unexplained absences to CAPS.
 - 10.8.3 Any amount charged by the child care provider above what is authorized to be paid on the child care scholarship will be the responsibility of the parent. This includes any amount over the authorized registration fee.
 - 10.8.4 All child care providers must submit invoices electronically through the **CAPS administration and payment system**. Any child care provider that does not submit invoices through the CAPS administration and payment system will not receive reimbursement and may not participate in the CAPS program.
 - 10.8.5 Providers shall submit invoices that accurately report information about attendance to the CAPS administration and payment system within 60 calendar days of providing services. Invoices not submitted within 60 calendar days of service will delay payments to the provider. Invoices submitted after 90 calendar days of services will not be processed for payment and will not be reimbursed.
 - 10.8.6 Invoices containing unpaid service weeks more than 60 calendar days and less than 90 calendar days, from the date the invoice is submitted to the CAPS administration and payment system, must be approved by DECAL before the invoice is paid, except under limited circumstances, at the sole discretion of DECAL.

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10.8.6.1 DECAL has 14 calendar days to respond to the request to process any invoices that are 60 days or older.

- 10.8.7 All child care providers must receive child care payments from CAPS through direct deposit. Any child care provider that does not participate in direct deposit will not receive its reimbursement and may not participate in the CAPS program.
- 10.8.8 The child care provider will complete and submit a direct deposit form during the enrollment process. The direct deposit form will be completed in the CAPS administration and payment system along with other compliance documents.
- 10.8.9 When DECAL receives a tax levy and/or lien for a child care provider from the federal Internal Revenue Service (IRS), the State Department of Revenue, or other entities as allowed by law, the CAPS program will forward all monies from the child care provider's reimbursements directly to the appropriate entity until the levy and/or lien has been satisfied or closed.

POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Replaced all instances of the word certificate with scholarship in this section and throughout the Policy Manual.
02/01/2019	Revised section 10.8.3 to reference the provider's published rate instead of the cost of care.
05/15/2020	Clarified that when multiple types of care are provided within the same service week (i.e., full time, part time, before and/or after), the maximum rate CAPS will reimburse to the provider is the state maximum rate for full time care or the provider's published rate for full time care for children in DFCS custody and children with qualifying disabilities.
11/02/2020	Clarified that parents have the right to choose any eligible provider within the limits prescribed in CAPS Participating Providers Policy (CAPS/00-11) and CAPS Provider Rights and Responsibilities Policy (CAPS/00-12). Clarified that parents can enroll their school age child in any educational program of their choice; however, CAPS may reimburse a provider only for before and after school care for school age children attending a public or private school while school is in session. Added language to include, if provider is unknown at eligibility determination, the family can receive up to an additional 90 calendar days to select a provider as prescribed in CAPS Application Process Policy (CAPS/00-4) . Revised language for types of care authorized and types of scholarships authorized to minimize duplication. Changed occasional care to part-time scholarship to align with part-time definition. Condensed content relating to provider billing and payments into one section. Clarified language noting that a provider should report non-attendance and excessive unexplained absences to the State Provider Management Agent (SPMA).
05/01/2022	Revised language to clarify 'qualifying disability' to state a child 17 years of age or younger with a disability or developmental delay that impacts their learning can receive CAPS services.
07/01/2023	Added virtual learning days to examples for letter B. of variable schedule scholarship (VSS) and part time scholarship description in section 10.6.
11/15/2023	Revised language to clarify the parent has the right to enroll their school age child in any educational program of their choice that is actively participating or eligible to participate in CAPS. For CAPS purposes, a child that turns 5 years old by September 1 of the current school year, enrolled in and attending Georgia's Pre-K and Head Start are considered school age. The school age child who is 5 years old by September 1 is eligible to attend public school. Therefore, CAPS will only pay on a before and after school scholarship while school is in session. Revised language to clarify a scholarship may not be issued at a provider if it is determined the provider is at their licensing or license-exempt capacity. Clarified that parents are responsible for any amount of registration fee in excess of what CAPS

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	authorizes on the scholarship, the maximum registration fee authorized is \$65 per child and CAPS does not pay registration fees for care authorized in informal provider settings. Added language to clarify for children with disabilities and children in DFCS custody who have been authorized for care in informal provider settings, CAPS may approve a negotiated rate for informal providers that exceed the maximum reimbursement rate. Added language to clarify at DECAL's sole discretion, CAPS may reimburse a negotiated rate for children with disabilities. Revised language to add CAPS will not pay negotiated rate retroactively for any period prior to authorization for children with disabilities and children in DFCS custody in informal provider settings. Added language to state all child care providers must submit invoices electronically through Georgia Childcare Administrative and Payment System (GACAPS). Any child care provider that does not submit invoices through GACAPS will not receive reimbursement and may not participate in the CAPS program. Added language to clarify providers shall submit invoices that accurately report information about attendance to GACAPS within 60 calendar days of providing services. Invoices not submitted within 60 calendar days of service will delay payments to the provider. Invoices submitted after 90 calendar days of services will not be processed for payment and will not be reimbursed.
11/18/2024	Revised language to change additional 90 calendar days to additional 45 calendar days to select a child care provider. Renamed "GACAPS" to "CAPS administration and payment system" in where applicable in this section.
03/01/2025	Revised language to remove "12-month" from eligibility period in applicable sections.
07/01/2025	Added language to clarify DECAL may issue a before and after school scholarship for a child who is enrolled and attending either Georgia's Pre-K program or Head Start even if the child's enrollment and attendance cannot be verified by Georgia's Pre-K or Head Start.
10/06/2025	Added language to clarify that families receive an additional 45 calendar days to choose a provider. Added language to clarify changes to reimbursement rates related to a child's age (e.g., rate changes at child's first and third birthday) will go into effect the Monday following the child's birthday.

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LEGAL AUTHORITY: 591-1-1-.02(m), 591-1-1-.46 (b), 591-1-1-.46 (b) 7; Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Child Care Provider Rights and Responsibilities Policy (CAPS/00-12), CAPS Health and Safety Standards Policy (CAPS/00-15)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

11 PARTICIPATING PROVIDERS

11.1 Purpose

The purpose of this policy is to provide guidelines about the types of providers that receive subsidies through **Childcare and Parent Services (CAPS)**.

11.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

11.3 Provider Participation

- 11.3.1 At DECAL's sole discretion, licensed child care programs, two categories of license-exempt programs (government owned and operated child care programs and day camps), and informal providers who meet requirements detailed in this policy manual may participate in CAPS.
- 11.3.2 As a prerequisite to participate in CAPS, the **program contact** must attend CAPS orientation prior to application submission.
- 11.3.3 All providers participating in CAPS must comply with health and safety standards as prescribed in [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#).
- 11.3.4 CAPS shall only use **Child Care and Development Fund (CCDF)** or other applicable funds to pay participating providers for services. Such payment cannot be assigned or delegated to a third party for any reason except by an order of a court of proper jurisdiction.
- 11.3.5 When there is a change of ownership, the new owner is eligible to receive CAPS payment the date they are issued their permit and/or temporary or continuing license. Upon an approved change of ownership, the previous owner is no longer able to provide care or receive payment. Licensed child care providers must also be **Quality Rated** as prescribed in the Licensed Child Care Providers section below before receiving CAPS payment.

11.4 Licensed Child Care Providers

- 11.4.1 The following categories of licensed providers may participate in the CAPS program. For current Child Care Learning Centers (CCLC) and Family Child Care Learning Homes (FCCLH) rules and regulations, visit <http://www.dec.al.ga.gov/CCS/RulesAndRegulations.aspx>.

11.4.1.1 **Child Care Learning Centers (CCLC)** – A provider licensed or otherwise authorized to provide child care services for fewer than 24 hours per day per child in a non-residential setting for seven or more children under 13 years of age (or up to age 18 years for children with qualifying disabilities or developmental delays that impact their learning or has a court order for supervision), unless care in excess of 24 hours is due to the nature of the parent(s)' state-approved activity.

11.4.1.2 **Family Child Care Learning Homes (FCCLH)** – One or more individual(s) who provide child care services for fewer than 24 hours per day per child in a private residence other than the child's residence for no more than six children under 13 years of age (or up to age 18 years for children with qualifying disabilities or developmental delays that impact

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their learning or has a court order for supervision) at a given time, unless care in excess of 24 hours is due to the nature of the parent(s)' state-approved activity. For the purpose of the CAPS program, the parent cannot reside at, or work for, the family child care learning home that receives subsidies for the parent's children. For each child in Georgia's Division of Family and Children Services (DFCS) custody, the State shall be considered the parent. Therefore, a foster parent of each child in DFCS custody is not considered the parent for the purposes of CAPS.

- 11.4.2 Licensed providers must be **Quality Rated** to participate in the CAPS program. For the purpose of CAPS, a **Quality Rated Provider** is one that is Star Rated, in **CAPS/Quality Rated Probationary Status**, or in **CAPS/Quality Rated Provisional Status**. For additional information on Quality Rated refer to the [CAPS Quality Rated Guidelines and Requirements \(Appendix II\)](#).

11.4.2.1 Providers who fail to earn or maintain a one-, two-, or three-star rating in **Quality Rated** may be placed in **CAPS/Quality Rated Probationary Status**. Providers in **CAPS/Quality Rated Probationary Status** will be enrolled in a **Quality Rated Cohort Group** as directed by **Quality Rated**. Providers in **CAPS/Quality Rated Probationary Status** may participate in CAPS for up to twelve (12) consecutive months if they maintain adequate progress as reported to CAPS by **Quality Rated**. Providers who do not achieve at least a one-star rating after the initial twelve (12) months may, at DECAL's sole discretion and not subject to appeal, be granted an additional six (6) months in **CAPS/Quality Rated Probationary Status**. Providers with a probationary status can accept new CAPS scholarships and retain any existing CAPS scholarships if they maintain adequate progress to obtain a star rating as reported to CAPS by **Quality Rated**.

11.4.2.2 Providers new to CAPS and not a Quality Rated Provider may be placed in **CAPS/Quality Rated Provisional Status**. Providers in **CAPS/Quality Rated Provisional Status** will be enrolled in a **Quality Rated Cohort Group** as directed by **Quality Rated**. Providers in **CAPS/Quality Rated Provisional Status** may participate in CAPS for up to twelve (12) consecutive months if they maintain adequate progress as reported to CAPS by **Quality Rated**. Providers who do not achieve at least a one-star rating after the initial twelve (12) months may, at DECAL's sole discretion and not subject to appeal, be granted an additional six (6) months in **CAPS/Quality Rated Provisional Status**. Providers with a provisional status can accept new CAPS scholarships and retain any existing CAPS scholarships if they maintain adequate progress to obtain a star rating as reported to CAPS by **Quality Rated**.

11.4.2.3 Providers who choose not to become **Quality Rated** will not be able to receive child care subsidy payments. Providers currently participating in the CAPS program who allow their rating to expire will be dismissed as prescribed in [CAPS Child Care Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#).

11.4.2.4 At DECAL's sole discretion and not subject to appeal, CAPS may grant a family a time-limited waiver allowing the issuance of scholarships to a provider who is not a **Quality Rated Provider**.

11.5 License-exempt Child Care Providers

- 11.5.1 Providers with the following exemption types may participate in the CAPS program. For current exemption rules and regulations, visit http://www.dec.state.ga.us/Child_Care/Child_Care_Providers/Exemptions.aspx.

11.5.1.1 **Government owned and operated (Category 1)** – As defined in Georgia Rules for Child Care Learning Centers, Rule 591-1-1-.46(b)1, programs which are owned and operated by any department or agency of state, county, or municipal government. This includes, but is not limited to, the customary school day, as defined in Georgia law, and before and/or after school programs in public schools operated by the public school system and staffed with school system employees and recreation programs operated by city or county parks and recreation departments and staffed with city or county employees.

11.5.1.2 **Day camps (Category 7)** – As defined in Georgia Rules for Child Care Learning Centers, Rule 591-1-1-.46(b)7, Day camp programs for children five years of age and older that are operated between school terms, whose primary purpose is to provide organized

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recreational, religious, or instructional activities. The day camp programs may operate during summer and other school breaks and shall operate for no more than 12 hours per day.

11.6 Informal Child Care Providers

11.6.1 **Informal providers** can only be used by a parent if one of the following criteria exists. Families who request to use an **informal provider** must verbally attest which of the following criteria apply.

- No other licensed care is available within a reasonable geographic area
- Care is during non-traditional hours when licensed care is not available
- The child in care meets the definition of children with disabilities
- The child's primary language is other than English and no licensed provider equipped for dual language families is available within a reasonable geographic area
- Families are impacted by transportation
- Parental choice as it relates to religious, race, and ethnic considerations
- Other considerations as identified by the family and approved by DECAL

11.6.2 **Informal providers** must be 21 years of age or older to receive payment through CAPS. Informal providers are not required to be licensed but must enroll with the CAPS program. Informal providers can care for a maximum of six children for pay. This includes a combination of related and unrelated children as prescribed below. The following types of informal providers may participate in CAPS.

11.6.2.1 **Relative informal providers** include caregivers related to the child by blood, marriage, or adoption, such as an aunt, uncle, grandparent, great-grandparent, or adult sibling.

- A. The relative must not be included in the **family unit**.
- B. The relative informal child care arrangement may take place at the relative's residence or in the child's residence. However, adult siblings that are informal providers must live in a separate residence from the **eligible** children receiving subsidies.
- C. If the relative cares for children for pay, the total number of children in care cannot exceed six. Of the children in care, no more than two can be unrelated for pay.
- D. If the relative care is for more than six related children for pay (as described by Child Care Services licensing rules), they are required to obtain a license from DECAL.
- E. For relative informal providers, a maximum of six children are allowed at the residence where care is provided.

11.6.2.2 **Non-relative informal providers** include individuals who are not related to the child by blood, marriage, or adoption.

- A. The non-relative must provide care in their own residence and may not be a resident of the household of the children receiving care.
- B. If the non-relative cares for more than two unrelated children for pay, they are required to obtain a license from DECAL.
- C. Parents or adults acting **in loco parentis** are unable to receive subsidy payment for their own children.
- D. For each child in DFCS custody, the State shall be considered the parent. Therefore, a foster parent of each child in DFCS custody is not considered the parent for the purposes of CAPS.

11.6.2.3 CAPS will not approve participation for more than one informal provider at an address.

11.6.2.4 As described by Child Care Services licensing rules, relative and non-relative informal providers who care for more than six related children or more than two unrelated children must obtain a license from DECAL. For more information, visit:

<http://www.dec.al.ga.gov/CCS/StartingACenter.aspx>

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POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Added requirement that informal providers be 21 years of age or older to receive payment through CAPS. This requirement was previously in the Informal Provider Agreement (Appendix I) but was not in CAPS Policy.
10/01/2018	Added requirement that Quality Rated eligible providers be star rated by December 31, 2020, to participate in the CAPS program. Clarified language regarding satisfactory records checks for informal providers.
02/01/2019	Added requirement that all providers participating in CAPS comply with CAPS Health and Safety Standards Policy (CAPS/00-15) and moved references to health and safety standards from this policy section to CAPS Health and Safety Standards Policy (CAPS/00-15).
05/15/2020	Added information related to eligible providers, changes of ownership, and the use of informal providers. Removed requirement that Quality Rated eligible providers be Quality Rated by December 31, 2020, to allow for an extension of the requirement's implementation date.
11/02/2020	Revised language for licensed providers to better align with policy. Clarified that parents cannot reside at, or work for, the Family Child Care Learning Home (FCCLH) that receives subsidies for the parent's children.
07/01/2021	Added CAPS/Quality Rated deadline date and milestone dates for licensed providers.
10/01/2021	Removed milestone language regarding CAPS/Quality Rated goal. Added additional information on Quality Rated can be viewed in the CAPS/Quality Rated Guidelines and Requirements (Appendix II). Revised CAPS/Quality Rated Probationary Status and CAPS/Quality Rated Provisional Status language to clarify the provider will be enrolled in a Quality Rated Cohort Group as directed by Quality Rated. Added language to note licensed providers that choose not to participate in Quality Rated will not be eligible to receive child care subsidy payments. Providers currently participating will be dismissed from the CAPS program.
11/15/2023	Revised language to add as a prerequisite to participate in CAPS, licensed providers must enroll and maintain participation in the Quality Rated tier reimbursement program. All licensed providers hereby acknowledge that the CAPS program and Quality Rated tier reimbursement are separate and distinct programs at DECAL. Revised language to clarify licensed child care providers must also be Quality Rated as prescribed in the Licensed Child Care Providers section before receiving CAPS payment when there is a change of ownership. Added language to clarify for each child in Georgia's Division of Family and Children Services (DFCS) custody, the State shall be considered the parent. Therefore, a foster parent of each child in DFCS custody is not considered the parent for the purposes of CAPS for family child care learning homes (FCCLH) and non-relative informal providers. Revised policy to clarify an informal provider can care for a maximum of six children for pay to include a combination of related and unrelated children. CAPS will not approve participation for more than one informal provider at an address.
10/01/2024	Revised language to add as a prerequisite to participate in CAPS, the program contact must attend CAPS orientation. Revised language to remove as a prerequisite to participate in CAPS, licensed providers must enroll and maintain participation in the Quality Rated tier reimbursement program. All licensed providers hereby acknowledge that the CAPS program and Quality Rated tier reimbursement are separate and distinct programs at DECAL.

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		Revised:	03/02/2026
		Revision Effective:	03/02/2026

LEGAL AUTHORITY: O.C.G.A § 20-1A-10.1; Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Purchase of Child Care through Scholarships Policy (CAPS/00-10), CAPS Participating Providers Policy (CAPS/00-11), CAPS Health and Safety Standards Policy (CAPS/00-15), CAPS Program Integrity Policy (CAPS/00-16), CAPS Administrative Hearings Policy (CAPS/00-18)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

12 CHILD CARE PROVIDER RIGHTS AND RESPONSIBILITIES

12.1 Purpose

This policy section describes the rights and responsibilities of child care providers and **informal providers** under the **Childcare and Parent Services (CAPS)** program rules and regulations.

12.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

12.3 Child Care Provider Rights

12.3.1 Participating Providers

- 12.3.1.1 At DECAL's sole discretion, licensed child care programs, two categories of license-exempt programs (government owned and operated child care programs and day camps), and informal providers who meet requirements detailed in this policy manual may participate in CAPS.
- 12.3.1.2 CAPS shall only use **Child Care and Development Fund (CCDF)** or other applicable funds to pay eligible providers for services. Such payment cannot be assigned or delegated to a third party for any reason except by an order of a court of proper jurisdiction.

12.3.2 Participation Rights

Providers participating in the CAPS program have the right to:

- 12.3.2.1 Be treated fairly without regard to race, color, religion, sex or sexual orientation, marital status, national origin, ancestry, age, political beliefs, or disability.
- 12.3.2.2 Request and receive forms and notices in Spanish for providers who speak Spanish.
- 12.3.2.3 Have DECAL provide an interpreter for other non-English speaking individuals or persons with limited English proficiency.
- 12.3.2.4 Request auxiliary aids or other accommodations for individuals with vision or hearing impairments.
- 12.3.2.5 Speak to a supervisor, if not satisfied with actions taken by CAPS staff.

12.3.3 Appeal Rights

- 12.3.3.1 Employees and prospective employees have the right to appeal the accuracy or completeness of the results of a criminal background check.
- 12.3.3.2 Providers receiving subsidies through the CAPS program have the right to appeal and receive a hearing regarding adverse actions that pertain to any financially related matters, excluding (1) Future payments, (2) Lack of funding availability, (3) Denial from participation in CAPS, (4) Dismissal from participation in CAPS, and (5) Disqualification from participation in CAPS.
- 12.3.3.3 Providers must request an appeal in writing. The written request must be postmarked by the deadline listed on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL. Requests for hearings must be submitted to the attention of:

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Chief Legal Officer - Georgia Department of Early Care and Learning
2 Martin Luther King Jr. Drive
East Tower, Suite 754
Atlanta GA 30334

- 12.3.3.4 Providers have the right to appeal to the U.S. Department of Health and Human Services Office for Civil Rights (HHS OCR) if they feel that the DECAL or the CAPS program has violated their civil rights. Refer to the CAPS Administrative Hearings Policy (CAPS/00-18) for additional information.

12.4 Child Care Provider Responsibilities

12.4.1 State and Federal Laws and Regulations

- 12.4.1.1 The provider shall comply with all applicable local, state and federal statutes, ordinances, regulations, and policies. Failure to comply with all applicable local, state, and federal ordinances, regulations, and policies will deem a provider out of compliance and may lead to adverse actions as deemed appropriate by CAPS including but not limited to, **suspension**, recoupment of funds, **dismissal** or **disqualification** from CAPS. At the discretion of DECAL, a provider may be deemed out of compliance during review or investigation of the program which may lead to adverse actions including but not limited to, suspension, recoupment of funds, dismissal or disqualification from CAPS.
- 12.4.1.2 The provider is responsible for reviewing CAPS policies on a regular basis, as policies are subject to change. The provider must be knowledgeable of CAPS policies and any revisions to CAPS policy.
- 12.4.1.3 Licensed providers must comply with reporting requirements as prescribed in Child Care Services rules. License-exempt providers must comply with reporting requirements as prescribed in the [Health and Safety Standards for License-exempt Providers Receiving Subsidy manual](#). Informal providers must comply with reporting requirements as prescribed in the [Health and Safety Standards for Informal Providers Receiving Subsidy manual](#).
- 12.4.1.4 Providers shall comply with Title VI of the Civil Rights Act of 1964 (exception: Family Child Care Learning Homes and informal providers); Section 504 of the Rehabilitation Act of 1973; and, if the provider is center-based or a **family child care learning home**, the provider shall comply with the Americans with Disabilities Act of 2010.
- 12.4.1.5 Providers must ensure that parents have unlimited access to their children when children are in the care of the provider.
- 12.4.1.6 Providers must ensure they are operating within the guidelines as prescribed in [CAPS Participating Providers Policy \(CAPS/00-11\)](#) when the parent of the child receiving CAPS subsidies is employed at the location child care services are rendered.
- 12.4.1.7 Federal law prohibits CAPS from reimbursing a child care provider who has had a **serious injury** as defined in [Definitions and Acronyms](#).

12.4.2 Contact Information

- 12.4.2.1 All participating providers in the CAPS program must submit current, accurate and complete contact information, including email address, at enrollment and annual renewal. The **program contact's** email address submitted will be used as the designated email to receive all communications.
- 12.4.2.2 The provider is responsible for maintaining correct contact information and must report all changes in contact information within five business days of the change. Changes in contact information can be entered into the **CAPS administration and payment system**.
- 12.4.2.3 The program contact's email address will be used as the primary contact to communicate and send information to the provider. It is the provider's responsibility to respond timely to information requests transmitted to the provided email address from DECAL. Delivery of any such information, including but not limited to, amendments/updates to CAPS policy, data requests, document requests, overpayment notices, and any other matters related to the provider to said email address shall be considered valid so long as the sender does not receive a failure to deliver message. In certain circumstances DECAL may also provide notifications and requests to providers via mail through an approved mail carrier service.

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12.4.3 Quality Rated

- 12.4.3.1 Licensed providers must be **Quality Rated** to participate in the CAPS program. For the purpose of CAPS, a **Quality Rated Provider** is one that is Star Rated, in **CAPS/Quality Rated Probationary Status**, or in **CAPS/Quality Rated Provisional Status**. For additional information on Quality Rated refer to the [CAPS Quality Rated Guidelines and Requirements \(Appendix II\)](#).
- 12.4.3.2 Providers who fail to earn or maintain a one-, two-, or three-star rating in Quality Rated, may be placed in **CAPS/Quality Rated Probationary Status**. Providers in **CAPS/Quality Rated Probationary Status** will be enrolled in a **Quality Rated Cohort Group** as directed by **Quality Rated**. Providers in **CAPS/Quality Rated Probationary Status** may participate in CAPS for up to twelve (12) consecutive months if they maintain adequate progress as reported to CAPS by **Quality Rated**. Providers who do not achieve at least a one-star rating after the initial twelve (12) months may, at DECAL's sole discretion and not subject to appeal, be granted an additional six (6) months in **CAPS/Quality Rated Probationary Status**. Providers with a probationary status can accept new CAPS scholarships and retain any existing CAPS scholarships if they maintain adequate progress to obtain a star rating as reported to CAPS by **Quality Rated**.
- 12.4.3.3 Providers new to CAPS and not a **Quality Rated Provider** may be placed in **CAPS/Quality Rated Provisional Status**. Providers in **CAPS/Quality Rated Provisional Status** will be enrolled in a **Quality Rated Cohort Group** as directed by **Quality Rated**. Providers in **CAPS/Quality Rated Provisional Status** may participate in CAPS for up to twelve (12) consecutive months if they maintain adequate progress as reported to CAPS by **Quality Rated**. Providers who do not achieve at least a one-star rating after the initial twelve (12) months may, at DECAL's sole discretion and not subject to appeal, be granted an additional six (6) months in **CAPS/Quality Rated Provisional Status**. Providers with a provisional status can accept new CAPS scholarships and retain any existing CAPS scholarships if they maintain adequate progress to obtain a star rating as reported to CAPS by **Quality Rated**.
- 12.4.3.4 Providers who choose not to become **Quality Rated** will not be able to receive child care subsidy payments. Providers currently participating in the CAPS program who allow their rating to expire will be dismissed.
- 12.4.3.5 At DECAL's sole discretion and not subject to appeal, CAPS may grant a family a time-limited waiver allowing the issuance of scholarships to a provider who is not a **Quality Rated Provider**.

12.4.4 Required Documents

- 12.4.4.1 Providers currently receiving or anticipating receipt of subsidies through CAPS must provide required documents to CAPS by the date requested for initial enrollment and annual renewal.
- 12.4.4.2 All required documents must be submitted, and the application approved prior to receiving a scholarship for CAPS.
- 12.4.4.3 At annual renewal, payments will be suspended for 30 days beginning the date the records were due. Payments will be withheld for no more than 30 days, after which payments will be released to the provider and the provider will be dismissed from CAPS.
- 12.4.4.4 Licensed and exempt providers must provide the following current, accurate, authentic, and complete documents at initial enrollment and annual renewal in the CAPS administration and payment system:
- Form W-9 for tax identification purposes
 - Policies and procedures (published and available for review by DECAL and the public)
 - Child care rates – Providers must enter their child care rates in the CAPS administration and payment system
 - Child Care Provider Agreement
 - Georgia's Department of Early Care and Learning Assurance of Compliance with Federal Regulations Regarding Civil Rights Form 704 (required for child care learning centers only)
 - Direct deposit form

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- **Delegation of authority** form (if applicable) Note: (The selected **authorized signer (delegee)** must remain until a new form is submitted and accepted by the CAPS administration and payment system.)

12.4.4.5 **Informal providers** must provide the following current, accurate, authentic, and complete documents at initial enrollment and annual renewal in the CAPS administration and payment system:

- Valid proof of **social security** number and verification of identity, such as photo ID, driver's license, or passport (only at initial enrollment or if information changes)
- Enrollment packet that includes:
 - Satisfactory criminal record check determination for all adults in the home 17 years of age or older must be issued prior to authorization of subsidy through CAPS. For additional information on the records check process and components, visit: <http://dec.al.ga.gov/CCS/CriminalRecordsCheck.aspx>.
 - **Note:** While all providers participating in CAPS are required to comply with DECAL's Comprehensive Background Check Policy, as prescribed in [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#), CAPS provides additional support to informal providers in obtaining required criminal background checks.
 - Pediatric CPR Certification certificate (must be current)
 - **Note:** Online-only CPR training and adult-only training do not meet this requirement. "Blended" training (online study plus hands-on skill practice and assessment) is acceptable.
 - Pediatric First aid certificate (must be current)
 - Informal Provider Enrollment Affidavit
 - Form W-9 for tax identification purposes
 - Child Care Provider Agreement
 - Direct deposit form

Note: Informal providers who leave and re-enroll in the CAPS program within six months of their withdrawal date may use the same criminal records check determination letters.

12.4.4.6 At DECAL's sole discretion, providers currently receiving or anticipating receipt of subsidies through CAPS may be required to submit additional documents.

12.4.5 Cooperating with DECAL

- 12.4.5.1 CAPS manages provider enrollment, financial reimbursement, compliance, overpayment recoupment, and technical support for child care providers participating in CAPS.
- 12.4.5.2 Providers participating in CAPS may also receive requests or information from DECAL staff. This includes, but is not limited to, staff in CAPS, Child Care Services, and Audits and Compliance.
- 12.4.5.3 Providers are required to ensure all submitted documents are current, accurate, authentic, and complete.
- 12.4.5.4 Providers must submit accurate and complete contact information, including email address, to CAPS to be maintained in the provider profile. Each provider receiving subsidy through CAPS will have a provider profile maintained in the CAPS administration and payment system. The profile will contain contact and demographic information about the provider, in addition to compliance information. Failure of the provider to submit accurate and complete contact information on file in the CAPS administration and payment system shall not give rise to claim that they were not properly notified. The provider is required to notify CAPS of any changes in contact or demographic information within five business days. Failure to notify CAPS of any changes in contact or demographic information may result in dismissal from the CAPS program. For providers who have closed, the provider must maintain accurate contact information for a minimum of three years from the last date service is provided or for any period the provider received payment from CAPS.

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12.4.5.5 Failure to comply with any request by DECAL may result in dismissal from the CAPS program, as prescribed in [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#) and [CAPS Program Integrity Policy \(CAPS/00-16\)](#).

12.4.6 Health and Safety Standards

12.4.6.1 Providers must comply with health and safety standards as prescribed in [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#).

12.4.6.2 Compliance with health and safety standards includes, but is not limited to, the following, as prescribed in [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#).

- A. All providers participating in CAPS must:
 - (1) Comply with reporting requirements
 - (2) Comply with DECAL's criminal background check requirements
 - (3) Maintain original and accurate arrival and departure records and transportation records
 - (4) Comply with training requirements
 - (5) Provide care that meets state health and safety standards
 - (6) Comply with health and safety monitoring
- B. Licensed providers must participate in training and technical assistance required by the CAPS program and must also comply with all requirements for child care licensing.
- C. License-exempt providers (including all staff) and informal providers must comply with health and safety standards as defined by DECAL.

12.4.7 Recordkeeping and Reviews

12.4.7.1 Documentation expected to be maintained by all providers includes, but is not limited to:

- **Arrival and departure records** (formerly referred to in CAPS policy as sign in/sign out logs)
- **Transportation records** (logs and agreements)
- Copies of child care license or letter of exemption
- Copies of Business License and Certificate of Occupancy
- Financial records or financial information (e.g., bank statements, copies of canceled checks)
- Current published policies and procedures
- Current **published rate** sheets
- Signed Civil Rights Act Compliance form
- Verification of SSN and FEIN/Tax ID Numbers
- Employment records
- Records supporting funding from other state or federal sources
- Child records (such as birth certificates, immunization forms, and registration information)
- Any and all information or records related to the operation of the provider

12.4.7.2 The documents listed above may be requested and reviewed during attendance verification assessments, compliance reviews, or investigations. Refer to [CAPS Program Integrity Policy \(CAPS/00/16\)](#) for more information on assessments, reviews, investigations, and sanctions.

12.4.7.3 DECAL representatives may request documents in writing or in person for attendance verification assessments, compliance reviews, or investigations. Failure to submit documents when requested by DECAL shall result in a mandatory reclaim of funds.

- A. CAPS conducts attendance verification assessments of provider billing records. Providers are typically required to submit arrival and departure records and transportation records for a specified month as instructed in the review notification. The purpose of attendance verification assessments

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is to support provider compliance. Failure to provide records in a timely manner may result in a referral to DECAL's Audits and Compliance Division.

B. DECAL's Audits and Compliance Division conducts risk-based compliance reviews and investigates referrals.

- (1) For compliance reviews, providers are typically required to submit arrival and departure records and transportation records for a specified three-month period within 15 calendar days from the date the notice was received. The review period may be widened at DECAL's discretion. The purpose of compliance reviews is to identify and recoup improper payments; however, additional sanctions may also be imposed at the discretion of CAPS administration.
- (2) For investigations, DECAL may request records in person or in writing. The timeframe for which records are requested will vary based on dates specified in the referral. The review period may be widened at DECAL's discretion.
- (3) If records are requested in writing by DECAL, failure of the provider to submit the required documents in 15 calendar days from the date the notice was received shall cause an overpayment to be established for any period where documentation is not provided, and result in sanctions imposed by DECAL, including a mandatory reclaim of reimbursement for the overpayment periods that lack the supporting documentation, and may include dismissal or disqualification from CAPS and may jeopardize the provider's ability to participate in other DECAL programs.
- (4) If records are requested in person during an on-site review, the provider or any of their representatives must immediately make records available. If the provider's designated program director cannot be present at the time of review, the director must select an alternate person to access the records in their absence. The absence of the director should not hinder or prevent a DECAL representative from conducting a review.
- (5) Failure to provide requested documentation immediately upon request shall result in sanctions imposed by DECAL, including a mandatory reclaim of reimbursement for the overpayment periods that lack the supporting documentation, and may include dismissal or disqualification from CAPS and may jeopardize the provider's ability to participate in other DECAL programs.
- (6) Established overpayments will be sent to CAPS to begin the recoupment process, which will reduce future payments to the provider. All overpayments must be satisfied within 24 months of establishment.

12.4.7.4 Provider records should be securely maintained on site where care is provided or at a suitable off-site location previously approved by DECAL that allows for convenient access and retrieval if immediate review is requested. DECAL shall have the authority to enter the premises to retrieve requested documents. The following section of the Child Care Provider Agreement shall be completed by the person legally responsible for the operation and management of the program:

The documents for: _____
(provider name)

will be maintained at: _____
(address, city, zip code where records will be stored)

12.4.7.5 If at any time any records pertaining to the CAPS program are relocated from the previously approved location, a notification must be submitted to CAPS for approval within five business days.

12.4.7.6 In the event of natural or man-made disasters (e.g., flooding, fire, hurricane, tornado, theft, acts of vandalism, etc.), the provider is responsible for notifying CAPS within five business days. The provider is responsible for providing third-party verification to substantiate the disaster. Verification may include police reports, insurance company claims, photos, or other proof that supports the disaster and must also include details of the property impacted. Claims related to man-made disasters must be made and filed within 30 calendar days of the incident. Claims related to natural disasters must be filed as soon as possible in accordance with insurance company regulations. In the event of provider electronic attendance tracking system functionality failure, the provider must still maintain records as prescribed in CAPS policy. The

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provider may utilize other automated or manual (paper) methods to maintain attendance verification until system functionality can be restored.

- 12.4.7.7 DECAL will not return documents submitted; therefore, it is imperative that copies of documentation are submitted and not the original documents.
- 12.4.7.8 DECAL is not responsible for packages lost or not delivered to the appropriate location or person; therefore, it is strongly recommended that packages submitted to DECAL via mail are adequately addressed to their intended recipient and are commercially tracked from posting to delivery (e.g., certified mail or return receipt delivery).
- 12.4.7.9 Arrival and departure records (formerly referred to in CAPS policy as sign in/sign out logs) and transportation records (if applicable) are the only acceptable source of evidence for providing care for all children subsidized through the CAPS program. The provider must maintain the original and accurate arrival and departure records and transportation records for a minimum of three years from the last date service is provided. If there is an open investigation or an open compliance review, providers, including providers who have closed or have been dismissed from the CAPS program, are required to maintain records beyond the three-year period until the investigation is completed.
- A. Parent affidavits or any other documents obtained attesting to attendance that are not part of the daily arrival and departure record keeping process will not be considered a valid means of verifying daily attendance and will not be accepted by the CAPS program as such.
 - B. Documents maintained as a result of a provider's participation in Georgia's Pre-K Program or Nutrition Services programs, such as Child and Adult Care Food Program and Summer Food Service Program records, are not considered acceptable verification of attendance records for the CAPS program. These records may not reflect a particular child's daily attendance or participation in CAPS or certification by a parent of a child's daily attendance.
- 12.4.7.10 Arrival and departure records must have the parent's or authorized representative's original or **electronic signature** obtained at arrival and departure each time the parent or authorized representative drops off and picks up the child.
- A. If the parent is present at either arrival or departure, transportation records cannot be used to support children's attendance for CAPS purposes.
 - B. If the parent is not present to sign at both arrival and departure, transportation records can be used to support children's attendance, providing that:
 - (1) There is a valid transportation agreement, completed prior to providing transportation, on file with the provider signed by the parent giving authorization for transportation of the child to and/or from the provider (whether the transportation is provided by the provider itself or an outside entity contracted to provide transportation); and
 - (2) There is a passenger transportation checklist (formerly referred to in CAPS policy as a transportation log) that lists the children on the transportation schedule as well as signatures of the responsible party (e.g., bus driver, program administrator) for each day children are transported (whether the transportation is provided by the provider itself or an outside entity contracted to provide transportation).
 - (3) Transportation records must be accurate, current, and complete in accordance with licensing rules and regulations and immediately available for review upon request.
 - C. The provider is prohibited from signing arrival and departure records on behalf of the parent if the parent is present regardless of the fact the provider uses an electronic sign in and out system. The provider is prohibited from changing arrival and departure records and allowing the parent to sign after a child's daily attendance. DECAL reserves the right to investigate any circumstances where DECAL believes or has evidence that the provider is using staff members to circumvent arrival and departure record policy requirements. The investigation may lead to recoupment of funds or other sanctions as prescribed in CAPS policy.
 - D. If a provider chooses to use an electronic system, each parent must have their own unique electronic signature. The provider is required to have their own unique electronic signature that would allow DECAL or its representatives to discern parent sign in and out from that of the

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provider. The electronic system must record and display who signed the child in and out as well as when and how the child was signed in and out.

- 12.4.7.11 Providers are responsible for ensuring that documents provided to DECAL and its representatives are current, accurate, and complete. Failure to provide current, accurate, and complete documentation may be construed as submitting a false statement. DECAL will refer for criminal prosecution any provider who knowingly submits false documentation.
- 12.4.7.12 If it is determined through provider self-reporting, compliance reviews, or investigations that the provider failed to maintain arrival and departure records with the parent or authorized representative's original or electronic signature, CAPS must recoup the amount of any child care subsidies paid for any portion of the review period for which the provider failed to maintain acceptable records. Further sanctions may be imposed, up to and including dismissal and disqualification from CAPS, which may also jeopardize the provider's ability to participate in other DECAL programs.
- 12.4.7.13 If CAPS determines during an attendance verification assessment that the provider does not maintain records in accordance with CAPS policy, the person legally responsible for the program and the person responsible for maintenance of records will be required to complete mandatory training. If the provider does not make improvements in record maintenance, CAPS may submit a referral for investigation to DECAL's Audits and Compliance Division.

12.4.8 Payments, Billings, and Refunds

- 12.4.8.1 As prescribed in [CAPS Purchase of Child Care Through Scholarships Policy \(CAPS/00-10\)](#), the provider understands and agrees that the total weekly amount it receives for CAPS services for each child in care (the CAPS family's assessed fees plus the amount paid by the state for CAPS services) shall not exceed the provider's published rate as outlined on the child care scholarship. All child care providers must enroll to receive child care payments from CAPS through direct deposit. Any child care provider that does not participate in direct deposit will not receive its reimbursement and may not participate in the CAPS program.

Note: The parent is responsible for payment of any charges that exceed any amount that CAPS has authorized for reimbursement. Possible charges include transportation costs, book fees, and field trip costs.

- 12.4.8.2 When CAPS subsidizes child care for a child in DFCS custody or a child with a qualifying disability enrolled in a licensed or licensed exempt facility, CAPS will reimburse up to the provider's published rates on file with CAPS. At DECAL's sole discretion, CAPS may approve a negotiated rate that exceeds the provider's published rate. CAPS will not pay negotiated rate retroactively for any period prior to approval.
- 12.4.8.3 CAPS will only pay up to the state's maximum reimbursement rate ([Appendix C](#)) for children authorized in informal provider settings, except for children with disabilities and children in DFCS custody. For children with disabilities and children in DFCS custody who have been authorized for care in informal provider settings, CAPS may approve a negotiated rate for informal providers that exceeds the maximum reimbursement rate.
- 12.4.8.4 When multiple types of care are provided for the same child within the same service week (i.e., full time, part time, before and/or after), the maximum rate CAPS will reimburse to the provider is the state maximum rate for full time care or the provider's published rate (or negotiated rate) for full time care for children in DFCS custody and children with qualifying disabilities.
- 12.4.8.5 CAPS will not pay if the child did not attend at least one day during the service week as listed on the child care scholarship, except in instances where the provider is requesting payment to hold a slot (refer to Holding Slots section below).

Note: As prescribed in CAPS Case Changes and Documentations Policy (CAPS/00-13), excessive unexplained absences for 30 calendar days or more may result in closure of CAPS case. The excessive unexplained absence should be reported to CAPS.
- 12.4.8.6 The provider may not bill, and CAPS will not pay for any service periods during which the provider was not open for business for the purpose of providing child care services.

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12.4.9 Reconsideration and Fair Hearings

- 12.4.9.1 When a provider receives a notice for the establishment of an overpayment from DECAL or its representatives, they may submit additional documentation to support their requests for payment.
- 12.4.9.2 DECAL will review the reconsideration request and supporting documentation in a timely manner. After this review, the Audits and Compliance Division will send the child care provider a Reconsideration Notice notifying the provider of any change in the amount of overpayment resulting from reconsideration.
- 12.4.9.3 Any request for reconsideration must be accompanied by supporting documentation.
 - A. Reconsideration shall only include requests for clarification/review of existing documents already submitted and shall only cover the time period and/or children previously reviewed.
 - B. Reconsideration shall not include the opportunity to submit new documentation that has been previously requested but not submitted unless authorized by DECAL in writing for unique circumstances.
- 12.4.9.4 If a signed repayment statement or a request to formally appeal the overpayment and request a fair hearing is not postmarked by the due date contained on the notice, DECAL or its representatives will close the investigation and forward the overpayment to CAPS to begin the collection process. Recoupments will be established to allow overpayments to be repaid within 24 months. CAPS is responsible for pursuing, collecting, tracking, and reporting overpayments identified by DECAL or its representative.
- 12.4.9.5 A fair hearing request must be submitted in writing. The written request must be postmarked by 5:00pm on the due date contained in the reconsideration notice to the attention of:

Chief Legal Officer - Georgia Department of Early Care and Learning
 East Tower, Suite 754
 2 Martin Luther King Jr. Drive
 Atlanta, GA 30334

12.4.10 Holding Slots

- 12.4.10.1 There may be situations when a child cannot attend the child care program for an extended time frame.
 - A. CAPS may authorize payment to a provider to hold a slot for a maximum of two service weeks during the **eligibility period** when a child is absent from care.
 - B. The provider must be open for business in order to receive payment for holding slots and must include specific payment requirements for holding slots in its policy. This policy must be on file with CAPS.
 - C. The child must have attended the provider in person at least once to claim a holding slot.

12.4.11 Child Care Rates

- 12.4.11.1 The provider shall charge the same rates to families/children subsidized by CAPS as it charges other consumers and shall provide documentation, upon request, to demonstrate compliance with this requirement.
- 12.4.11.2 The provider shall not bill CAPS and CAPS shall not pay for child care during any period of time when another federal or state program, such as **Head Start** or Georgia's Pre-K Program, has paid for a child's care for the same service period, unless DECAL authorizes the use of layered federal or state funding in writing.
 - A. CAPS may recoup any payments for subsidies issued when another federal or state program has covered the cost of child care if DECAL had not previously authorized the use of layered federal funding in writing.
- 12.4.11.3 The provider shall not bill CAPS and CAPS shall not pay for child care during any period of time when child care services are subsidized in full as part of the parent's employment.

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- A. CAPS may recoup any payments for subsidies issued when it is discovered that an employer has covered the cost of child care.

12.4.12 Change in Provider Rates

- 12.4.12.1 If a provider changes its rates, rates must be updated in the CAPS administration and payment system. CAPS will make adjustments to child care scholarships according to the new rates no later than 30 calendar days after rates have been provided.

12.4.13 Invoices

- 12.4.13.1 All child care providers must submit invoices electronically through the CAPS administration and payment system. Any child care provider that does not submit invoices through the CAPS administration and payment system will not receive its reimbursement and may not participate in the CAPS program.
- 12.4.13.2 The provider shall submit invoices that accurately report information about attendance in the CAPS administration and payment system within 60 calendar days of providing services. Invoices not submitted within 60 calendar days of service will delay payments to the provider. Invoices submitted after 90 calendar days of services will not be processed for payment and will not be reimbursed.
- 12.4.13.3 Payments of all invoices submitted by the provider that have been identified by the CAPS administration and payment system to have a potential billing error will be placed on a temporary hold for further review and verification by CAPS and may be subject to adverse action. Any adjustments of future payments that are made as a result of internal or provider error, intentional or not, are not appealable.
- 12.4.13.4 Invoices that are determined to be inaccurate, misleading, or false shall be subject to recoupment, sanctions up to and including dismissal and disqualification from CAPS, or may be referred for investigation or prosecution.

12.4.14 Overpayments

- 12.4.14.1 The provider shall refund any overpayments assessed by DECAL or its representatives. Overpayments may include any amounts received in error as a result of the provider's error or automation error.
- 12.4.14.2 The CAPS program may offset all future subsidy payments until the overpayment is paid in full or pursue any and all legal actions DECAL deems appropriate which are permissible under state and federal law to recover overpayments.
- 12.4.14.3 The provider shall assume responsibility for all billing to the CAPS program and is legally responsible for overpayments resulting from erroneous billing and inaccurate invoices. Providing billing passwords and identification access to others does not reduce accountability or repayment of any overpayments resulting from incorrect billing.
- 12.4.14.4 Payment disputes, questions, and concerns can be addressed through CAPS. Providers must request an appeal in writing. The written request must be postmarked by the deadline listed on the notice or within 14 **calendar days** from the date of the notice on an appealable or **adverse action** taken by DECAL. Refer to the [CAPS Administrative Hearings Policy \(CAPS/00-18\)](#).

12.4.15 Adverse Actions

- 12.4.15.1 Adverse actions are penalties for noncompliance with CAPS policies and rules, including sanctions for program integrity violations and enforcement actions related to health and safety standards.
- A. **Suspension** refers to payments on an active scholarship placed on hold for a specified period of time as determined by DECAL. Payments to a provider will be suspended for:

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Provider Action	DECAL Response
Failure to submit W9, 704, provider agreement, and direct deposit form to CAPS by the date requested.	Payments will be released to the provider once all documents are submitted to CAPS. Payments will be withheld for no more than 30 calendar days before the provider is dismissed from CAPS.
Failure to comply with mandatory health and safety training as prescribed in CAPS Health and Safety Standards Policy (CAPS/00-15)	Payments will be released to the provider once the mandatory training is completed. Payments will be withheld for no more than 30 calendar days before the provider is dismissed from CAPS.
Failure to complete licensing inspections (licensed providers) or monitoring visits (license-exempt and informal providers)	Payments will be released to the provider once the provider has cooperated with the required inspection. Payments will be withheld for no more than 30 calendar days before the provider is dismissed from CAPS.
License is suspended (applies to licensed providers only)	Payments will be released to the provider for service weeks before or after the suspension is lifted. The provider will not be eligible to receive payments during service weeks the license is suspended.

- B. **Dismissal** refers to the action taken to remove a child care provider from the CAPS program for failure to comply with DECAL policies or federal or state laws and regulations. Providers will be dismissed as follows:
- (1) Thirty-one (31) calendar days after DECAL suspends payments for (a) failure to submit a W9, 704, Child Care Provider Agreement, or direct deposit form, (b) failure to comply with mandatory training (provider may be reinstated once all required training is completed), or (c) failure to comply with monitoring checklist requirements (informal provider will have to begin the enrollment process again);
 - (2) When their license has been revoked and all appeal rights have been exhausted;
 - (3) When their exemption status has been rescinded;
 - (4) When they fail to comply with an investigation and/or a repayment statement;
 - (5) When they knowingly or intentionally keep an employee on staff with an unsatisfactory record check or without a satisfactory record check when children are in care;
 - (6) When they knowingly or intentionally keep a resident at the facility with an unsatisfactory record check or without a satisfactory record check; and
 - (7) When licensed providers allow their **Quality Rated** rating to expire. See [CAPS Participating Providers Policy \(CAPS/00-11\)](#).
 - (8) At the sole discretion of CAPS, a licensed provider may be dismissed from CAPS when serious health and safety violations occur even if DECAL has not revoked the provider's license.
 - (9) At the sole discretion of CAPS, a license-exempt or informal provider may be dismissed from CAPS when serious health and safety violations occur even if DECAL has not rescinded the provider's exemption or informal provider status.
 - (10) Violation of CAPS policy. Dismissal will be based on the severity of the violation of policy, after a DECAL review has been conducted.
- C. **Disqualification** refers to a time-limited or permanent status that disallows child care providers from participating in CAPS for failure to comply with DECAL policies or federal or state laws and regulations. Providers may be disqualified due to the following:

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- (1) Debarment or removal from any other federal or state program (disqualification will span a period of seven years plus any period thereafter that funds are still outstanding)
- (2) Failure to repay funds (disqualification will be lifted once the overpayment is paid in full)
- (3) Violation of CAPS policy. The period for disqualification will be based on the severity of the violation of policy, after a DECAL review has been conducted.
- (4) **Fraud** conviction by state court, federal court, and/or Attorney General's Office (disqualification will be permanent)
- (5) **Serious injury** as defined in [Definitions and Acronyms](#)
- (6) At the sole discretion of CAPS, a licensed provider may be disqualified from CAPS when serious health and safety violations occur even if DECAL has not revoked the provider's license.
- (7) At the sole discretion of CAPS, a license-exempt or informal provider may be disqualified from CAPS when serious health and safety violations occur even if DECAL has not rescinded the provider's exemption or informal provider status.

12.4.16 Reinstatement

Under certain conditions, at DECAL's discretion, providers who have been dismissed or disqualified for CAPS may be reinstated into the program. Providers may be reinstated as follows:

Provider Action	DECAL Response
Failure to submit W9, 704, Child Care Provider Agreement, or direct deposit form	Reinstatement may occur once all documents are submitted. If reinstatement does not occur within 30 calendars of being dismissed, the provider will have to begin the enrollment process again.
Failure to complete mandatory training requirements	Reinstatement may occur if the provider completes mandatory training requirements within 30 calendar days of the notification of dismissal. If training occurs after the 30 days, the provider will have to complete the enrollment process.
Revocation (cancellation) of license	Reinstatement may occur if license revocation has been rescinded per DECAL guidelines. Providers may have to submit verification of license reinstatement.
Exemption status revoked	Reinstatement may occur if exemption status has been reinstated per DECAL guidelines.
Monitoring Checklist	Reinstatement may occur when compliance of the monitoring checklist has been satisfied. If reinstatement does not occur within 30 calendar days of being dismissed, the provider will have to begin the enrollment process again.
Disqualified for unpaid overpayment	Reinstatement may occur one year from the date of dismissal once the overpayment is paid in full.
Debarment by other federal or state program	Reinstatement may occur when removed from debarment list.
Allow their Quality Rated rating to expire	Reinstatement may occur one (1) year from the date of dismissal once CAPS/Quality Rated Provisional Status has been granted by Quality Rated .

12.4.17 Tax Identification Reporting

Providers are responsible for paying social security, federal, and state taxes. Tax form 1099 will be released each January detailing funds received for the previous calendar year for programs that are responsible for filing taxes. Providers can consent to receive 1099's electronically or by mail annually and will have the option to change consent at any time.

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12.4.18 Warranties, Representations and Covenants

- 12.4.18.1 To the extent allowed by law, the provider agrees to hold DECAL, CAPS, their employees, agents, contractors, and successors harmless from any overpayments resulting from any action performed by DECAL or its representatives or by the provider and its agents, employees, or subcontractors.
- 12.4.18.2 The provider shall not assert in any manner that DECAL or CAPS is its sponsoring agency.
- 12.4.18.3 The provider acknowledges and agrees to the terms and conditions as stated on DECAL and CAPS program compliance documents, notifications, invoices, websites, and child care scholarships.
- 12.4.18.4 The provider understands and agrees that its entity, employees, or agents are not the partner, employee, or agent of DECAL or its contractors and will not represent itself as a partner, employee, or agent working on behalf of DECAL.
- 12.4.18.5 The provider acknowledges and agrees that in accordance with 45 CFR 98.30(C)(6), child care scholarships shall be considered a benefit to the child for child care services and shall not be considered a grant or contract to the provider.

POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Added requirement that providers ensure parents have unlimited access to their children when children are in the care of the provider and added requirement that, upon notice from CAPS, providers enter their child care rates and any changes to their rates in DECAL KOALA, DECAL's provider self-service website (www.decalkoala.com).
10/01/2018	Added provider reporting requirement; added that federal law prohibits CAPS from reimbursing a child care provider who has had a serious injury (as defined as defined in Definitions and Acronyms); and added serious injuries to the list of circumstances that result in disqualification from CAPS. Added requirement that Quality Rated eligible providers be star rated by December 31, 2020, in order to continue to receive Child Care and Parent Services (CAPS) funding. Clarified that for children with disabilities and children in DFCS custody, CAPS will approve a negotiated rate for informal providers should their rate exceed the maximum reimbursement rate.
02/01/2019	Revised policy to align with the following revisions to other sections of CAPS policy. CAPS policy was reorganized on February 1, 2019, by replacing Improper Payments (CAPS/00-15) and Disqualifications and Sanctions (CAPS/00-16) policies with Health and Safety Standards (CAPS/00-15) and Program Integrity (CAPS/00-16) policies. The new Program Integrity Policy is composed primarily of relevant information that already existed in other sections of CAPS policy, as well as additional details relating to program integrity prevention, detection, and investigation processes that were already in practice within the CAPS program but were not outlined in CAPS policy. The new Health and Safety Policy is composed of relevant information that already existed in CAPS policy as well as additional details relating to health and safety monitoring and enforcement for license-exempt and informal providers.
07/01/2019	Revised language related to criminal backgrounds checks to clarify that keeping a staff or resident without a satisfactory record check will result in dismissal and disqualification from CAPS.
10/01/2019	Revised language related to electronic signature. Added that providers acknowledge and agree child care scholarships are a benefit to the child for child care services and not grants or contracts to the provider. Revised language noting that the appeal period is the deadline listed on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.

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Date	Description of Change
05/15/2020	Added information related to eligible providers. Clarified that when multiple types of care are provided within the same service week (i.e., full time, part time, before and/or after), the maximum rate CAPS will reimburse to the provider is the state maximum rate for full time care or the provider's published rate for full time care for children in DFCS custody and children with qualifying disabilities. Removed requirement that Quality Rated eligible providers be Quality Rated by December 31, 2020, to allow for an extension of the requirement's implementation date.
11/02/2020	Added language noting providers must ensure they are operating within the guidelines as prescribed in CAPS Participating Providers Policy (CAPS/00-11) when the parent of the eligible child is receiving CAPS subsidies at the location child care services are rendered. Added language clarifying expectations for reporting excessive unexplained absence.
07/01/2021	Added CAPS/Quality Rated deadline date and milestone dates for licensed providers.
10/01/2021	Added language to note the provider is responsible for submitting complete and accurate contact information, including email address. The email address will be used as the primary contact to communicate and send information to the provider. Removed milestone language regarding CAPS/Quality Rated goal. Added additional information on Quality Rated can be viewed in the CAPS/Quality Rated Guidelines and Requirements (Appendix II). Revised CAPS/Quality Rated Probationary Status and CAPS/Quality Rated Provisional Status language to clarify the provider will be enrolled in a Cohort Group as directed by Quality Rated. Added language to note licensed providers that choose not to enroll in Quality Rated will not be eligible to receive child care subsidy payments. Providers currently participating in CAPS will be dismissed from the CAPS program. Added language to note a licensed provider can be reinstated one year from the date of dismissal once CAPS Quality Rated Provisional Status has been granted by Quality Rated.
11/15/2023	Added language to clarify appeals/fair hearing requests must be postmarked in writing by the deadline posted on the notice within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL as applicable throughout this section. Revised language to clarify failure to comply with all applicable local, state, and federal ordinances, regulations, and policies will deem a provider out of compliance and may lead to adverse actions as deemed appropriate by CAPS including but not limited to, suspension, recoupment of funds, dismissal or disqualification from CAPS. Revised language to clarify providers currently participating in the CAPS program who allow their Quality Rated rating to expire will be dismissed. Added language regarding Quality Rated Tier Reimbursement. Revised language to add that providers must submit all required documents and application approved prior to receiving a scholarship for CAPS. Added language to clarify a child must have attended the provider at least once to claim a holding slot. Revised language to add all child care providers must submit invoices electronically through the Georgia Childcare Administrative and Payment System (GACAPS). Any child care provider that does not submit invoices through GACAPS will not receive its reimbursement and may not participate in the CAPS program. Added language for DECAL response if a child care provider's license is suspended. Revised language to add payments of all invoices submitted by the provider that have been identified to have a potential billing error by GACAPS will be placed on a temporary hold for further review and verification by CAPS and may be subject to adverse action. Any adjustments of future payments that are made as a result of internal or provider error, intentional or not, are not appealable. Added DECAL Response for licensed providers with a suspended license. Added language to clarify providers may be suspended, dismissed, or disqualified for health and safety violations that are not explicitly defined in this policy and are not subject to appeal. Revised language to add providers can consent to receive 1099's electronically or by mail annually and will have the option to change consent at any time.
10/01/2024	Revised language to clarify the program contact's email address submitted will be used as the designated email to receive all communications. Revised language to clarify the provider is responsible for maintaining correct contact information and must report all changes in contact information within five business days of the change. Revised language to clarify how providers need to submit changes in contact information. Removed language regarding Quality Rated Tier Reimbursement. Revised language to clarify CPR and first aid health and safety standards for informal providers participating in CAPS. Revised language to add at DECAL's sole discretion, providers currently receiving or anticipating

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Date	Description of Change
	receipt of subsidies through CAPS may be required to submit additional documents. Changed Reconsideration for Overpayments section title to Reconsideration and Fair Hearings. Revised language to clarify where providers need to submit provider rates and removed requirement that, upon notice from CAPS, providers enter their child care rates and any changes to their rates in DECAL KOALA, DECAL's provider self-service website (www.decalkoala.com).
11/18/2024	Renamed "GACAPS" to "CAPS administration and payment system" where applicable in this section.
07/01/2025	Revised language to clarify CAPS enforcement and adverse actions for health and safety violations and violations of CAPS policy.
03/02/2026	Updated language to clarify that DECAL may deem a provider out of compliance during review or investigation and impose appropriate adverse actions, including suspension, recoupment, or disqualification.

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LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99

Cross Reference/See Also: CAPS Family Unit Policy (CAPS/00-5), CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Income Calculations Policy (CAPS/00-8), CAPS Purchase of Child Care through Scholarships Policy (CAPS/00-10)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

13 CASE CHANGES AND DOCUMENTATION

13.1 Purpose

At the time of **application** and redetermination, **parents** are notified of the importance of reporting changes in family circumstances or child care **providers**. The purpose of this policy is to provide guidelines on what changes should be reported to the **Childcare and Parent Services (CAPS)** program and provide details on situations that require case changes.

13.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, parents, and child care providers who receive subsidies administered by DECAL on behalf of parents.

13.3 Case Management Best Practices and Responsibilities

CAPS staff should provide the highest quality of customer service to both internal and external customers. All documentation required to verify changes in case status must be acquired, filed, and documented in the **case record**. CAPS staff must ensure that all data entered in CAPS systems are accurate and current.

13.4 Change in Family Circumstances

13.4.1 The CAPS case may be reviewed when there is a change in the family's circumstances. Some changes, while not required to be reported, will result in an increased benefit for the family by reporting them.

13.4.2 The following is a list of changes that the parent may, but is not required to, report:

- Change in family's income if **gross applicable income** remains at or below 85% of the current **State Median Income (SMI)**
- Child birth, adoption, or addition of a new child
- Marriage
- Change in state-approved activity that is temporary and the activity may resume

13.4.3 The following is a list of changes that the parent is required to report within 10 **calendar days** of becoming aware of the change:

- Change in family's **gross applicable income** where the income is above 85% SMI for a minimum of four consecutive weeks
- Change in activity that is not temporary (e.g., loss of **employment**, graduation from school or training activity)
- Request for change in child care provider
- Any change in child care arrangements (including child care provider's location, relationship of the provider and the child, cost, or need for care).
- There is no longer a need for CAPS services
- Family moves out of the state of Georgia
- Change in contact information (e.g., phone number, email address, mailing address)

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- 13.4.4 When a new child is added to an existing CAPS case, they will receive a new eligibility period. The eligibility period for the existing children on the case will be extended to align with the added child's eligibility period.

13.5 Verification

- 13.5.1 The parent may be required to submit verification documents for any reported change as prescribed in [CAPS Eligibility Requirements Policy \(CAPS/00-6\)](#) and [CAPS Income Calculations Policy \(CAPS/00-8\)](#). The parent will be given a specific time period to submit the supporting documents and information. Verification documents may be submitted in person, by mail, or online through the state's integrated eligibility system.

13.6 Change Status and Dispositions

- 13.6.1 CAPS staff have up to 14 calendar days from the date of the change report to provide the parent with a written disposition of the change request.
- 13.6.2 The change request may be disposed as unable to process for either of the following reasons:
- 13.6.1.1 It is a duplicate change.
 - 13.6.1.2 The parent did not provide all required information and verifications to process the change request by the specified due date.

13.7 Changing Child Care Providers

- 13.7.1 When choosing to change child care providers, the parent must notify CAPS. Scholarships with the previous child care provider must be expired and scholarships must be authorized and issued to the new provider.
- 13.7.1.1 Whenever possible, services at the new provider should start at the beginning of a new **service week**. If care at a new provider is needed any time after the service week has begun, payments should reflect authorization based on services provided. If a child attends more than one provider during the service week based on the change, payment can be authorized for both the old and new provider, as long as the child attended at least one day of service.
 - 13.7.1.2 If a child care provider has been dismissed from the CAPS program due to failure to comply with **Quality Rated**, the family may continue with the provider for up to 60 calendar days.
 - 13.7.1.2.1 If the family has 60 days or less remaining in their current eligibility period and has not selected a new provider, the scholarships will continue at the current provider through the end of their current eligibility period.
 - 13.7.1.2.2 If the family is determined eligible for ongoing services at redetermination, the parent must notify CAPS of the selected provider within 45 calendar days after the determination of eligibility. If a provider is not selected and reported to CAPS by the end of the 45-day period, the case may close.
- 13.7.2 When a parent initiates a change in providers without notifying CAPS and there is not a **child care scholarship** that authorizes subsidies with the new provider, the parent is responsible for the full cost of the child care. CAPS will not pay for services retroactively for any period prior to authorization.
- 13.7.3 **Registration fees for provider changes:** The CAPS program will only pay one registration fee per eligibility period per child per unique provider. CAPS authorizes up to \$65 in registration fees per child. CAPS does not pay registration fees for care authorized in informal provider settings.

Note: CAPS does not pay for other costs, including but not limited to, transportation, meals, activity fees, or book fees that are separate from the weekly rates established by the provider.

13.8 Non-temporary change in state-approved activity

- 13.8.1 CAPS parents who permanently lose their employment or stop attending education/training programs 13 weeks or more prior to the end of their current eligibility period will be allowed job search as an approved activity for 13 weeks from the date the activity ended.

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13.8.1.1 If the parent resumes participation in a state-approved activity at any level during the 13-week job search period, on-going child care can continue for the duration of the existing eligibility period.

13.8.1.2 If the parent does not resume participation in a state-approved activity at any level during the 13-week job search period, the case will close at the end of the 13-week job search period.

13.8.2 CAPS parents who permanently lose their employment or stop attending education/training programs with 12 weeks or less remaining in their current eligibility period will remain eligible for on-going childcare through the end of their current eligibility period. At annual redetermination, the parent must meet applicable state-approved activity requirements.

13.8.3 CAPS parents who are found not to be in an eligible state-approved activity as prescribed in [CAPS Eligibility Requirements Policy \(CAPS/00-6\)](#) due to an **administrative error** will be allowed job search as an approved activity for 13 weeks from the date the case correction was authorized.

13.8.3.1 If the parent resumes participation in a state-approved activity at any level during the 13-week job search period, on-going child care can continue for the duration of the existing eligibility period.

13.8.3.2 If the parent does not resume participation in a state-approved activity at any level during the 13-week job search period, the case will close at the end of the 13-week job search period.

13.9 Case Suspensions

The term **suspension** shall apply when payments on an active scholarship are placed on hold for a specified period of time as requested by the parent or as determined by DECAL.

13.9.1 CAPS cases may be suspended for the following reasons:

Suspension Reason	Description
Child not in Care	When a child will not be in care for an extended period of time, the case may be suspended. A. Absenteeism of the child may include: vacation, extended illness, or other extenuating circumstances. B. Suspension for children not in care should not extend beyond three weeks per eligibility period.
Parent Request	Cases may be suspended at the request of the parent. A. Reasons a parent may request a case suspension include, but are not limited to, the following: - Place of employment or educational program is seasonally closed (e.g., public school employees and students) - Maternity leave after the birth or adoption of a child - There is no longer a need for CAPS services B. Suspension by parent request should not extend beyond the current eligibility period.

13.9.2 When the child care case is suspended, the case will remain open; however, CAPS will not make subsidy payments.

13.9.3 The parent must be informed, and the child care provider notified that any charges during the time CAPS does not make subsidy payments are to be negotiated between the parent and the provider.

13.9.4 In the case of all suspensions, the parent must contact CAPS to have their case reinstated.

13.10 Case Closures

13.10.1 There are instances where the CAPS case may be closed during the eligibility period. When the CAPS case is being closed, the parent and the child care provider will be notified no later than 14 calendar days prior to the closure.

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13.10.2 The following is a list of reasons for CAPS case closures:

- The family's income exceeds 85% of the current SMI for a period of four or more consecutive weeks.
- There has been a **program violation** and the **sanction** is closure of the child care case.
- There are excessive unexplained absences, and the parent cannot be reached using the most recently provided contact information. Excessive unexplained absence occurs when it is confirmed that CAPS subsidies have not been used by the parent for authorized children, with no contact or previous notification of absence, for a period of at least 30 calendar days. CAPS will attempt to contact parents through each communication channel available (phone, mail, and email) at least two times prior to closing their case for abandonment.
- The parent fails to respond to or honor the Child Care Claim and Repayment Statement, or the parent fails or refuses to cooperate with an investigation conducted by DECAL investigative staff.
- The family has moved out of the state of Georgia

13.11 Eligibility Case Records

13.11.1 The CAPS program will maintain ongoing records regarding the parent's eligibility and participation in the program until the closure of the case and for a minimum of three years thereafter.

13.11.2 The case records will include all verification used to determine eligibility, as well as notes, written records, system records, forms, and documentation from the CAPS program regarding the parent's participation in eligibility.

13.11.3 Cases where there is an active **claim**, on-going investigation, or outstanding hearing must be held until the claim has been satisfied, the investigation has been dispositioned, or the hearing process has been completed.

POLICY REVISION HISTORY

Date	Description of Change
03/26/2018	Changed 50% SMI to 85% SMI in section 13.4, related to income changes PA is required to report.
07/02/2018	Added statement that CAPS will attempt to contact parental authorities at least two times prior to closing their case for abandonment.
10/19/2018	Removed a change in child's citizenship status from the list of changes parental authorities are required to report.
07/01/2019	Revised language to clarify that CAPS will pay one registration fee per child per unique provider per calendar year. Revised language related to non-temporary changes in state-approved activity to limit job search as an allowed activity to parental authorities with more than 13 weeks remaining in their current eligibility period. Removed the 13-week suspension period that previously followed job search for non-temporary changes in state-approved activity.
11/02/2020	Renamed abandonment to excessive unexplained absences.
10/01/2021	Added language to state verification documents may be required to process the change. Added language to state CAPS staff have up to 14 calendar days to provide a written disposition of the change request. Added language to state the change request may be disposed as unable to process.
11/15/2023	Added language to clarify if a child care provider has been dismissed from the CAPS program due to failure to comply with Quality Rated, the family may continue with the provider for up to 60 calendar days. If the family has 60 days or less remaining in their current eligibility period and has not selected a new provider, the scholarships will continue at the current provider through the end of their current eligibility period. If the family is determined eligible for ongoing services at redetermination, the parent must notify CAPS of the selected provider within 90 calendar days

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Date	Description of Change
	after the determination of eligibility. If a provider is not selected and reported to CAPS by the end of the 90-day period, the case may close.
11/18/2024	Revised language to change additional 90 calendar days to additional 45 calendar days for the family to notify CAPS of the selected child care provider. Revised language to clarify the CAPS program will only pay one registration fee per eligibility period per child per unique provider. Added there is no longer a need for CAPS services as a case suspension reason. Revised language to clarify case suspension by parent request should not extend beyond the current eligibility period. Removed voluntary withdrawal as one of the case closure reasons.
03/01/2025	Added language to add when a new child is added to an existing CAPS case, they will receive a new eligibility period. The eligibility period for the existing children on the case will be extended to align with the added child's eligibility period.
03/02/2026	Revised language to add when job search will be applied due to an administrative error.

CAPS Policy – Annual Redetermination	No.: CAPS/00-14	Effective Date:	10/01/2016
		Revised:	10/06/2025
		Revision Effective:	10/06/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Eligibility Requirements Policy (CAPS/00-6)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

14 ANNUAL REDETERMINATION

14.1 Purpose

Redetermination is the verification of continued eligibility for **Childcare and Parent Services (CAPS)**. The purpose of this policy is to establish guidelines for the annual redetermination of continued eligibility.

14.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

14.3 Policy Content and Guidelines

- 14.3.1 Redeterminations shall be processed in the same manner as applications with the exception of being required to be part of at least one CAPS priority group as prescribed in [CAPS Priority Groups Policy \(CAPS/00-7\)](#). Families shall not be required to re-verify circumstances that have already been verified and are not questionable or subject to change (e.g., identity, citizenship, social security numbers).
- 14.3.2 Families that qualify as a member of a specific CAPS priority group as prescribed in [CAPS Priority Groups Policy \(CAPS/00-7\)](#) at redetermination, may need to provide supporting documentation to meet program eligibility.
- 14.3.3 CAPS eligibility shall be re-determined before the end of the current **eligibility period** to ensure the family remains eligible for services. Eligibility shall terminate at the end of the eligibility period, unless the redetermination is completed and the family is determined eligible for on-going services. If determined eligible for ongoing services, the new eligibility period will begin after the prior eligibility period is completed.
- 14.3.4 Parents and their child care provider shall be notified of the redetermination at least 45 **calendar days** prior to the family's redetermination due date.
- 14.3.5 Each redetermination period requires the completion of a new application for services, supporting documents, and an interview with the parent (except for children in Georgia Division of Family and Children Services (DFCS) custody).
 - 14.3.5.1 Parents can participate in the interview via phone, in person, or virtually.
 - 14.3.5.2 Failure to participate in the interview may result in closure of the case.
- 14.3.6 Parents will be required to submit verification documents as prescribed in [CAPS Eligibility Requirements Policy \(CAPS/00-6\)](#) and [CAPS Income Calculations Policy \(CAPS/00-8\)](#). The parent will be given a specific time period to submit the supporting documents and information. Verification documents may be submitted in person, by mail, or online through the state's integrated eligibility system.
- 14.3.7 Redetermination documents submitted on or before the end of the current eligibility period shall be processed. If all required documents are not submitted on or before the end of the current eligibility period, the case may close. If a case is closed for failure to submit all required documents, families may reapply as a new applicant and must meet all applicable eligibility requirements for new applicants.
- 14.3.8 The entire redetermination of eligibility process must be completed before the current scholarships expire to prevent disruption of child care services. This includes receipt and review of all documents, interviews, and notifications of on-going services.

CAPS Policy – Annual Redetermination	No.: CAPS/00-14	Effective Date:	10/01/2016
		Revised:	10/06/2025
		Revision Effective:	10/06/2025

- 14.3.9 At redetermination, if a family's gross applicable income increases but remains at or below the maximum allowable federal limit of 85% SMI, the family is eligible to remain in the program. The family fee will be calculated at redetermination based on the family's current gross applicable income.
- 14.3.10 If a family is determined eligible for on-going services, CAPS staff will provide consumer education information as prescribed in [CAPS Application Process Policy \(CAPS/00-4\)](#).
- 14.3.11 If a family is no longer eligible for services, the parent and child care provider must be properly notified of ineligibility within one day of the determination, providing 14 calendar days for adverse actions.

POLICY REVISION HISTORY

Date	Description of Change
03/26/2018	Removed reference to Graduated Phase-out in section 14.3.
07/01/2019	Revised language to note that a case will close if all required documents are not submitted on or before the end of the current eligibility period.
10/01/2019	Revised language to note that CAPS will provide 14 days' notice of adverse actions.
10/01/2021	Revised language to clarify redeterminations are processed in the same manner as applications, except being part of at least one of CAPS priority groups. Added language to clarify if a family identify with one of CAPS priority groups at redetermination, they may have to provide supporting documentation to support program eligibility. Revised language to clarify the case shall terminate at the end of the eligibility period, not the end of the redetermination month. Revised language to note the interview can be conducted via phone, in person, or virtually. Removed email and fax as a source to submit redetermination verification documents. Added language that CAPS staff will provide consumer education information to families eligible for ongoing services.
07/01/2024	Revised language to add most families are not required to be part of at least one CAPS priority group as prescribed in CAPS Priority Groups Policy (CAPS/00-7) at redetermination. Families of children enrolled in Georgia's Pre-K Program at initial or previous eligibility determination must qualify as a member of a specific CAPS priority group at redetermination.
03/01/2025	Revised language to change CAPS eligibility shall be re-determined before the end of the current eligibility period to ensure the family remains eligible for services. Added if determined eligible for ongoing services, the new eligibility period will begin after the prior eligibility period is completed.
10/06/2025	Revised language to remove priority group status requirements at annual redetermination for families enrolled in Georgia's Pre-K program priority group.

CAPS Policy – Health and Safety Standards	No.: CAPS/00-15	Effective Date:	10/01/2016
		Revised:	07/01/2025
		Revision Effective:	07/01/2025

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Participating Providers Policy (CAPS/00-11), CAPS Program Integrity Policy (CAPS/00-16), Rules and Regulations for Child Care Learning Homes and Family Child Care Learning Homes

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

15 HEALTH AND SAFETY STANDARDS

15.1 Purpose

The purpose of this policy is to establish guidelines for protecting the health and safety of children who receive CAPS.

15.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

15.3 Compliance Standards for all Providers Participating in CAPS

- 15.3.1 All providers participating in CAPS must comply with reporting requirements. Licensed providers must comply with reporting requirements as prescribed in Georgia child care licensing rules. License-exempt and informal providers must comply with reporting requirements as prescribed in the [Health and Safety Standards for License-exempt Providers Receiving Subsidy manual](#) and [Health and Safety Standards for Informal Providers Receiving Subsidies manual](#).
- 15.3.2 All providers participating in CAPS must comply with DECAL's [Comprehensive Background Check policy](#).
 - 15.3.2.1 The comprehensive records check must be processed by DECAL, and the **comprehensive records check determination** letter must be issued by DECAL. Any other fingerprint or records check, including those conducted by other state or federal agencies, will not satisfy the CAPS requirement.
 - 15.3.2.2 All staff and residents of licensed, license-exempt, and informal providers participating in CAPS must meet DECAL's background check requirements or they cannot be present in a child care program or reside at the location while children are present for care.
 - 15.3.2.3 An individual must undergo an additional Comprehensive Records Check at least every five years or when that individual has not worked in the child care industry for six months or longer.
- 15.3.3 All providers participating in CAPS must maintain original and accurate arrival and departure records and transportation records (if applicable) for a minimum of three years from the last date service is provided. The primary purpose of arrival and departure records and transportation records is to account for each child in care and to protect the health and safety of children. For CAPS purposes, these records will also be used as evidence that care was provided. If there is an open investigation, or an open compliance review, providers, including providers who have closed or have been dismissed from the CAPS program, are required to maintain records beyond the three-year period until the investigation is completed, as prescribed in [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#). If it is determined through provider self-reporting, compliance reviews, or investigations that the provider failed to maintain arrival and departure records with the parent or authorized representative's electronic signature, CAPS must recoup the amount of any child care subsidies paid for any portion of the review period for which the provider failed to maintain acceptable records.

Note: Refer to DECAL's website for sample arrival and departure records:
<http://dec.al.ga.gov/BftS/FormList.aspx?cat=Child%20Care%20Learning%20Center>

- 15.3.3.1 Arrival and departure records must have the **parent's** or authorized representative's original or **electronic signature** obtained at arrival and departure each time the **parent** or authorized representative drops off and picks up the child.

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- A. If the **parent** is present at either arrival or departure, transportation records cannot be used to support children's attendance for CAPS purposes.
- B. If the parent is not present to sign at both arrival and departure, **transportation records** can be used to support children's attendance, providing that:
 - (1) There is a valid transportation agreement, completed prior to providing transportation, on file with the provider signed by the parent giving authorization for transportation of the child to and/or from the provider (whether the transportation is provided by the provider itself or an outside entity contracted to provide transportation); and
 - (2) There is a passenger transportation checklist that lists the children on the transportation schedule as well as signatures of the party responsible for monitoring the checklists.
 - (3) Transportation records must be accurate, current, and complete in accordance with licensing rules and regulations and immediately available for review upon request.
- C. If a provider chooses to use an electronic system, each parent must have their own unique **electronic signature**. The provider is required to have their own unique electronic signature that would allow DECAL or its representatives to discern parent sign in and out from that of the provider. The electronic system must record and display who signed the child in and out as well as when and how the child was signed in and out.

15.4 Compliance Standards for Licensed Providers

- 15.4.1 Licensed providers must complete CAPS orientation, participate in training and technical assistance required by the CAPS program and must comply with all licensing requirements.
- 15.4.2 Rules and guidance for licensed programs can be found at <http://dec.al.ga.gov/CCS/RulesAndRegulations.aspx>.

15.5 Compliance Standards for License-exempt and Informal Providers

- 15.5.1 License-exempt providers (including all staff) and informal providers must comply with health and safety standards as defined by DECAL. For detailed information on health and safety standards, refer to the [Health and Safety Standards for License-exempt Providers Receiving Subsidy manual](#) and the [Health and Safety Standards for Informal Providers Receiving Subsidy manual](#).
- 15.5.2 License-exempt and informal providers must provide care that meets state health and safety standards as reflected in the health and safety monitoring checklists.
- 15.5.3 Additionally, license-exempt and informal providers must have evidence of completing pediatric cardiopulmonary resuscitation (CPR) and pediatric first aid training, CAPS orientation, center/program orientation, health and safety orientation training, and 10 hours of training each calendar year thereafter.
 - 15.5.3.1 Informal providers must provide evidence of completing pediatric CPR and pediatric first aid training *prior to authorization of CAPS subsidy* and complete training within 45 days of enrollment.
 - 15.5.3.2 License-exempt providers must ensure all staff complete training and pediatric CPR training within 45 days of employment.
 - 15.5.3.3 Prior to assignment to children or task, all employees (i.e., volunteers, students-in-training, independent contractors, etc.) and provisional employees must receive initial Center/program orientation which must include:
 - The center's/program's policies and procedures;
 - The portions of these rules dealing with the care, health and safety of children;
 - The staff person's assigned duties and responsibilities;
 - Reporting requirements for suspected cases of child abuse, neglect or deprivation;
 - Communicable diseases and serious injuries;
 - Emergency weather plans;

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- The program's emergency preparedness plan;
- Childhood injury control;
- The administration of medicine;
- Reducing the risk of Sudden Unexpected Infant Death (SUID), which includes Sudden Infant Death Syndrome (SIDS);
- Hand washing;
- Fire safety;
- Water safety;
- Prevention of HIV/AIDS and blood borne pathogens.

15.5.3.4 Health and safety orientation training for license-exempt and informal providers must be completed within the first 90 days of employment and may be completed online or through instructor-led courses and must cover, at a minimum, the following topic areas:

- Prevention and control of infectious diseases (including immunization)
- Prevention of sudden infant death syndrome and use of safe sleeping practices
- Administration of medication consistent with standards for parental consent
- Prevention and response to emergencies due to food and allergic reactions
- Building and physical premises safety, including identification of and protection from hazards that can cause bodily injury such as electrical hazards, bodies of water, and vehicular traffic
- Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment
- Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event (such as violence at a child care facility)
- Handling and storage of hazardous materials and the appropriate disposal of bio contaminants
- Precautions in transporting children; recognition and reporting of child abuse and neglect
- Child development to include all major domains: cognitive; social and emotional; physical development and motor skills; communication, language, and literacy; and approaches to play and learning

15.5.3.5 All license-exempt and informal provider supervisory and caregiver personnel, except independent contractors, Students-in-Training and volunteers, must complete ten clock hours of diverse training which is offered by an accredited college, university or vocational program or other DECAL approved source. The annual ten clock hours must include the following:

- At least two hours in evidence based, developmentally appropriate language and literacy practices
- At least two hours in on-going child development and health and safety related topics, which could include, but not be limited to:
 - Child development (e.g., developmental domains (cognitive; social and emotional; physical development and motor skills; communication, language, and literacy; approaches to play and learning), discipline and guidance techniques, children with disabilities)
 - Health (e.g., nutrition and the support of breast feeding, physical activity, prevention and control of illnesses and infectious diseases, immunizations, prevention of and response to emergencies due to food and allergic reactions, cleanliness, sanitation, and the appropriate disposal of bio contaminants);
 - Safety (e.g., prevention of Sudden Unexpected Infant Death (SUID) which includes Sudden Infant Death Syndrome (SIDS) and the use of safe sleeping practices, medication administration, injury control and prevention, transportation, handling and storage of hazardous materials, identification of and protection from hazards that can cause bodily injury such as electrical hazards, bodies of water, and vehicular traffic, and emergency preparedness planning and response)
 - Child abuse and neglect (e.g., identification and reporting, meeting the needs of abused and/or neglected children, prevention of shaken baby syndrome, abusive head trauma and child maltreatment)

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15.5.3.6 DECAL approved training courses can be found at www.gapds.dec.al.ga.gov.

15.5.4 Compliance with health and safety standards will be verified during on-site monitoring visits by DECAL.

15.5.5 Rules and guidelines for all license-exempt providers can be found at <http://www.dec.al.ga.gov/CCS/Exemptions.aspx>.

15.6 Monitoring and Enforcement for Licensed Providers

15.6.1 Licensed programs will be subject to health and safety monitoring and enforcement in accordance with rules and regulations for Child Care Learning Centers and Family Child Care Learning Homes. Rules and guidelines for licensed programs can be found at <http://dec.al.ga.gov/CCS/RulesAndRegulations.aspx>. At the sole discretion of CAPS, a licensed provider may be dismissed from CAPS when serious health and safety violations occur even if DECAL has not revoked the provider's license. See [CAPS Policy 12.4.15](#).

15.6.2 CAPS may suspend payments to a licensed provider for failure to complete licensing inspections. Payments will be released to the provider once the provider has completed the required inspection. Payment will be withheld for no more than 30 calendar days before the provider is dismissed from CAPS. Providers dismissed for failure to complete licensing inspections may be eligible for reinstatement when requirements have been satisfied.

15.6.3 Licensed providers will be dismissed and disqualified from CAPS for the following reasons:

15.6.3.1 License revocation (once all appeal rights have been exhausted) – At the sole discretion of CAPS, licensed providers may reenroll in CAPS if the revocation has been rescinded per DECAL licensing guidelines. Providers may have to submit verification of license reinstatement.

15.6.3.2 When they knowingly or intentionally keep an employee on staff with an unsatisfactory record check or without a satisfactory record check when children are in care.

15.6.3.3 When they knowingly or intentionally keep a resident at the facility with an unsatisfactory record check or without a satisfactory record check.

15.6.3.4 When there is a serious injury as defined in [Definitions and Acronyms](#) in accordance with federal regulations.

15.7 Monitoring and Enforcement for License-exempt and Informal Providers

15.7.1 License-exempt and informal providers shall receive an onsite monitoring visit from DECAL upon enrollment in the CAPS program to evaluate compliance with established health and safety standards. Follow-up monitoring visits will be conducted when non-compliance with these standards are identified, to ensure that corrective actions have been implemented. Depending on the number and/or severity of the non-compliances, a referral may be made to the CAPS program for additional review and potential corrective action.

15.7.2 Providers have the right to refute any findings noted during a monitoring visit. The refutation process will be provided on the monitoring visit report.

15.7.3 When a health and safety standard violation is identified during a monitoring visit, at the sole discretion of CAPS, a license-exempt or informal provider may be disqualified from CAPS when serious health and safety violations occur even if DECAL has not rescinded the provider's exemption or informal provider status.

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		Revised: 07/01/2025
		Revision Effective: 07/01/2025

POLICY REVISION HISTORY

Date	Description of Change
10/01/2018	Added Serious Injury to the list of disqualifying circumstances.
02/01/2019	Reorganized policy by replacing Improper Payments (CAPS/00-15) and Disqualifications and Sanctions (CAPS/00-16) policies with Health and Safety Standards (CAPS/00-15) and Program Integrity (CAPS/00-16) policies. This new Health and Safety Standards Policy is composed primarily of relevant information that already existed in other sections of CAPS policy. In addition to centralizing existing policies, we added details relating to health and safety monitoring and enforcement for license-exempt and informal providers.
07/01/2019	Revised language related to criminal backgrounds checks to clarify that keeping a staff or resident without a satisfactory record check will result in dismissal and disqualification from CAPS.
10/01/2019	Revised language related to electronic signature. Revised language noting appeals must be requested by the deadline listed on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.
11/15/2023	Revised language to add if there is an open compliance review, providers, including providers who have closed or have been dismissed from the CAPS program, are required to maintain records beyond the three-year period until the investigation is completed. Revised language to clarify if it is determined through provider self-reporting, compliance reviews, or investigations that the provider failed to maintain arrival and departure records with the parent or authorized representative's electronic signature, CAPS must recoup the amount of any child care subsidies paid for any portion of the review period for which the provider failed to maintain acceptable records. Revised language to add providers must complete CAPS orientation. Revised language to add that informal providers must complete first aid training prior to the authorization of CAPS. Added language to clarify administrative hearing requests must be postmarked in writing by the deadline posted on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.
10/01/2024	Revised language to clarify CPR and first aid health and safety standards for informal and exempt providers participating in CAPS.
07/01/2025	Revised language to clarify health and safety training requirements for licensed-exempt and informal providers. Revised language to add guidance to monitoring and enforcement requirements for all CAPS providers. Removed CAPS enforcement charts.

CAPS Policy – Program Integrity	No.: CAPS/00-16	Effective Date: 10/01/2016
		Revised: 03/02/2026
		Revision Effective: 03/02/2026

LEGAL AUTHORITY: O.C.G.A § 20-1A-10.1; Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Parent Rights and Responsibilities Policy (CAPS/00-3), CAPS Participating Providers Policy (CAPS/00-11), CAPS Child Care Provider Rights and Responsibilities Policy (CAPS/00-12)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

16 PROGRAM INTEGRITY

16.1 Purpose

The purpose of this policy is to establish guidelines for ensuring integrity and accountability of CAPS funds while maintaining continuity of services, through prevention, detection, investigation, sanction, and recoupment processes.

16.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

16.3 CAPS

- 16.3.1 The CAPS program supports program integrity efforts through data sharing, training, eligibility verification standards, attendance verification standards, provider management, quality assurance reviews, and preemptive disqualification of certain individuals.
 - 16.3.1.1 CAPS will cooperate with other programs and departments within DECAL and other agencies to share information when appropriate to reduce, detect, and prevent **improper payments**.
 - 16.3.1.2 CAPS will provide training to child care providers, parents, vendors, and staff to reduce and prevent improper payments.
 - 16.3.1.3 CAPS will document and verify eligibility in accordance with [CAPS Eligibility Requirements Policy \(CAPS/00-6\)](#), [CAPS Priority Groups Policy \(CAPS/00-7\)](#), and [CAPS Income Calculations Policy \(CAPS/00-8\)](#) to ensure program dollars are going to eligible families for whom assistance is intended.
 - 16.3.1.4 To ensure accountability of funds, CAPS requires all providers submit specified documents (e.g., Child Care Provider Agreement, W9, **published rates**) before receiving an initial CAPS payment and annually thereafter, as prescribed in [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#). CAPS ensures all CAPS providers comply with initial enrollment and annual renewal requirements.
 - 16.3.1.5 CAPS requires that **arrival and departure records** and **transportation records** (if applicable) are maintained for three years as prescribed in [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#) and [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#) to verify that authorized services were provided.
 - 16.3.1.6 CAPS will conduct quality assurance reviews of eligibility determinations and utilize results to inform process improvements and identify training needs.
 - 16.3.1.7 CAPS will conduct attendance verification assessments of provider billing and utilize results to inform process improvements and identify training needs.
 - 16.3.1.8 At DECAL's sole discretion and not subject to review or appeal, responsible principals or individuals (as defined in 7 C.F.R. 226.2), providers, corporate partners, business entities, and officers may be dismissed and disqualified from CAPS and shall not be enrolled in, participate in, financially benefit from, or be involved in any aspect of CAPS when they are terminated or disqualified by the Office of Inspector General (OIG) with the U.S. Department of Health and Human Services, by the Child and Adult Care Food Program

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(CACFP), or by the Summer Food Service Program (SFSP). This includes anyone receiving CAPS funds who may have participated in the cause of the deficiency. For CACFP and SFSP, the disqualification will span seven years from the day of disqualification or until the entity is removed from the CACFP/SFSP disqualification list.

Individuals, providers, corporate partners, business entities, and officers of providers disqualified from CAPS shall not be enrolled in, participate in, financially benefit from, or be involved in any aspect of CAPS.

16.4 Parents

16.4.1 Parents support program integrity efforts by complying with [CAPS Parent Rights and Responsibilities Policy \(CAPS/00-3\)](#). Most notably, parents are expected to provide accurate, current, and complete information, report certain changes, comply with on-going eligibility reviews and investigations, and ensure their children are signed in and out of care each day.

16.4.2 CAPS will detect potential program integrity concerns related to child care cases during the eligibility determination process and through data matching and referrals.

16.4.2.1 As the first line of contact for families, CAPS staff are vital in the prevention, detection, and reporting of activities that appear to be in violation of CAPS policy. Staff should verify questionable or inconsistent information reported by the parent, during the interview, and when reviewing the child care application and supporting documentation.

16.4.2.2 DECAL's Audits and Compliance Division will periodically compare parents' reported income to Georgia Department of Labor data and other sources. Discrepancies may result in further investigation.

16.4.3 DECAL's Audits and Compliance Division conducts investigations related to child care cases.

16.4.3.1 A parent's child care case may be referred for investigation when conflicting information has been submitted, when information submitted appears to be altered or falsified, when there is an overpayment, or at the discretion of the CAPS program.

Requests for investigation should be submitted using [Appendix V](#) and sent to:

Georgia Department of Early Care and Learning
Audits and Compliance Division
2 Martin Luther King Jr. Drive SE
Suite 754, East Tower
Atlanta, GA 30334

16.4.3.2 All parties are required to fully cooperate with any investigations on behalf of CAPS, and failure to do so may result in sanctions.

16.4.3.3 Parents must cooperate with any investigation by completing any required forms, responding to scheduled interview appointments, and by making requested records or information available.

16.4.4 DECAL may impose sanctions allowable under federal, state, or local law, regulation, or policy when a parent is found to be in noncompliance with CAPS policies.

16.4.4.1 The following chart details allowable sanctions for parents.

Parent – Program Integrity Noncompliance	Allowable Sanctions
Parent provided inaccurate, outdated, or incomplete information or did not report a change that would have impacted eligibility.	If benefits were authorized for which the family was not eligible as the result of incomplete or incorrect information or failure to report a change, the child care case may be closed (if the family would not have been eligible), benefits will be appropriately adjusted for the remainder of the eligibility period (if applicable), and a claim will be established for the difference between benefits received and benefits for which they were eligible.

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Parent – Program Integrity Noncompliance	Allowable Sanctions
Parent did not cooperate with an investigation. Noncompliance occurs when CAPS administration has confirmed there have been at least two attempts to contact the parent through any available communication channels (phone, mail, and/or email).	Failure to cooperate with an investigation may result in the assessment of an overpayment for the review period and closure of the child care case. If a child care case is closed for failure to cooperate with an investigation, the parent will be disqualified from CAPS for three months, after which they may reapply. Limited exceptions to this disqualification may be granted through a waiver request for families participating in or transitioning from TANF and families with an active Child Protective Services case.
Parent did not cooperate with an on-going eligibility review.	Failure to cooperate with an on-going eligibility review will result in closure of the child care case for program violation. A claim may be established for the difference between benefits received and benefits for which they were eligible.
Parent did not respond to or honor the child care claim or repayment statement. Noncompliance occurs when an initial payment is not received within 60 calendar days of the date the repayment statement was signed or when subsequent payments are more than 30 calendar days past due.	Failure to respond to or honor the child care claim and repayment statement may result in closure of the child care case. If a child care case is closed for failure to respond to or honor a repayment statement, the parent will be disqualified from CAPS until the claim is paid in full, after which they may reapply. Limited exceptions to this disqualification may be requested through a waiver for families participating in or transitioning from TANF and families with an active CPS case.
Parent provided false information or documents related to their eligibility determination.	If falsified documents or information resulted in the authorization of benefits for which the family was not eligible, the child care case may be closed (if the family would not have been eligible), benefits will be appropriately adjusted for the remainder of the eligibility period (if applicable), and a claim will be established for the difference between benefits received and benefits for which they were eligible. Additional sanctions may be imposed, up to and including case closure or disqualification from CAPS, as determined by CAPS administration.

16.4.4.2 Categories of parent noncompliance include **client errors** and **program violations**.

- A. Client errors are a result of unintentional submission or omission of documentation or information.
- B. Program violations are the result of intentional noncompliance with CAPS policy and may be referred for further investigation. Program violations may be considered fraud if established by a court of jurisdiction.

16.4.4.3 If sanctions result in a reduction in child care benefits, such as a case closure due to inaccurate or incomplete information provided, the reduction in benefits will go into effect no sooner than 14 calendar days after the parent has been notified. This 14-day period is referred to as the **adverse action period**.

16.4.4.4 As prescribed in [CAPS Administrative Hearings Policy \(CAPS/00-18\)](#), parents receiving subsidized child care have a right to appeal and receive a hearing regarding any actions instituted by DECAL that impact a parent's eligibility or require a reclaim of funds. Parents must request an appeal in writing by the deadline listed on the notice or within 14

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calendar days from the date of the notice on an appealable or adverse action taken by DECAL.

- 16.4.4.5 Findings of noncompliance that resulted in increased benefits may be pursued for recoupment and a claim may be established. Claims less than \$600 may be processed by CAPS Adverse Actions and Claims. Claims \$600 or more may be referred to DECAL's Audits and Compliance Division for investigation.
- 16.4.5 DECAL may pursue any and all legal or equitable remedies available to the CAPS program in accordance with applicable state and federal laws or regulations to recoup claims in full.
 - 16.4.5.1 DECAL has the right to enter into repayment agreements with parents to ensure that all claims are collected in full and within 24 months.
 - 16.4.5.2 Parents may complete the [Parent Repayment Statement](#) to determine the amount and frequency of claim payments. The parent must adhere to all terms of the repayment statement.
 - 16.4.5.3 Claims may be repaid through a lump sum or monthly installments. Information regarding payment arrangements can be found in [CAPS Managing Program Integrity Procedure \(CAPS/01-08\)](#).
 - 16.4.5.4 DECAL reserves the right to enter into a hardship agreement with a parent whereby the recoupment rate may be reduced for a specific time frame. Hardship agreements are approved at the sole discretion of DECAL. Hardships include but are not limited to illness, job loss, unexpected expenses or loss of income due to the death of a family member, and unstable family situations involving child custody problems or Child Protective Services.

16.5 Child Care Providers

- 16.5.1 Child care providers support program integrity by complying with [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#). Most notably, providers are expected to bill only for services provided and supported by arrival and departure records and transportation records maintained as prescribed in [CAPS Health and Safety Standards Policy \(CAPS/00-15\)](#). In addition, providers are expected to comply with the initial enrollment and annual renewal processes as well as all assessments, reviews, and investigations.
- 16.5.2 CAPS will detect potential program integrity concerns related to child care providers through attendance verification assessments, risk-based compliance reviews, and referrals.
 - 16.5.2.1 CAPS conducts attendance verification assessments of provider billing records. Providers are typically required to submit arrival and departure records and transportation records for a specified month as instructed in the review notification. The purpose of attendance verification assessments is to support provider compliance. Failure to provide records timely may result in a referral to DECAL's Audits and Compliance Division.
 - 16.5.2.2 DECAL's Audits and Compliance Division conducts risk-based compliance reviews. Providers are typically required to submit arrival and departure records and transportation records for a specified three-month period within 15 calendar days from the date the notice was received. The review period may be widened at DECAL's discretion. The purpose of compliance reviews is to identify and recoup improper payments; however, additional sanctions may also be imposed at the discretion of CAPS administration.
- 16.5.3 DECAL's Audits and Compliance Division conducts investigations related to provider billing.
 - 16.5.3.1 Child care providers may be referred for investigation when conflicting information has been submitted, when information submitted appears to be altered or falsified, when there is an overpayment, or at the discretion of the CAPS program.

Requests for investigations should be submitted using [Appendix V](#) and sent to:

Georgia Department of Early Care and Learning
Audits and Compliance Division

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2 Martin Luther King Jr. Drive SE
Suite 754, East Tower
Atlanta, GA 30334

- 16.5.3.2 All parties are required to fully cooperate with any investigations on behalf of CAPS, and failure to do so may result in sanctions.
- 16.5.3.3 For investigations, providers are typically required to submit arrival and departure records and transportation records for a specified time period within 15 calendar days from the date the notice was issued. However, records may be requested during an on-site visit and, if so, must be made available immediately upon request as prescribed in [CAPS Provider Rights and Responsibilities Policy \(CAPS/00-12\)](#). The time period for which records are requested varies based on the dates specified in the referral. The review period may be widened at DECAL's discretion.
- 16.5.4 DECAL may impose sanctions allowable under federal, state, or local law, regulation, or policy when a provider is found to be in noncompliance with CAPS policies.
- 16.5.4.1 In addition to the sanctions below, DECAL may place providers in a probationary status which may include additional monitoring, a corrective action plan, training, technical assistance, or other actions taken by DECAL.
- 16.5.4.2 At the discretion of DECAL, a provider may be deemed out of compliance during review or investigation of the program which may lead to adverse actions including but not limited to, suspension, recoupment of funds, dismissal or disqualification from CAPS.
- 16.5.4.3 The following chart details allowable sanctions for child care provider program integrity noncompliance.

Child Care Provider – Program Integrity Noncompliance Finding	Allowable Sanctions
Provider did not submit W9, 704, Child Care Provider Agreement, and direct deposit form to CAPS by the date requested.	Payments to the provider will be suspended. Payments will be released to the provider once all documents are submitted to CAPS. Payments will be withheld for no more than 30 calendar days before the provider is dismissed from CAPS. Reinstatement will occur once all documents are submitted. If reinstatement does not occur within 30 calendar days of being dismissed, the provider will have to begin the enrollment process again.
It was determined during an <i>attendance verification assessment</i> that the provider did not maintain arrival and departure records and transportation records as prescribed in CAPS Health and Safety Standards Policy (CAPS/00-15) .	The person legally responsible for the program and the person responsible for maintenance of records will be required to complete mandatory program training. If the provider does not make improvements in record maintenance, the provider will be referred to DECAL's Audits and Compliance Division for investigation and further sanctions may be imposed.
It was determined during a <i>compliance review or investigation</i> that the provider did not maintain arrival and departure records and transportation records as prescribed in CAPS Health and Safety Standards Policy (CAPS/00-15) .	CAPS will recoup the amount of any child care subsidies paid during the period under review for which adequate documentation (i.e., arrival and departure records and transportation records) was not provided.
It was determined during an <i>audit or investigation</i> that the provider billed for the wrong type of care and received an overpayment as a result.	CAPS will recoup the difference between the amount of any child care subsidies paid and the amount of child care subsidy that should have been paid based on the correct type of care.

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Child Care Provider – Program Integrity Noncompliance Finding	Allowable Sanctions
Provider did not submit requested records for a <i>compliance review or investigation</i> within 15 days if requested in writing or immediately if requested during an on-site review.	Failure of the provider to submit documents for a compliance review or investigation by the deadline will result in the establishment of an overpayment claim for any period where documentation is not provided. Additional sanctions may be imposed, up to and including dismissal and disqualification from CAPS, as determined by CAPS administration in consultation with DECAL's Audits and Compliance Division.
Provider self-reports that they billed incorrectly.	If the error resulted in incorrect payment issuance, a claim will be established. Provider errors less than \$600 may be processed by CAPS. Provider errors \$600 or more will be referred to DECAL's Audits and Compliance Division for investigation.
Provider did not comply with a repayment statement.	Child care providers that fail to adhere to a repayment statement will be dismissed from the CAPS program and disqualified for a minimum of six months. Child care providers that fail to adhere to the terms of the repayment statement cannot receive CAPS funding until all past due payments have been paid.
Provider submits false documents or failed to provide current, accurate, and complete documentation.	If the documents resulted in incorrect payment issuance, a claim will be established. Additional sanctions may be imposed up to and including dismissal and disqualification from CAPS. Providers dismissed for submitting false documents may be reviewed for reinstatement one year from the date of the dismissal, provided the claim has been paid in full. Failure to provide current, accurate, and complete documentation may be construed as submitting a false statement. DECAL will refer for criminal prosecution any provider who knowingly submits false documentation.
Provider is debarred by or removed from other federal or state program.	At DECAL's sole discretion and not subject to review or appeal, responsible principals or individuals (as defined in 7 C.F.R. 226.2), providers, corporate partners, business entities, and officers may be dismissed and disqualified from CAPS until removed from the debarment or disqualification list.
Provider is convicted of fraud by a court of competent jurisdiction.	Individuals, providers, corporate partners, business entities, and officers are permanently disqualified from CAPS when there is substantiated fraud from a court of competent jurisdiction.
Provider failed to notify CAPS of any changes in contact or demographic information.	Failure to notify CAPS of any changes in contact or demographic information may result in dismissal from the CAPS program.
Provider billed CAPS for a period of time when another federal or state program, such as Head Start or Georgia's Pre-K Program, has paid for a child's care for the same service period, and provider did not have written authorization from DECAL for layered federal or state funding.	CAPS may recoup any payments for subsidies issued when another federal or state program has covered the cost of child care if the provider did not have written authorization from DECAL for layered federal funding.

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Child Care Provider – Program Integrity Noncompliance Finding	Allowable Sanctions
Provider billed for child care during a period of time when child care services are subsidized in full as part of the parent's employment.	CAPS may recoup any payments for subsidies issued when it is discovered that an employer has covered the cost of child care.

16.5.4.4 Categories of child care provider noncompliance include **provider errors** and program violations.

- A. Provider errors are a result of unintentional submission or omission of documentation or information.
 - (1) Provider errors identified through provider self-reporting, compliance reviews, or investigations that resulted in incorrect payment issuance will be pursued for recoupment and a claim will be established.
 - (2) Provider errors less than \$600 may be processed by CAPS. Provider errors \$600 or more will be referred to DECAL's Audits and Compliance Division for investigation.
- B. Program violations are the result of intentional noncompliance with CAPS policy and may result in further investigation. At DECAL's discretion, program violations may result in mandatory training, payment suspension, payment recoupment, dismissal, or disqualification.
 - (1) Disqualification from CAPS may jeopardize the provider's ability to participate in other DECAL programs.
 - (2) Program violations may be considered **fraud** if established by a court of jurisdiction.

16.5.4.5 If DECAL actions result in a reclaim of funds, providers may request reconsideration or an administrative hearing. The provider must request reconsideration or an administrative hearing in writing. The written request must be postmarked by the deadline listed on the notice or within 14 calendar days from the date of the notice issued of the appealable action taken by DECAL.

- A. When a provider receives a notice for the establishment of an overpayment from DECAL or its representatives, they may submit additional documentation to support their request for payment.
 - (1) Any request for reconsideration must be accompanied by supporting documentation.
 - (2) Reconsideration shall only include requests for clarification or review of existing documents already submitted and shall only cover the time period and children previously reviewed. Any request for reconsideration must be accompanied by supporting documentation.
 - (3) Reconsideration shall not include the opportunity to submit new documentation that has been previously requested but not submitted unless authorized by DECAL in writing for unique circumstances.
 - (4) DECAL will review the reconsideration request and supporting documentation in a timely manner. After this review, the Audits and Compliance Division will send the child care provider a Reconsideration Notice notifying the provider of any change in the amount of overpayment resulting from reconsideration.
- B. As prescribed in [CAPS Administrative Hearings Policy \(CAPS/00-18\)](#), child care providers participating in CAPS have a right to request an appeal and receive a hearing regarding DECAL actions resulting in a reclaim of funds.

16.5.5 DECAL may pursue any and all legal or equitable remedies available to the CAPS program in accordance with applicable state and federal laws or regulations to collect claims in full. CAPS is responsible for pursuing, collecting, tracking, and reporting overpayments identified by DECAL or its representative.

16.5.5.1 The provider shall refund any overpayments assessed by DECAL or its representatives.

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- 16.5.5.2 DECAL has the right to enter into repayment agreements with child care providers to ensure that all claims are collected in full and within 24 months.
- 16.5.5.3 Providers may complete the Child Care Provider Repayment Statement to determine the amount and frequency of claim payments. The provider must adhere to all terms of the repayment statement.
- 16.5.5.4 Claims may be repaid through offsetting reimbursements, a lump sum, or, in limited situations, monthly installments. Offsetting reduces the CAPS reimbursement until the claim has been repaid in full and is only available for providers currently receiving subsidy. Information regarding payment arrangements for a lump sum or monthly installments can be found in CAPS Managing Program Integrity Procedure (CAPS/01-08).

16.6 Automation Errors, Administrative Errors, and Underpayments

- 16.6.1 The provider shall refund any overpayments assessed by DECAL or its representatives related to automation errors.
- 16.6.2 Administrative errors are a result of an error made by the agency causing incorrect payment of subsidy and/or eligibility to be determined incorrectly. In cases where the claim is completely based on an administrative error, the agency will not seek recoupment. However, the case will be corrected to ensure accuracy and compliance with applicable laws, regulations, and policies.
- 16.6.3 An underpayment exists when an improper payment is discovered where the parent or child care provider receives fewer services or less payment than she or he is entitled to receive. If benefits are underpaid due to an administrative error, the amount owed shall be paid within 30 calendar days from the date the error was discovered, unless more information is needed to calculate the correct payment or the parent or the child care provider has an outstanding overpayment.
 - 16.6.3.1 Underpayments will first be used to offset any outstanding overpayment.

POLICY REVISION HISTORY

Date	Description of Change
07/02/2018	Revised policy to indicate that DECAL will not seek recoupment for any claims based completely on administrative error. Previously, policy stated that DECAL would seek recoupment if the claim based completely on administrative error exceeded \$600.
10/01/2018	Added Serious Injury to the list of disqualifying circumstances. <i>This is included in the CAPS Health and Safety Policy (CAPS/00-15).</i>
02/01/2019	Reorganized policy by replacing Improper Payments (CAPS/00-15) and Disqualifications and Sanctions (CAPS/00-16) policies with Health and Safety Standards (CAPS/00-15) and Program Integrity (CAPS/00-16) policies. This new Program Integrity Policy is composed primarily of relevant information that already existed in other sections of CAPS policy. In addition to centralizing existing policies, we added details regarding prevention, detection, and investigation processes that were already in practice within the CAPS program but were not outlined in CAPS policy.
07/01/2019	Revised language to clarify CAPS policy regarding dismissal and disqualifications from CAPS due to termination or disqualification by the Office of Inspector General (OIG) with the U.S. Department of Health and Human Services, by the Child and Adult Care Food Program (CACFP), or by the Summer Food Service Program (SFSP).
10/1/2019	Added language noting that DECAL may place providers in a probationary status. Clarified that a case may close when a parental authority fails to respond to the child care claim or repayment statement. Revised language to reflect the appeal period is the deadline listed on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.

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		Revised:	03/02/2026
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Date	Description of Change
11/15/2023	Revised language to clarify the child care provider may request a reconsideration or an administrative hearing related to a reclaim of funds, as appropriate, in writing and postmarked by the deadline listed on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.
03/02/2026	Revised language to add that parents must comply with on-going eligibility reviews. Revised language to add staff should verify questionable or inconsistent information reported by the parent and during the interview, Added section to address when parent does not cooperate with an on-going eligibility review. Removed increased family fee as a sanction. Added language to clarify that cases with administrative errors will be corrected to ensure accuracy and compliance. Revised language to add at the discretion of DECAL, a provider may be deemed out of compliance during review or investigation of the program which may lead to adverse actions including, but not limited to, suspension, recoupment of funds, dismissal or disqualification from CAPS.

CAPS Policy – Grievances	No.: CAPS/00-17	Effective Date:	10/01/2016
		Revised:	10/01/2019
		Revision Effective:	10/01/2019

LEGAL AUTHORITY: Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Policy – Administrative Hearings (CAPS/00-18)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

17 GRIEVANCES

17.1 Purpose

A grievance is any complaint regarding program services, policies, or procedures offered through the **Childcare and Parent Services (CAPS)** program excluding those subject to an **administrative hearing**. Grievances are handled at the State Office level and reviewed by impartial members of CAPS leadership.

17.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

17.3 Policy Content and Guidelines

17.3.1 Child care providers, **informal providers** and parents have the right to file a grievance, which is different from the guarantee to an administrative hearing (refer to [CAPS/00-18 Administrative Hearings Policy](#)).

17.3.2 Grievances should include the following specific information:

- Contact information
- Provider name (if applicable)
- Circumstances involved in the grievance
- Other individuals with information concerning the grievance

17.3.3 Grievances should be forwarded via one of the following options:

Email	CAPS.adverseactions@dec.al.ga.gov
Phone	1-833-4GACAPS (1-833-442-2277)
Mail	GA Department of Early Care and Learning CAPS – Adverse Actions and Claims Unit 2 Martin L. King Jr. Drive SE Suite 754, East Tower Atlanta, GA 30334
Fax	1-888-838-0051

17.3.4 Upon receipt of the grievance, DECAL staff will review and make contact as necessary with applicable parties within five business days to reach a resolution as quickly as possible.

POLICY REVISION HISTORY

Date	Description of Change
10/01/2019	Updated contact information.

CAPS Policy – Administrative Hearings	No.: CAPS/00-18	Effective Date:	10/01/2016
		Revised:	10/06/2025
		Revision Effective:	10/06/2025

LEGAL AUTHORITY: OCGA § 50-13-1 et seq., 7 CFR 226.6(k); Federal Register: 45 Code of Federal Regulation (CFR) 98 and 99.

Cross Reference/See Also: CAPS Parent Rights and Responsibilities Policy (CAPS/00-3), CAPS Eligibility Requirements Policy (CAPS/00-6), CAPS Program Integrity Policy (CAPS/00-16), CAPS Child Care Providers Rights and Responsibilities (CAPS/00-12)

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

18 ADMINISTRATIVE HEARINGS

18.1 Purpose

The purpose of this policy is to establish guidelines for **administrative hearings** when **parents** or child care **providers** disagree with an **adverse action** taken by the **Georgia Department of Early Care and Learning (DECAL)**.

18.2 Scope

This policy applies to all employees of the **Department of Early Care and Learning (DECAL)**, all parties responsible for the administration of the CAPS program, **parents**, and child care **providers** who receive subsidies administered by DECAL on behalf of parents.

18.3 Right to an Administrative Hearing for Parents

- 18.3.1 Parents receiving subsidized child care have a right to **appeal** and receive a hearing regarding any actions instituted by DECAL that impact a parent's eligibility and/or any action that would require a reclaim of funds. Lack of funding availability is not appealable. It is important to note the following situations are not appealable:
- Applications disposed as **unable to process** or **withdrawn**
 - Selection of a child care provider that has been previously terminated by the CAPS program.
 - Dissatisfaction with care or services provided by the child care provider.
 - Statewide or local limitations on CAPS funding that results in a denial of CAPS services.
 - The natural expiration of a family's eligibility period.
 - Any changes in federal or state law, regulations, or policies that affect entire populations.
- 18.3.2 If a parent appeals an adverse action that was imposed during the **eligibility period**, the parent may elect to continue receiving benefits at the current level until the appeal is resolved or until the end of the current eligibility period, whichever comes first. Funds paid when this option is exercised may be subject to reclaim.
- 18.3.3 If a parent appeals an adverse action imposed at annual redetermination, they may not elect to continue receiving benefits beyond the eligibility period preceding the annual redetermination.
- 18.3.4 The parent must request an administrative hearing, as appropriate, in writing within 14 **calendar days** from the date on the notice of adverse action.
- 18.3.5 Failure to request an administrative hearing by the deadline listed on the notice or within 14 calendar days from the date of the notice shall automatically affirm DECAL's decision.
- 18.3.6 If the individual making a hearing request does not speak English and a bilingual staff person or interpreter is requested, DECAL must ensure that the appellant is afforded a translator at the hearing.

18.4 Right to an Administrative Hearing for Child Care Providers

- 18.4.1 Child care providers receiving CAPS services have the right to appeal and receive a hearing regarding DECAL actions resulting in a reclaim of funds. It is important to note that the following matters are not appealable:
- Future payments
 - Lack of funding availability
 - Denial from participation in CAPS

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- Dismissal from participation in CAPS
- Disqualification from participation in CAPS

18.4.2 The child care provider may request a reconsideration or an administrative hearing related to a reclaim of funds, as appropriate, in writing. The written request must be postmarked by the deadline listed on the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.

18.4.3 Failure to request reconsideration or a hearing, as appropriate, by the deadline listed on the notice or within 14 calendar days from the date of the notice shall automatically affirm DECAL's decision.

18.4.4 If the individual making a hearing request does not speak English and a bilingual staff person or interpreter is requested, DECAL must ensure that the appellant is afforded a translator at the hearing.

18.5 Notification

18.5.1 All parties will be notified of the hearing date and location by the **Office of State Administrative Hearings (OSAH)**. Hearings for the CAPS program are conducted by OSAH.

18.6 Release of Information

18.6.1 For the purpose of the administrative hearing process, individuals shall have access to his or her eligibility case records as required by law. Child care providers will have access to their enrollment records previously submitted to the CAPS. All other record requests shall be obtained through the open records process. The open records process can be found at <https://www.decal.ga.gov/Bfts/OpenRecordsRequest.aspx>.

18.6.2 When requested, records for review will be sent to the parent or the provider through U.S. mail or approved electronic means at DECAL's discretion.

18.7 Pre-Hearing Conferences

18.7.1 Parents and providers shall have the right to request a pre-hearing conference before proceeding to the actual administrative hearing. At no time shall an individual be discouraged from pursuing his or her right to an administrative hearing. A pre-hearing conference does not stay a hearing before OSAH.

18.7.2 If requested, the pre-hearing conference shall be scheduled at a time and place agreed to by all parties.

18.7.3 Parents and child care providers may not refuse participation if a pre-hearing conference is required by DECAL. Failure to appear at pre-hearing conferences requested by DECAL may result in **sanctions** against the parent or child care provider.

18.7.4 Parents and child care providers may have an authorized representative participate on his/her behalf.

18.7.5 Neither DECAL nor the parent or child care provider shall be bound to make an agreement during this pre-hearing.

18.7.6 If there is an agreement during the pre-hearing conference, the agreement must be documented and shall be required to be followed by all parties.

POLICY REVISION HISTORY

Date	Description of Change
10/01/2019	Added additional clarification related to matters that are not appealable. Revised language to note that when allowed, appeals must be requested by the deadline listed on the notice or within 14 calendar days from the date of the notice.
05/15/2020	Revised language to clarify non-appealable actions for parental authorities.
11/15/2023	Revised language to clarify the child care provider may request a reconsideration or an administrative hearing related to a reclaim of funds, as appropriate, in writing and postmarked by the deadline listed on

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	the notice or within 14 calendar days from the date of the notice on an appealable or adverse action taken by DECAL.
10/06/2025	Revised language to add open records process website information.

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		Revised:	11/15/2023
		Revision Effective:	11/15/2023

Note: Definitions of words or phrases in bold are located in [Definitions and Acronyms](#). Only the first occurrence of the defined words or phrases are bolded.

19 AGENCY CONTACTS

DECAL – CAPS Unit

Staff in the **Childcare and Parent Services (CAPS)** Unit are available during normal business hours to resolve customer services matters for all CAPS constituents, including federal, state and local CAPS stakeholders. Consumers can contact CAPS at 1-833-4GACAPS (1-833-442-2277). For information on CAPS eligibility, policies, and related topics, visit www.CAPS.DECAL.ga.gov.

DECAL – Child Care Services (CCS)

The Child Care Services division of the **Department of Early Care and Learning (DECAL)** is responsible for licensing and regulation of child care programs statewide. If consumers have general licensing questions, concerns regarding a particular program's compliance with licensing requirements or wish to make a complaint pertaining to health and safety regarding a specific program, contact CCS directly at **404-657-5662** or email CCS Complaint Intake at CCScomplaints@dec.al.ga.gov.

DECAL – Audits and Compliance

The DECAL Audits and Compliance Division is responsible for investigating allegations of **improper payments** and billing noncompliance for DECAL programs. Constituents who would like to report any instances of impropriety or misuse of state or federal funds by a parent or child care program can contact Audits and Compliance at **770-288-8958** or email CAPS.investigations@dec.al.ga.gov.

Department of Human Services (DHS) Personal Advocate Line

The DHS Personal Advocate line was established to assist customers with Georgia DHS related issues or locating the county/regional personnel who can provide additional assistance. Consumers can reach the Personal Advocate line at **1-800-869-1150**.

Division of Family and Children Services (DFCS) Constituent Services

Constituents including federal, state and local stakeholders who have issues that arise with Georgia DFCS staff can contact the Constituent Services hotline. Calls are screened, assigned, and case information is forwarded to the designated County Director and Regional Director for response within five to seven business days. Constituents can call **404-651-6316** to reach the hotline.

Georgia Association of Child Care Resource and Referral Agencies (GACCRRA)

GACCRRA has a unique position to support the development of quality child care in Georgia. CCR&Rs provide a wide array of services to families such as assistance to parents in their search for quality child care, parent education classes, newsletters, and community resources. CCR&R services are also offered to child care providers including training, technical assistance, access to materials educational newsletters, advocacy, and more. For more information, visit www.gaccrra.org.

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		Revised:	11/15/2023
		Revision Effective:	11/15/2023

POLICY REVISION HISTORY

Date	Description of Change
11/15/2023	Removed MAXIMUS from list of Agency Contacts.

APPENDICES AND FORMS

Appendix	Form Number	Form Name
Appendix A		CAPS Maximum Income Limits Chart
Appendix B		Save Verification Process
Appendix C		Maximum Reimbursement Rate Chart
Appendix D		Family Fee Assessment Chart
Appendix E		Record Keeping Procedures for CAPS Case Files
Appendix F		Employment Verification
Appendix G	Form 1	OSAH Administrative Hearing Form 1
Appendix H	Child Welfare Child Care Services Referral Form	Child Welfare Child Care Services Referral Form
Appendix I	Form 58	Informal Provider Enrollment
Appendix J	Form 60	CAPS Child Care Application
Appendix K		Authorized Representative Form
Appendix L	Form 62	Disposition and Parent Information
Appendix M	Form 64	Voluntary Withdrawal Form and Voluntary Withdrawal-During Eligibility Period
Appendix N	Form 66	Appointment Letter and Verification Checklist
Appendix O	Form 111 (C & P)	Repayment Statement (Parent and Provider)
Appendix P	Form 112	Report of Claim Determination Worksheet
Appendix Q	Form 113 (C & P)	Child Care Claims and Collection Notice (Parent and Provider)
Appendix R	Form 114 (C & P)	Hardship Repayment Request (Parent and Provider)
Appendix S	Form 600	CAPS Referral for Georgia's Pre-K Program
Appendix T	Form 633	Informal Provider Monitoring Checklist
Appendix U	Form 704	Civil Rights Compliance for Child Care Providers
Appendix V	Form 5667 & 5776B	Request For Investigation (Parent and Provider)
Appendix W	Form W-9	IRS Taxpayer Identification Form
Appendix X		Uniform Accounting System (UAS) Code Listing
Appendix Y	Form 601	Child Care Provider Agreement

Appendix	Form Number	Form Name
Appendix Z	Form 602	Family Asset Certification
Appendix AA		CAPS Consumer Education Guide
Appendix BB		Eligible Postsecondary Institution Guidance
Appendix CC		Self-employment Report
Appendix DD		Education and Training Verification
Appendix EE		Statement of Guardianship
Appendix FF		TANF Referral for Child Care
Appendix GG		Exempt Provider Monitoring Checklist
Appendix HH		Health and Safety Standards for Informal Providers
Appendix II		CAPS Quality Rated Guidelines and Requirements
Appendix JJ		Head Start Verification Form
Appendix KK		CAPS Child Learning Impact Assessment Form
Appendix LL		CAPS Child Care Provider Information Form